

Central Coast Regional Water Quality Control Board

ORDER NO. R3-2012-0016

NPDES NO. CA0047899

**WASTE DISCHARGE REQUIREMENTS
FOR MONTECITO SANITARY DISTRICT WASTEWATER TREATMENT FACILITY**

The following Discharger is subject to waste discharge requirements set forth in this Order.

Table 1. Discharger Information

Discharger	Montecito Sanitary District
Name of Facility	Montecito Sanitary District Wastewater Treatment Facility
Facility Address	1042 Monte Cristo Lane Santa Barbara, CA 93108 Santa Barbara County
The U.S. Environmental Protection Agency (USEPA) and the Regional Water Quality Control Board, Central Coast Region have classified this discharge as a major discharge.	

Discharges by the Montecito Sanitary District Wastewater Treatment Facility from the discharge point identified below are subject to waste discharge requirements as set forth in this Order.

Table 2. Discharge Location

Discharge Point	Effluent Description	Discharge Point Latitude	Discharge Point Longitude	Receiving Water
001	Treated domestic wastewater	34° 24' 48" N	119° 38' 52" W	Pacific Ocean

Table 3. Administrative Information

This Order was adopted by the Central Coast Water Board on:	December 6, 2012
This Order shall become effective on:	January 25, 2013
This Order shall expire on:	January 25, 2017
The Discharger shall file a Report of Waste Discharge in accordance with title 23, California Code of Regulations, as application for issuance of new waste discharge requirements no later than:	180 days prior to the Order expiration date

I, Kenneth A. Harris, Acting Executive Officer, do hereby certify that this Order with all attachments is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Central Coast Region, on December 6, 2012.

Kenneth A. Harris Jr, Acting Executive Officer

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I. FACILITY INFORMATION

The following Discharger is subject to the waste discharge requirements set forth in this Order:

Table 4. Facility Information

Discharger	Montecito Sanitary District
Name of Facility	Montecito Sanitary District Wastewater Treatment Facility
Facility Address	1042 Monte Cristo Lane Santa Barbara, CA 93108 Santa Barbara County
Facility Contact, Title, and Phone	Diane Gabriel, General Manager, (805) 969-4200 Brett J. Walker, Operations & Maintenance Manager
Mailing Address	1042 Monte Cristo Lane, Santa Barbara, CA 93108
Type of Facility	Publicly Owned Treatment Works (POTW)
Facility Permitted Flow	1.5 million gallons per day (MGD)
Facility Design Flow	1.5 million gallons per day (MGD)

II. FINDINGS

The California Regional Water Quality Control Board, Central Coast Water Board (hereinafter Central Coast Water Board), finds:

A. Background. The Montecito Sanitary District (the Discharger) is currently discharging under Order No. R3-2006-0084 and National Pollutant Discharge Elimination System (NPDES) Permit No. CA0047899. The Discharger submitted a Report of Waste Discharge (ROWD), dated June 30, 2011, and applied to renew its NPDES permit to discharge up to 1.5 MGD of treated wastewater from the Montecito Sanitary District Wastewater Treatment Facility (hereinafter Facility). The application was deemed complete on July 11, 2011.

For the purposes of this Order, references to the “dischargers” or “permittee” in applicable federal and state laws, regulations, plans, or policy are held to be equivalent to references to the Discharger herein.

B. Facility Description. The Discharger owns and operates a wastewater collection, treatment, and disposal system that provides sewerage service to the community of Montecito. The treatment system consists of macerators, aerated activated sludge tanks, secondary clarification, chlorination, and dechlorination. Waste activated sludge from the activated sludge tanks is sent to a dissolved air flotation (DAF) tank for thickening. The sludge is pumped from the DAF to an aerobic digester to a dewatering belt press. The dewatered biosolids are then stockpiled in a holding bin, which is then hauled from the site by a composting company. Wastewater is discharged from Discharge Point No. 001 to the Pacific Ocean, a water of the United States within the South Coast Hydrologic Unit.

Wastewater is discharged to the Pacific Ocean through a 1,500-foot outfall/diffuser system. The outfall (Discharge Point No. 001) terminates off of Butterfly Beach in the Santa Barbara Channel in approximately 35 feet of water. The minimum initial dilution ratio of seawater to effluent is 89:1.

Attachment B provides a site map of the area around the facility. Attachment C provides a flow schematic of the facility.

- C. Legal Authorities.** This Order is issued pursuant to Clean Water Act (CWA) Section 402 and implements regulations adopted by the USEPA and California Water Code (CWC) Chapter 5.5, Division 7 (commencing with Section 13370). It shall serve as an NPDES permit for point source discharges from the Facility to surface waters. This Order also serves as Waste Discharge Requirements (WDRs) pursuant to CWC Article 4, Chapter 4, Division 7 (commencing with Section 13260).
- D. Background and Rationale for Requirements.** The Central Coast Water Board developed the requirements in this Order based on information submitted as part of the NPDES renewal application, through monitoring and reporting programs, and other available information. The Fact Sheet (Attachment F) contains background information and rationale for this Order's requirements, and is hereby incorporated into this Order and constitutes part of this Order's Findings. Attachments A through E and F are also incorporated into this Order.
- E. California Environmental Quality Act (CEQA).** Pursuant to Water Code Section 13389, this action to adopt an NPDES permit is exempt from the provisions of the CEQA, Public Resources Code Sections 21100-21177.
- F. Technology-Based Effluent Limitations.** CWA Section 301(b) and NPDES regulations at Title 40 of the Code of Federal Regulations (40 CFR) Section 122.44 require that permits include conditions meeting applicable technology-based requirements at a minimum, and any more stringent effluent limitations necessary to meet applicable water quality standards. The discharge authorized by this Order must meet minimum federal technology-based requirements based on Secondary Treatment Standards at 40 CFR 133. A detailed discussion of technology-based effluent limitation development is included in the Fact Sheet (Attachment F).
- G. Water Quality-Based Effluent Limitations.** CWA Section 301(b) and NPDES regulations at 40 CFR 122.44(d) require that permits include limitations more stringent than applicable federal technology-based requirements where necessary to achieve applicable water quality standards. 40 CFR 122.44(d)(1)(i) mandates that permits include effluent limitations for all pollutants that are or may be discharged at levels that have the reasonable potential to cause or contribute to an exceedance of a water quality standard, including numeric and narrative objectives within a standard (Reasonable Potential). Where Reasonable Potential has been established for a pollutant that has no numeric objective, water quality-based effluent limitations (WQBELs) must be established using (1) USEPA criteria guidance under CWA Section 304(a), supplemented where necessary by other relevant information; (2) an indicator parameter for the pollutant of concern; or (3) a calculated numeric water quality criterion, such as a proposed State criterion or policy interpreting the State's narrative criterion, supplemented with other relevant information, as provided in 40 CFR 122.44(d)(1)(vi).
- H. Water Quality Control Plans.**
- 1. Basin Plan.** The Central Coast Water Board has adopted the *Water Quality Control Plan for the Central Coastal Basin* (Basin Plan), which designates beneficial uses, establishes water quality objectives (WQOs), and contains implementation programs and policies to achieve those objectives for receiving waters within the Region. To address ocean waters, the Basin Plan incorporates by reference the *Water Quality Control Plan for Ocean Waters of California* (Ocean Plan).

The Basin Plan implements State Water Resources Control Board (State Water Board) Resolution No. 88-63, which establishes as State policy that all waters, with certain exceptions, should be considered suitable or potentially suitable for municipal or domestic supply (MUN). Because total dissolved solids (TDS) levels for marine waters exceed 3,000 mg/L, such waters are not considered suitable for municipal or domestic supply and therefore meet an exception

to Resolution No. 88-63. Beneficial uses established by the Basin Plan for the Pacific Ocean are presented below.

Table 5. Basin Plan Beneficial Uses

Discharge Point	Receiving Water	Beneficial Use(s)
001	Pacific Ocean (Coal Oil Point to Rincon Point)	Water Contact Recreation (REC-1) Non-contact Water Recreation (REC-2) Industrial Service Supply (IND) Navigation (NAV) Marine Habitat (MAR) Shellfish Harvesting (SHELL) Commercial and Sport Fishing (COMM) Rare, threatened, or endangered species (RARE) Wildlife Habitat (WILD)

Requirements of this Order implement the Basin Plan.

2. **California Ocean Plan.** The State Water Board adopted the *Water Quality Control Plan for Ocean Waters of California* (Ocean Plan) in 1972 and amended it in 1978, 1983, 1988, 1990, 1997, 2000, 2005, and 2009. The State Water Board adopted the latest amendment on September 15, 2009, which was approved by the Office of Administrative Law on March 10, 2010, and subsequently the USEPA. The Ocean Plan is applicable, in its entirety, to point source discharges to the Pacific Ocean. The Ocean Plan identifies beneficial uses of ocean waters of the State to be protected as summarized in Table 6, below.

Table 6. Ocean Plan Beneficial Uses

Discharge Point	Receiving Water	Beneficial Use(s)
001	Pacific Ocean	Industrial water supply Water contact recreation Non-contact recreation Navigation Commercial and sport fishing Mariculture Preservation and enhancement of designated Areas of Special Biological Significance (ASBS) Rare and endangered species Marine habitat Fish migration Fish spawning and shellfish harvesting

In Order to protect the beneficial uses, the Ocean Plan establishes water quality objectives and a program of implementation. Requirements of this Order implement the Ocean Plan.

- H. **Compliance Schedules and Interim Requirements.** The State Water Board adopted Resolution No. 2008-0025 on April 15, 2008, titled *Policy for Compliance Schedules in National Pollutant Discharge Elimination System Permits*. Under limited circumstances, this policy allows the Central Coast Water Board to grant a compliance schedule based on a discharger's request and demonstration that it is infeasible to comply immediately with certain effluent limits. This policy

became effective on August 27, 2008, superseding the Basin Plan's compliance schedule policy. This Order does not contain a compliance schedule or any interim effluent limits.

- I. **Alaska Rule.** On March 30, 2000, USEPA revised its regulation that specifies when new and revised state and tribal water quality standards become effective for CWA purposes [65 Fed. Reg. 24641 (April 27, 2000) (codified at 40 CFR 131.21)]. Under the revised regulation (also known as the Alaska Rule), new and revised standards submitted to USEPA after May 30, 2000, must be approved by USEPA before being used for CWA purposes. The final rule also provides that standards already in effect and submitted to USEPA by May 30, 2000, may be used for CWA purposes, whether or not approved by USEPA.
- J. **Stringency of Requirements for Individual Pollutants.** This Order contains both technology-based effluent limitations and WQBELs for individual pollutants. The technology-based effluent limitations consist of restrictions on carbonaceous biochemical oxygen demand (5-day @ 20°C) (CBOD), total suspended solids (TSS), oil and grease, and settleable solids. Derivation of these technology-based limitations is discussed in the Fact Sheet (Attachment F). This Order's technology-based pollutant restrictions implement the minimum applicable federal technology-based requirements. In addition, this Order contains effluent limitations more stringent than the minimum federal technology-based requirements as necessary to meet water quality standards.

WQBELs have been scientifically derived to implement WQOs that protect beneficial uses. The WQOs and beneficial uses implemented by this Order are contained in the Basin Plan and the 2009 Ocean Plan. These WQOs and beneficial uses are the applicable water quality standards pursuant to 40 CFR 131.21(c)(1) and have been approved pursuant to federal law. WQBELs for toxic pollutants are derived using procedures established by the Ocean Plan.

All beneficial uses and WQOs contained in the Basin Plan were approved under State law and submitted to USEPA prior to May 30, 2000. Any WQOs and beneficial uses submitted to USEPA prior to May 30, 2000, but not approved by USEPA before that date, are nonetheless "applicable water quality standards for the purposes of the CWA" pursuant to 40 CFR 131.21(c)(1). Collectively, this Order's restrictions on individual pollutants are no more stringent than required to implement the requirements of the CWA.

- K. **Antidegradation Policy.** NPDES regulations at 40 CFR 131.12 require that the State water quality standards include an antidegradation policy consistent with the federal policy. The State Water Board established California's antidegradation policy through State Water Board Resolution No. 68-16, which incorporates the federal antidegradation policy where the federal policy applies under federal law and requires that existing water quality be maintained unless degradation is justified based on specific findings. The Basin Plan implements, and incorporates by reference, both the State and federal antidegradation policies. As discussed in the Fact Sheet, the permitted discharge is consistent with the antidegradation provisions of 40 CFR 131.12 and State Water Board Resolution No. 68-16.
- L. **Anti-Backsliding Requirements.** CWA Sections 402(o)(2) and 303(d)(4) and NPDES regulations at 40 CFR 122.44(l) prohibit backsliding in NPDES permits. These anti-backsliding provisions require effluent limitations in a reissued permit to be as stringent as those in the previous permit, with some exceptions where limitations may be relaxed. As discussed in the Fact Sheet, the permitted discharge is consistent with the anti-backsliding requirements of the CWA and federal regulations.
- M. **Endangered Species Act.** This Order does not authorize any act that results in the taking of a threatened or endangered species or any act that is now prohibited, or becomes prohibited in the future, under either the California Endangered Species Act (Fish and Game Code Sections 2050 to 2097) or the federal Endangered Species Act (16 U.S.C.A. Sections 1531 to 1544). This Order requires compliance with effluent limits, receiving water limits, and other requirements to protect the

beneficial uses of waters of the State. The Discharger is responsible for meeting all requirements of applicable State and federal law pertaining to threatened and endangered species.

- N. Monitoring and Reporting.** NPDES regulations at 40 CFR 122.48 require that all NPDES permits specify requirements for recording and reporting monitoring results. CWC Sections 13267 and 13383 authorize the Central Coast Water Board to require technical and monitoring reports. The Monitoring and Reporting Program (MRP) establishes monitoring and reporting requirements to implement federal and State requirements. Attachment E contains the MRP.
- O. Standard and Special Provisions.** Attachment D contains standard provisions that apply to all NPDES permits in accordance with 40 CFR 122.41 and additional conditions that apply to specified categories of permits in accordance with 40 CFR 122.42. The Discharger must comply with all standard provisions and with those additional conditions that apply under 40 CFR 122.42. The Central Coast Water Board has also included in this Order special provisions that apply to the Discharger. The Fact Sheet (Attachment F) provides rationale for the special provisions contained in this Order.
- P. Provisions and Requirements Implementing State Law.** No provisions or requirements in this Order are included to implement State law only. All provisions and requirements are required or authorized under the federal CWA; consequently, violations of these provisions and requirements are subject to the enforcement remedies that are available for NPDES violations.
- Q. Notification of Interested Parties.** The Central Coast Water Board has notified the Discharger and interested agencies and persons of its intent to prescribe Waste Discharge Requirements for the discharge and has provided them with an opportunity to submit written comments and recommendations. The Fact Sheet provides notification details.
- R. Consideration of Public Comment.** The Central Coast Water Board, in a public meeting, heard and considered all comments pertaining to the discharge. The Fact Sheet provides public hearing details.

IT IS HEREBY ORDERED, that this Order supersedes and rescinds Order No. R2-2006-0084, except for enforcement purposes, and, in order to meet the provisions contained in Division 7 of the CWC (commencing with Section 13000) and regulations adopted thereunder and the federal CWA provisions and regulations and guidelines adopted thereunder, the Discharger shall comply with the requirements in this Order.

III. DISCHARGE PROHIBITIONS

- A.** The discharge of secondary treated wastewater to the Pacific Ocean at a location other than 34°24'48" N Latitude, 119°38'52" W Longitude is prohibited.
- B.** The discharge of any waste not specifically regulated by this Order, excluding storm water regulated by General Permit No. CAS000001 (Waste Discharge Requirements for Discharges of Storm Water Associated with Industrial Activities), is prohibited.
- C.** The dry weather average monthly rate of discharge to the Pacific Ocean shall not exceed 1.5 MGD.
- D.** The overflow or bypass of wastewater from the Discharger's collection, treatment, or disposal facilities and the subsequent discharge of untreated wastewater, except as provided for in Attachment D, Standard Provision I.G (Bypass), is prohibited.
- E.** Bypass of the treatment facility and discharge of wastewater not meeting this Order's discharge specification is prohibited.

- F. The discharge of any radiological, chemical, or biological warfare agent or high level radioactive waste to the Pacific Ocean is prohibited.
- G. The discharge of municipal or industrial waste sludge to the Pacific Ocean is prohibited. The discharge of sludge digester supernatant, without further treatment, directly to the Ocean or to a waste stream that discharges to the Pacific Ocean, is prohibited.
- H. The Discharge of materials and substances in the wastewater that result in the following are prohibited:
1. float or become floatable upon discharge;
 2. may form sediments which degrade benthic communities or other aquatic life;
 3. accumulate to toxic levels in marine waters, sediments or biota;
 4. decrease the natural light to benthic communities and other marine life; and
 5. result in aesthetically undesirable discoloration of the ocean surface.

IV. EFFLUENT LIMITATIONS AND DISCHARGE SPECIFICATIONS

A. Effluent Limitations – Discharge Point No. 001

1. Conventional and Non-Conventional Pollutants.

The Discharger shall maintain compliance with the following effluent limitations at Discharge Point No.001, with compliance measured at Monitoring Location EFF-001 as described in the attached Monitoring and Reporting Program (MRP) (Attachment E).

Table 7a. Effluent Limitations

Parameter	Units	Effluent Limitations		
		Average Monthly	Average Weekly	Maximum Daily
Carbonaceous Biochemical Oxygen Demand (5-day @ 20°C) (CBOD) ^[1]	mg/L	25	40	85
	lbs/day	310	500	1,100
Total Suspended Solids (TSS) ^[1]	mg/L	30	45	90
	lbs/day	380	560	1,100
Oil and Grease	mg/L	25	40	75
	lbs/day	310	500	940
Settleable Solids	mL/L	1.0	1.5	3.0
pH	s.u.	6.0 to 9.0 ^[2]		
Turbidity	NTU	75	100	225

^[1] The average monthly percent removal for CBOD and TSS shall not be less than 85 percent.

^[2] When the Discharger continuously monitors effluent pH, levels shall be maintained within specified ranges 99 percent of the time. To determine 99 percent compliance, the following conditions shall be met:

- The total time during which pH is outside the range of 6.0 to 9.0 shall not exceed 7 hours and 26 minutes in any calendar month;
- No single excursion from the range of 6.0 to 9.0 shall exceed 30 minutes;
- No single excursion shall fall outside the range of 6.0 – 9.0; and
- When continuous monitoring is not being performed, standard compliance guidelines shall be followed (i.e., between 6.0 to 9.0 at all times, measured daily).

2. Toxic Pollutants.

The Discharger shall maintain compliance with the following effluent limitations at Discharge Point No.001, with compliance measured at Monitoring Location EFF-001 as described in the attached Monitoring and Reporting Program (MRP) (Attachment E).

Table 7b. Effluent Limitations, Protection of Marine Aquatic Life

Parameter	Units	6-Month Median ^[1]	Daily Maximum ^[2]	Instantaneous Maximum ^[3]
Arsenic, Total Recoverable	µg/L	450	2,600	6,900
	lbs/day	5.7	33	87
Cadmium, Total Recoverable	µg/L	90	360	900
	lbs/day	1.1	4.5	11
Chromium (VI), Total Recoverable ^[4]	µg/L	180	720	1,800
	lbs/day	2.3	9.0	23
Mercury, Total Recoverable	µg/L	3.6	14	36
	lbs/day	0.039	0.17	0.44
Selenium, Total Recoverable	µg/L	1,400	5,400	14,000
	lbs/day	17	68	170
Silver, Total Recoverable	µg/L	49	240	620
	lbs/day	0.61	3.0	7.7
Cyanide, Total Recoverable ^[5]	µg/L	90	360	900
	lbs/day	1.1	4.5	11
Total Chlorine Residual	µg/L	180	720	5,400
	lbs/day	2.2	9.0	68
Phenolic Compounds (non-chlorinated) ^[6]	µg/L	2,700	11,000	27,000
	lbs/day	34	140	340
Acute Toxicity	TUa	--	3.0	--
Chlorinated Phenolics ^[7]	µg/L	90	360	900
	lbs/day	1.1	4.5	11
Endosulfan ^[8]	µg/L	0.81	1.6	2.4
	lbs/day	0.010	0.020	0.030
Endrin	µg/L	0.18	0.36	0.54
	lbs/day	0.0023	0.0045	0.0068
HCH ^[9]	µg/L	0.36	0.72	1.1
	lbs/day	0.0045	0.0090	0.014
Radioactivity	^[10]			

^[1] The six-month median shall apply as a moving median of daily values for any 180-day period in which daily values represent flow weighted average concentrations within a 24-hour period. For intermittent discharges, the daily value shall be considered equal to zero for days on which no discharge occurred. The six-month median limit on daily mass emissions shall be determined using the six-month median effluent concentration C_e and the observed flow rate, Q , in million gallons per day (MGD).

^[2] The daily maximum shall apply to flow weighted 24-hour composite samples. The daily maximum mass emission shall be determined using the daily maximum effluent concentration limit as C_e and the observed flow rate, Q , in MGD.

^[3] The instantaneous maximum shall apply to grab sample determinations.

^[4] The Discharger may, at their option, meet this limitation as a total chromium limitation.

^[5] If a Discharger can demonstrate to the satisfaction of the Central Coast Water Board (subject to USEPA approval) that an analytical method is available to reliably distinguish between strongly and weakly complexed cyanide, effluent limitations for cyanide may be met by the combined measurement

Parameter	Units	6-Month Median ^[1]	Daily Maximum ^[2]	Instantaneous Maximum ^[3]
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of free cyanide, simple alkali metal cyanides, and weakly complexed organometallic cyanide complexes. In order for the analytical method to be acceptable, the recovery of free cyanide from metal complexes must be comparable to that achieved by the approved method in 40 CFR 136.

[6] Non-chlorinated phenolic compounds represent the sum of 2,4-dimethylphenol; 4,6-dinitro-2-methylphenol;

; 2-methylphenol; 4-methylphenol; 2-nitrophenol; 4-nitrophenol, and phenol.

[7] Chlorinated phenolic compounds represent the sum of 4-chloro-3-methylphenol; 2-chlorophenol; pentachlorophenol; 2,4,5-trichlorophenol; and 2,4,6-trichlorophenol.

[8] Endosulfan represents the sum of alpha-endosulfan, beta-endosulfan, and endosulfan sulfate.

[9] HCH (hexachlorocyclohexane) represents the sum of the alpha, beta, gamma (Lindane), and delta isomers of hexachlorocyclohexane.

[10] Radioactivity is not to exceed limits specified in Title 17, Division 1, Chapter 5, Subchapter 4, Group 3, Article 3, Section 30253 of the California Code of Regulations. Reference to Section 30253 is prospective including future changes to incorporate provisions of federal law, as the changes take effect.

Table 7c. Effluent Limitations, Protection of Human Health – Non-Carcinogens

Parameter	Units	30-day Average
Acrolein	µg/L	20,000
	lbs/day	250
Antimony	µg/L	110,000
	lbs/day	1,400
Bis(2-Chloroethoxy)Methane	µg/L	400
	lbs/day	5.0
Bis(2-Chloroisopropyl)Ether	µg/L	110,000
	lbs/day	1,400
Chlorobenzene	µg/L	51,000
	lbs/day	640
Chromium (III)	µg/L	17,000,000
	lbs/day	210,000
Di-n-butyl Phthalate	µg/L	320,000
	lbs/day	3,900
Dichlorobenzenes	µg/L	460,000
	lbs/day	5,700
Diethyl Phthalate	µg/L	2,300,000
	lbs/day	37,000
Dimethyl Phthalate	µg/L	74,000,000
	lbs/day	920,000
4,6-Dinitro-2-Methylphenol	µg/L	20,000
	lbs/day	250
2,4-Dinitrophenol	µg/L	360
	lbs/day	4.5
Ethylbenzene	µg/L	370,000
	lbs/day	4,600
Fluoranthene	µg/L	1,400
	lbs/day	17

Parameter	Units	30-day Average
Hexachlorocyclopentadiene	µg/L	5,200
	lbs/day	65
Nitrobenzene	µg/L	440
	lbs/day	5.5
Thallium	µg/L	180
	lbs/day	2.3
Toluene	µg/L	7,700,000
	lbs/day	96,000
Tributyltin	µg/L	0.13
	lbs/day	0.0016
1,1,1-Trichloroethane	µg/L	49,000,000
	lbs/day	610,000

Table 7d. Effluent Limitations, Protection of Human Health – Carcinogens

Parameter	Units	30-day Average
Acrylonitrile	µg/L	9.0
	lbs/day	0.11
Aldrin	µg/L	0.0020
	lbs/day	0.000025
Benzene	µg/L	530
	lbs/day	6.6
Benzidine	µg/L	0.0062
	lbs/day	0.000078
Beryllium	µg/L	3.0
	lbs/day	0.037
Bis(2-Chloroethyl)Ether	µg/L	4.1
	lbs/day	0.051
Carbon Tetrachloride	µg/L	81
	lbs/day	1.0
Chlordane ^[1]	µg/L	0.0021
	lbs/day	0.000026
DDT ^[2]	µg/L	0.015
	lbs/day	0.00019
1,4-Dichlorobenzene	µg/L	1,600
	lbs/day	20
3,3'-Dichlorobenzidine	µg/L	0.73
	lbs/day	0.0091
1,2-Dichloroethane	µg/L	2,500
	lbs/day	32
1,1-Dichloroethylene	µg/L	81
	lbs/day	1.0
Dichloromethane	µg/L	41,000
	lbs/day	510

Parameter	Units	30-day Average
1,3-Dichloropropene	µg/L	800
	lbs/day	10
Dieldrin	µg/L	0.0036
	lbs/day	0.000045
2,4-Dinitrotoluene	µg/L	230
	lbs/day	2.9
1,2-Diphenylhydrazine	µg/L	14
	lbs/day	0.18
Heptachlor ^[3]	µg/L	0.0045
	lbs/day	0.000056
Heptachlor Epoxide	µg/L	0.0018
	lbs/day	0.000023
Hexachlorobenzene	µg/L	0.019
	lbs/day	0.00024
Hexachlorobutadiene	µg/L	1,300
	lbs/day	16
Hexachloroethane	µg/L	230
	lbs/day	2.8
Isophorone	µg/L	66,000
	lbs/day	820
N-Nitrosodimethylamine	µg/L	660
	lbs/day	8.2
N-nitrosodi-N-propylamine	µg/L	34
	lbs/day	0.43
N-Nitrosodiphenylamine	µg/L	230
	lbs/day	2.8
PAHs ^[4]	µg/L	0.79
	lbs/day	0.0099
PCBs ^[5]	µg/L	0.0017
	lbs/day	0.000021
TCDD Equivalents ^[6]	µg/L	3.5×10^{-7}
	lbs/day	4.4×10^{-9}
1,1,2,2-Tetrachloroethane	µg/L	210
	lbs/day	2.6
Tetrachloroethylene	µg/L	180
	lbs/day	2.3
Toxaphene	µg/L	0.019
	lbs/day	0.00024
Trichloroethylene	µg/L	2,400
	lbs/day	30
1,1,2-Trichloroethane	µg/L	850
	lbs/day	11
2,4,6-Trichlorophenol	µg/L	26
	lbs/day	0.33
Vinyl Chloride	µg/L	3,200
	lbs/day	41

Parameter	Units	30-day Average
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- [1] Chlordane shall mean the sum of chlordane-alpha, chlordane-gamma, nonachlor-alpha, nonachlor-gamma, and oxychlordane.
- [2] DDT shall mean the sum of 4,4'-DDT, 2,4'-DDT, 4,4'-DDE, 4,4'-DDD, and 2,4'-DDD.
- [3] Heptachlor shall mean the sum of heptachlor and heptachlor epoxide.
- [4] PAHS (Polynuclear aromatic hydrocarbons) shall mean the sum of acenaphthylene, anthracene, 1,2-benzanthracene, 3,4-benzofluoranthene, benzo(k)fluoranthene, 1,12-benzoperylene, benzo(a)pyrene, chrysene, dibenzo(a,h)anthracene, fluorene, indeno(1,2,3-cd)pyrene, phenanthrene, pyrene.
- [5] PCBs (polychlorinated biphenyls) shall mean the sum of chlorinated biphenyls whose analytical characteristics resemble those of Aroclor-1016, Aroclor-1221, Aroclor-1232, Aroclor-1242, Aroclor-1248, Aroclor-1254, and Aroclor-1260.
- [6] TCDD Equivalents shall mean the sum of those concentrations of chlorinated dibenzodioxins (2,3,7,8-CDDs) and chlorinated dibenzofurans (2,3,7,8-CDFs) multiplied by their respective toxicity factors, as listed in Appendix I of the Ocean Plan.

2. Dry Weather Flow. Effluent average dry weather flow shall not exceed a monthly average of 1.5 MGD.

3. Bacteria – Discharge Point No. 001

a. Total Coliform

- i. The total coliform concentrations shall not exceed a median of 23 MPN/100 mL as determined from the last 7 days of sampling results for which analyses have been completed;
- ii. No sample shall exceed 2,300 MPN/100 mL.

B. Land Discharge Effluent Limitations and Specifications – Not Applicable

C. Reclamation Specifications – Not Applicable

V. RECEIVING WATER LIMITATIONS

A. Surface Water Limitations

Receiving water limitations are based on WQOs contained in the Ocean Plan and Basin Plan and are a required part of this Order. These receiving water limitations are designed to minimize the influence of discharge to the receiving water. The discharge shall comply with the following receiving water limitations.

1. Bacterial Characteristics

Within a zone bounded by the shoreline and a distance of 1000 feet from the shoreline, including all kelp beds, the following bacterial objectives shall be maintained throughout the water column. The zone of initial dilution for ocean outfall is excluded.

- i. 30-day Geometric Mean – The following standards are based on the geometric mean of the five most recent samples from each site:
 - (a) Total coliform density shall not exceed 1,000 per 100 ml;
 - (b) Fecal coliform density shall not exceed 200 per 100 ml; and
 - (c) Enterococcus density shall not exceed 35 per 100 ml.
- ii. Single Sample Maximum:
 - (a) Total coliform density shall not exceed 10,000 per 100 ml;
 - (b) Fecal coliform density shall not exceed 400 per 100 ml;
 - (c) Enterococcus density shall not exceed 104 per 100 ml; and
 - (d) Total coliform density shall not exceed 1,000 per 100 ml when the fecal coliform/total coliform ratio exceeds 0.1.

2. Physical Characteristics

- a. Floating particulates and grease and oil shall not be visible on the ocean surface.
- b. The discharge of waste shall not cause aesthetically undesirable discoloration of the ocean surface.
- c. Natural light shall not be significantly reduced at any point outside the zone of initial dilution as the result of the discharge of waste.
- d. The rate of deposition of inert solids and the characteristics of inert solids in ocean sediments shall not be changed such that benthic communities are degraded.
- e. Temperature of the receiving water shall not be altered to adversely affect beneficial uses, as set forth in the Water Quality Control Plan for Control of Temperature in the Coastal and Interstate Waters and Enclosed Bays and Estuaries of California.

3. Chemical Characteristics

- a. The dissolved oxygen concentration shall not, at any time, be depressed more than 10 percent from that which occurs naturally, or fall below 5.0 mg/L, as the result of the discharge of oxygen demanding waste materials. The mean annual dissolved oxygen concentration shall not be less than 7.0 mg/L.
- b. The pH shall not be changed at any time more than 0.2 units from that which occurs naturally, and shall be within the range of 6.0 to 9.0 at all times.
- c. The dissolved sulfide concentrations of waters in and near sediments shall not be significantly increased above that present under natural conditions.
- d. The concentrations of substances set forth in Table B of the Ocean Plan shall not be increased in marine sediments to that which would degrade indigenous biota.

- e. The concentration of organic materials in marine sediments shall not be increased to that which would degrade marine life.
- f. Nutrient materials shall not cause objectionable aquatic growth or degrade indigenous biota.

3. Biological Characteristics

- a. Marine communities, including vertebrate, and plant species, shall not be degraded.
- b. The natural taste, odor, and color of fish, shellfish, or other marine resources used for human consumption shall not be altered.
- c. The concentration of organic materials in fish, shellfish, or other marine resources used for human consumption shall not bioaccumulate to levels that are harmful to human health.

4. Radioactivity

- a. Discharge of radioactive waste shall not degrade marine life.
- b. Radionuclides shall not be present in concentrations that are deleterious to human, plant, animal, or aquatic life; or result in the accumulation of radionuclides in the food web to an extent that presents a hazard to human, plant, animal, or aquatic life.

5. General Standards

- a. The discharge shall not cause a violation of any applicable WQO or standard for receiving waters adopted by the Central Coast Water Board or State Water Board, as required by the CWA and regulations adopted thereunder.
- b. Waste management systems that discharge to the ocean must be designed and operated in a manner that will maintain the indigenous marine life and a healthy and diverse marine community.
- c. Waste effluents shall be discharged in a manner that provides sufficient initial dilution to minimize the concentrations of substances not removed in the treatment.

B. Ground Water Limitations – Not Applicable

VI. PROVISIONS

A. Standard Provisions

- 1. **Federal Standard Provisions.** The Discharger shall comply with Federal Standard Provisions included in Attachment D of this Order.
- 2. **Central Coast Water Board Standard Provisions.** The Discharger shall comply with all Central Coast Water Board Standard Provisions included in Attachment D-1 of this Order.

B. MRP Requirements

The Discharger shall comply with the Monitoring and Reporting Program, and future revisions thereto, in Attachment E of this Order. All monitoring shall be conducted according to 40 CFR 136, *Guidelines Establishing Test Procedures for Analysis of Pollutants*.

C. Special Provisions

1. Reopener Provisions

This permit may be reopened and modified in accordance with NPDES regulations at 40 CFR 122 and 124, as necessary, to include additional conditions or limitations based on newly available information or to implement any USEPA approved, new, State WQO.

2. Special Studies, Technical Reports, and Additional Monitoring Requirements

a. Toxicity Reduction Requirements

As indicated in section V.C of the MRP, when acute toxicity is detected in the effluent above the effluent limitation, or chronic toxicity is detected above 90 TUC, the Discharger shall resample immediately, retest, and report the results to the Executive Officer, who will determine whether to initiate an enforcement action, require a Toxicity Reduction Evaluation (TRE) in accordance with the Discharger's TRE Workplan, or implement other measures.

A TRE is a study conducted in a step-wise process designed to identify the causative agents of effluent or ambient toxicity, isolate the sources of toxicity, evaluate the effectiveness of toxicity control options, and then confirm the reduction in toxicity. The first steps of the TRE consist of the collection of data relevant to the toxicity, including additional toxicity testing, an evaluation of facility operations and maintenance practices, and best management practices. A Toxicity Identification Evaluation (TIE) may be required as part of the TRE, if appropriate. A TIE is a set of procedures to identify the specific chemical(s) responsible for toxicity. These procedures are performed in three phases - characterization, identification, and confirmation using aquatic organism toxicity tests. The TRE shall include all reasonable steps to identify the source of toxicity. The Discharger shall take all reasonable steps to reduce toxicity to the required level once the source of toxicity is identified.

The Discharger shall maintain a TRE Workplan, which describes steps that the Discharger intends to follow in the event that a toxicity effluent limitation established by this Order is exceeded in the discharge. The workplan shall be prepared in accordance with current technical guidance and reference material, including:

- i. *Toxicity Reduction Evaluation Guidance for Municipal Wastewater Treatment Plants* (EPA/833/B-99-022).
- ii. *Toxicity Identification Evaluation, Phase I* (EPA/600/6-91/005F).
- iii. *Methods for Aquatic Toxicity Identification Evaluations, Phase II* (EPA/600/R-92/080).
- iv. *Methods for Aquatic Toxicity Identification Evaluations, Phase III* (EPA/600/R-92/081).

At a minimum, the TRE Workplan shall include:

- i. Actions that will be taken to investigate/identify the causes/sources of toxicity;
- ii. Actions that will be evaluated to mitigate the impact of the discharge, to correct the non-compliance, and/or to prevent the recurrence of acute or chronic toxicity (this list of action steps may be expanded, if a TRE is undertaken); and
- iii. A schedule under which these actions will be implemented.

When monitoring measures acute toxicity in the effluent above the limitation established by this Order, or 90 TUC for chronic toxicity, the Discharger shall resample immediately, and retest for acute or chronic toxicity. Results of an initial failed test and results of subsequent monitoring shall be reported to the Executive Officer as soon as possible following receipt of monitoring results, not to exceed 15 days from the conclusion of each test. The Executive Officer will determine whether to initiate enforcement action, whether to require the Discharger to implement a TRE, or to implement other measures. When the Executive Officer requires the Discharger to conduct a TRE, the TRE shall be conducted giving due consideration to guidance provided by the USEPA's Toxicity Reduction Evaluation Procedures, Phases 1, 2, and 3 (USEPA document Nos. EPA 600/R-91/003 and 600/6/91/005F, 600/R-92/080, and 600/R-92/081, respectively). A TRE, if necessary, shall be conducted in accordance with the following schedule.

Table 8. Toxicity Reduction Evaluation Schedule

Action Step	When Required
Take all reasonable measures necessary to immediately reduce toxicity, where the source is known.	Within 24 hours of identification of noncompliance.
Initiate the TRE in accordance to the Workplan.	Within 7 days of notification by the Executive Officer.
Conduct the TRE following the procedures in the Workplan.	Within the period specified in the Workplan (not to exceed one year, without an approved Workplan).
Submit the results of the TRE, including summary of findings, required corrective action, and all results and data.	Within 60 days of completion of the TRE.
Implement corrective actions to meet Permit limits and conditions.	To be determined by the Executive Officer.

3. Best Management Practices and Pollution Minimization Program

a. Pollutant Minimization Program (PMP)

The goal of the PMP is to reduce potential sources of Ocean Plan Table B toxic pollutants through pollutant minimization (control) strategies, including pollution prevention measures, to maintain effluent concentrations at or below the effluent limitation.

i. Determining the Need for a PMP

(a) The Discharger shall develop and implement a PMP if:

- (1) A calculated effluent limitation is less than the reported Minimum Level (ML);
- (2) The concentration of the pollutant is reported as DNQ; and,

- (3) There is evidence showing that the pollutant is present in the effluent above the calculated effluent limitation. Such evidence may include: health advisories for fish consumption; presence of whole effluent toxicity; results of benthic or aquatic organism tissue sampling; sample results from analytical methods more sensitive than methods included in the permit; and the concentration of the pollutant is reported as DNQ and the effluent limitation is less than the MDL.

(b) Alternatively, the Discharger shall develop and implement a PMP if:

- (1) A calculated effluent limitation is less than the Method Detection Limit (MDL);
- (2) The concentration of the pollutant is reported as ND; and,
- (3) There is evidence showing that the pollutant is present in the effluent above the calculated effluent limitation. Such evidence may include: health advisories for fish consumption; presence of whole effluent toxicity; results of benthic or aquatic organism tissue sampling; sample results from analytical methods more sensitive than methods included in the permit; and the concentration of the pollutant is reported as DNQ and the effluent limitation is less than the MDL.

ii. Elements of a PMP

A PMP shall include actions and submittals acceptable to the Central Coast Water Board including, but not limited to, the following.

- (a) An annual review and semiannual monitoring of potential sources of the reportable pollutant, which may include fish tissue monitoring and other bio-uptake sampling;
- (b) Quarterly monitoring for the reportable pollutant in influent to the wastewater treatment system;
- (c) Submittal of a control strategy designed to proceed toward the goal of maintaining concentrations of the reportable priority pollutant in the effluent at or below the calculated effluent limitation;
- (d) Implementation of appropriate cost-effective control measures for the pollutant, consistent with the control strategy;
- (e) An annual status report that shall be sent to the Executive Officer that includes:
 - (1) All PMP monitoring results for the previous year;
 - (2) A list of potential sources of the reportable pollutant;
 - (3) A summary of all actions taken in accordance with the control strategy; and,
 - (4) A description of actions to be taken in the following year.

4. Construction, Operation and Maintenance Specifications

The Facility shall be operated as specified under Standard Provision D of Attachment D.

5. Special Provisions for Municipal Facilities (POTWs Only)

a. Biosolids Management

- i. The handling, treatment, use, management, and disposal of sludge and solids derived from wastewater treatment must comply with applicable provisions of CWA Section 405 and USEPA regulations at 40 CFR Parts 257, 258, 501, and 503, including all monitoring, record keeping, and reporting requirements.
- ii. Sludge and wastewater solids must be disposed of in a municipal solid waste landfill, reused by land application, or disposed of in a sludge-only landfill in accordance with 40 CFR Parts 258 and 503 and Title 23, Chapter 15 of the CCR. If the Discharger desires to dispose of solids and/or sludge in a different manner, a request for permit modification must be submitted to the USEPA and to the Central Coast Water Board at least 180 days prior to beginning the alternative means of disposal.
- iii. Sludge that is disposed of in a municipal solid waste landfill must meet the requirements of 40 CFR Part 258 pertaining to providing information to the public. In the annual self-monitoring report, the Discharger shall include the amount of sludge placed in the landfill as well as the landfill to which it was sent.
- iv. All requirements of 40 CFR Part 503 and 23 CCR Chapter 15 are enforceable whether or not the requirements of those regulations are stated in an NPDES permit or any other permit issued to the Discharger.
- v. The Discharger shall take all reasonable steps to prevent and minimize any sludge use or disposal in violation of this Order that has a likelihood of adversely affecting human health or the environment.
- vi. Solids and sludge treatment, storage, and disposal or reuse shall not create a nuisance, such as objectionable odors or flies, and shall not result in ground water contamination.
- vii. The solids and sludge treatment and storage site shall have adequate facilities to divert surface water runoff from adjacent areas to protect the boundaries of the site from erosion, and to prevent drainage from the treatment and storage site. Adequate protection is defined as protection, at the minimum, from a 100-year storm and protection from the highest possible tidal stage that may occur.
- viii. The discharge of sewage sludge and solids shall not cause waste material to be in position where it is, or can be, conveyed from the treatment and storage sites and deposited in waters of the State.
- ix. The Discharger shall submit an annual report to the USEPA and the Central Coast Water Board containing monitoring results and pathogen and vector attraction reduction requirements, as specified by 40 CFR Part 503. The Discharger shall also report the quantity of sludge removed from the Facility and the disposal method. This self-monitoring report shall be submitted by February 19 of each year and report for the period of the previous calendar year.

b. Pretreatment Requirements – Not Applicable

6. Other Special Provisions

- a. **Discharges of Storm Water.** For the control of storm water discharged from the site of the wastewater treatment and disposal facilities, if applicable, the Discharger shall seek

authorization to discharge under and meet the requirements of the State Water Board's Water Quality Order 97-03-DWQ, NPDES General Permit No. CAS0000001, Waste Discharge Requirements for Discharges of Storm Water Associated with Industrial Activities Excluding Construction Activities.

- b. Statewide General Waste Discharge Requirements for Sanitary Sewer Systems (State Water Board Order No. 2006-0003-DWQ).** This General Permit, adopted on May 2, 2006, is applicable to all "federal and State agencies, municipalities, counties, districts, and other public entities that own or operate sanitary sewer systems greater than one mile in length that collect and/or convey untreated or partially treated wastewater to a publically owned treatment facility in the State of California." The purpose of the General Permit is to promote the proper and efficient management, operation, and maintenance of sanitary sewer systems and to minimize the occurrences and impacts of sanitary sewer overflows. The Discharger applied for coverage under the General Permit and must comply with its requirements.

7. Compliance Schedules – Not Applicable

VII. COMPLIANCE DETERMINATION

Compliance with the effluent limitations contained in section IV of this Order will be determined as specified below:

- A. General.** Compliance with effluent limitations for reportable pollutants shall be determined using sample reporting protocols defined in the MRP and Attachment A of this Order. For purposes of reporting and administrative enforcement by the Central Coast and State Water Boards, the Discharger shall be deemed out of compliance with effluent limitations if the concentration of the reportable pollutant in the monitoring sample is greater than the effluent limitation and greater than or equal to the reported Minimum Level (ML).
- B. Multiple Sample Data.** When determining compliance with a measure of central tendency (arithmetic mean, geometric mean, median, etc.) of multiple sample analyses and the data set contains one or more reported determinations of "Detected, but Not Quantified" (DNQ) or "Not Detected" (ND), the Discharger shall compute the median in place of the arithmetic mean in accordance with the following procedure:
1. The data set shall be ranked from low to high, ranking the reported ND determinations lowest, DNQ determinations next, followed by quantified values (if any). The order of the individual ND or DNQ determinations is unimportant.
 2. The median value of the data set shall be determined. If the data set has an odd number of data points, then the median is the middle value. If the data set has an even number of data points, then the median is the average of the two values around the middle unless one or both of the points are ND or DNQ, in which case the median value shall be the lower of the two data points where DNQ is lower than a value and ND is lower than DNQ.

ATTACHMENT A – DEFINITIONS

Arithmetic Mean (μ), also called the average, is the sum of measured values divided by the number of samples. For ambient water concentrations, the arithmetic mean is calculated as follows:

$$\text{Arithmetic mean} = \mu = \Sigma x / n$$

where: Σx is the sum of the measured ambient water concentrations, and n is the number of samples.

Average Monthly Effluent Limitation (AMEL): the highest allowable average of daily discharges over a calendar month, calculated as the sum of all daily discharges measured during a calendar month divided by the number of daily discharges measured during that month.

Average Weekly Effluent Limitation (AWEL): the highest allowable average of daily discharges over a calendar week (Sunday through Saturday), calculated as the sum of all daily discharges measured during a calendar week divided by the number of daily discharges measured during that week.

Bioaccumulative pollutants are those substances taken up by an organism from its surrounding medium through gill membranes, epithelial tissue, or from food and subsequently concentrated and retained in the body of the organism.

Carcinogenic pollutants are substances that are known to cause cancer in living organisms.

Coefficient of Variation (CV) is a measure of the data variability and is calculated as the estimated standard deviation divided by the arithmetic mean of the observed values.

Daily Discharge: Daily Discharge is defined as either: (1) the total mass of the constituent discharged over the calendar day (12:00 am through 11:59 pm) or any 24-hour period that reasonably represents a calendar day for purposes of sampling (as specified in this Order), for a constituent with limitations expressed in units of mass or; (2) the unweighted arithmetic mean measurement of the constituent over the day for a constituent with limitations expressed in other units of measurement (e.g., concentration).

The daily discharge may be determined by the analytical results of a composite sample taken over the course of one day (a calendar day or other 24-hour period defined as a day) or by the arithmetic mean of analytical results from one or more grab samples taken over the course of the day.

For composite sampling, if 1 day is defined as a 24-hour period other than a calendar day, the analytical result for the 24-hour period will be considered as the result for the calendar day in which the 24-hour period ends.

Detected, but Not Quantified (DNQ) are those sample results less than the RL, but greater than or equal to the laboratory's MDL.

Dilution Credit is the amount of dilution granted to a discharge in the calculation of a water quality-based effluent limitation, based on the allowance of a specified mixing zone. It is calculated from the dilution ratio or determined through conducting a mixing zone study or modeling of the discharge and receiving water.

Effluent Concentration Allowance (ECA) is a value derived from the water quality criterion/objective, dilution credit, and ambient background concentration that is used, in conjunction with the coefficient of variation for the effluent monitoring data, to calculate a long-term average (LTA) discharge concentration. The ECA has the same meaning as waste load allocation (WLA) as used in USEPA

guidance (Technical Support Document For Water Quality-based Toxics Control, March 1991, second printing, EPA/505/2-90-001).

Enclosed Bays means indentations along the coast that enclose an area of oceanic water within distinct headlands or harbor works. Enclosed bays include all bays where the narrowest distance between the headlands or outermost harbor works is less than 75 percent of the greatest dimension of the enclosed portion of San Francisco Bay. Enclosed bays include, but are not limited to, Humboldt Bay, Bodega Harbor, Tomales Bay, Drake's Estero, San Francisco Bay, Morro Bay, Los Angeles-Long Beach Harbor, Upper and Lower Newport Bay, Mission Bay, and San Diego Bay. Enclosed bays do not include inland surface waters or ocean waters.

Estimated Chemical Concentration is the estimated chemical concentration that results from the confirmed detection of the substance by the analytical method below the ML value.

Estuaries means waters, including coastal lagoons, located at the mouths of streams that serve as areas of mixing for fresh and ocean waters. Coastal lagoons and mouths of streams that are temporarily separated from the ocean by sandbars shall be considered estuaries. Estuarine waters shall be considered to extend from a bay or the open ocean to a point upstream where there is no significant mixing of fresh water and seawater. Estuarine waters include, but are not limited to, the Sacramento-San Joaquin Delta, as defined in California Water Code section 12220, Suisun Bay, Carquinez Strait downstream to the Carquinez Bridge, and appropriate areas of the Smith, Mad, Eel, Noyo, Russian, Klamath, San Diego, and Otay rivers. Estuaries do not include inland surface waters or ocean waters.

Inland Surface Waters are all surface waters of the State that do not include the ocean, enclosed bays, or estuaries.

Instantaneous Maximum Effluent Limitation: the highest allowable value for any single grab sample or aliquot (i.e., each grab sample or aliquot is independently compared to the instantaneous maximum limitation).

Instantaneous Minimum Effluent Limitation: the lowest allowable value for any single grab sample or aliquot (i.e., each grab sample or aliquot is independently compared to the instantaneous minimum limitation).

Maximum Daily Effluent Limitation (MDEL) means the highest allowable daily discharge of a pollutant, over a calendar day (or 24-hour period). For pollutants with limitations expressed in units of mass, the daily discharge is calculated as the total mass of the pollutant discharged over the day. For pollutants with limitations expressed in other units of measurement, the daily discharge is calculated as the arithmetic mean measurement of the pollutant over the day.

Median is the middle measurement in a set of data. The median of a set of data is found by first arranging the measurements in order of magnitude (either increasing or decreasing order). If the number of measurements (n) is odd, then the median = $X_{(n+1)/2}$. If n is even, then the median = $(X_{n/2} + X_{(n/2)+1})/2$ (i.e., the midpoint between the $n/2$ and $n/2+1$).

Method Detection Limit (MDL) is the minimum concentration of a substance that can be measured and reported with 99 percent confidence that the analyte concentration is greater than zero, as defined in title 40 of the Code of Federal Regulations, Part 136, Attachment B, revised as of July 3, 1999.

Minimum Level (ML) is the concentration at which the entire analytical system must give a recognizable signal and acceptable calibration point. The ML is the concentration in a sample that is equivalent to the concentration of the lowest calibration standard analyzed by a specific analytical

procedure, assuming that all the method specified sample weights, volumes, and processing steps have been followed.

Mixing Zone is a limited volume of receiving water that is allocated for mixing with a wastewater discharge where water quality criteria can be exceeded without causing adverse effects to the overall water body.

Not Detected (ND) are those sample results less than the laboratory's MDL.

Ocean Waters are the territorial marine waters of the State as defined by California law to the extent these waters are outside of enclosed bays, estuaries, and coastal lagoons. Discharges to ocean waters are regulated in accordance with the State Water Board's California Ocean Plan.

Persistent pollutants are substances for which degradation or decomposition in the environment is nonexistent or very slow.

Pollutant Minimization Program (PMP) means waste minimization and pollution prevention actions that include, but are not limited to, product substitution, waste stream recycling, alternative waste management methods, and education of the public and businesses. The goal of the PMP shall be to reduce all potential sources of a priority pollutant(s) through pollutant minimization (control) strategies, including pollution prevention measures as appropriate, to maintain the effluent concentration at or below the water quality-based effluent limitation. Pollution prevention measures may be particularly appropriate for persistent bioaccumulative priority pollutants where there is evidence that beneficial uses are being impacted. The Central Coast Water Board may consider cost effectiveness when establishing the requirements of a PMP. The completion and implementation of a Pollution Prevention Plan, if required pursuant to California Water Code section 13263.3(d), shall be considered to fulfill the PMP requirements.

Pollution Prevention means any action that causes a net reduction in the use or generation of a hazardous substance or other pollutant that is discharged into water and includes, but is not limited to, input change, operational improvement, production process change, and product reformulation (as defined in California Water Code section 13263.3). Pollution prevention does not include actions that merely shift a pollutant in wastewater from one environmental medium to another environmental medium, unless clear environmental benefits of such an approach are identified to the satisfaction of the State or Central Coast Water Board.

Reporting Level (RL) is the ML (and its associated analytical method) chosen by the Discharger for reporting and compliance determination from the MLs included in this Order. The MLs included in this Order correspond to approved analytical methods for reporting a sample result that are selected by the Central Coast Water Board either from Appendix 4 of the SIP in accordance with section 2.4.2 of the SIP or established in accordance with section 2.4.3 of the SIP. The ML is based on the proper application of method-based analytical procedures for sample preparation and the absence of any matrix interferences. Other factors may be applied to the ML depending on the specific sample preparation steps employed. For example, the treatment typically applied in cases where there are matrix-effects is to dilute the sample or sample aliquot by a factor of ten. In such cases, this additional factor must be applied to the ML in the computation of the RL.

Sanitary Sewer Overflow is any overflow, spill, release, discharge, or diversion of untreated or partially treated wastewater from a sanitary sewer system. Sanitary sewer overflows include: (1) overflows or releases of untreated or partially treated wastewater that reach waters of the United States; (2) overflows or releases of untreated or partially treated wastewater that do not reach waters of the United States; and (3) wastewater backups into buildings and on private property that are caused by blockages or flow conditions within the publically owned portion of a sanitary sewer system.

Satellite Collection System is the portion, if any, of a sanitary sewer system owned or operated by a different public agency than the agency that owns and operates the wastewater treatment facility that a sanitary sewer system is tributary to.

Source of Drinking Water is any water designated as municipal or domestic supply (MUN) in a Central Coast Water Board Basin Plan.

Standard Deviation (σ) is a measure of variability that is calculated as follows:

$$\sigma = (\sum[(x - \mu)^2]/(n - 1))^{0.5}$$

where:

x is the observed value;

μ is the arithmetic mean of the observed values; and

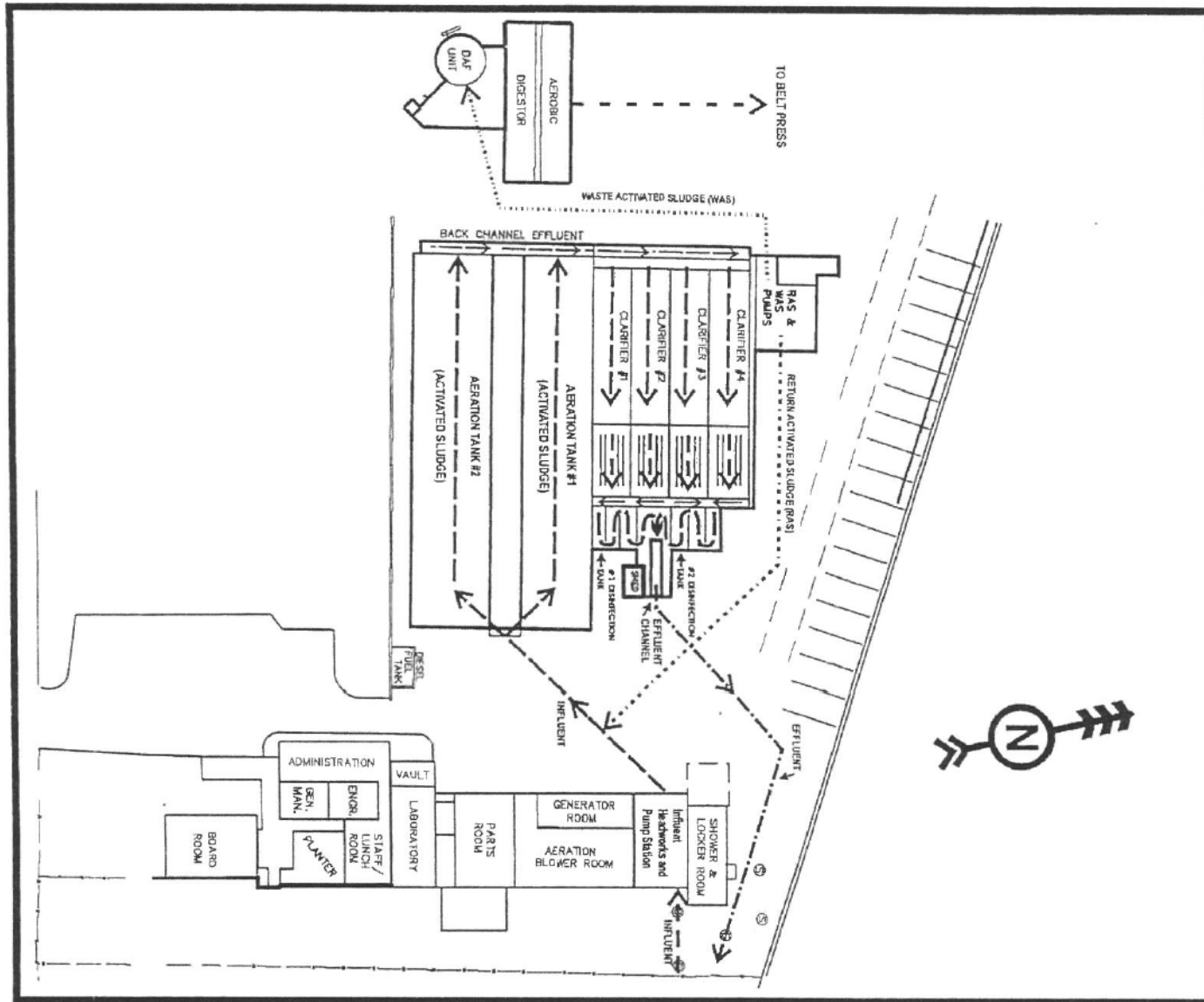
n is the number of samples.

Toxicity Reduction Evaluation (TRE) is a study conducted in a step-wise process designed to identify the causative agents of effluent or ambient toxicity, isolate the sources of toxicity, evaluate the effectiveness of toxicity control options, and then confirm the reduction in toxicity. The first steps of the TRE consist of the collection of data relevant to the toxicity, including additional toxicity testing, and an evaluation of facility operations and maintenance practices, and best management practices. A Toxicity Identification Evaluation (TIE) may be required as part of the TRE, if appropriate. (A TIE is a set of procedures to identify the specific chemical(s) responsible for toxicity. These procedures are performed in three phases (characterization, identification, and confirmation) using aquatic organism toxicity tests.)

ATTACHMENT B – FACILITY MAP



ATTACHMENT C – PROCESS FLOW DIAGRAM



ATTACHMENT D –STANDARD PROVISIONS

I. STANDARD PROVISIONS – PERMIT COMPLIANCE

A. Duty to Comply

1. The Discharger must comply with all of the conditions of this Order. Any noncompliance constitutes a violation of the Clean Water Act (CWA) and the California Water Code and is grounds for enforcement action, for permit termination, revocation and reissuance, or modification; or denial of a permit renewal application. (40 CFR § 122.41(a).)
2. The Discharger shall comply with effluent standards or prohibitions established under Section 307(a) of the CWA for toxic pollutants and with standards for sewage sludge use or disposal established under Section 405(d) of the CWA within the time provided in the regulations that establish these standards or prohibitions, even if this Order has not yet been modified to incorporate the requirement. (40 CFR § 122.41(a)(1).)

B. Need to Halt or Reduce Activity Not a Defense

It shall not be a defense for the Discharger in an enforcement action that it would have been necessary to halt or reduce the permitted activity in order to maintain compliance with the conditions of this Order. (40 CFR § 122.41(c).)

C. Duty to Mitigate

The Discharger shall take all reasonable steps to minimize or prevent any discharge or sludge use or disposal in violation of this Order that has a reasonable likelihood of adversely affecting human health or the environment. (40 CFR § 122.41(d).)

D. Proper Operation and Maintenance

The Discharger shall at all times properly operate and maintain all facilities and systems of treatment and control (and related appurtenances) which are installed or used by the Discharger to achieve compliance with the conditions of this Order. Proper operation and maintenance also includes adequate laboratory controls and appropriate quality assurance procedures. This provision requires the operation of backup or auxiliary facilities or similar systems that are installed by the Discharger only when necessary to achieve compliance with the conditions of this Order (40 CFR § 122.41(e)).

E. Property Rights

1. This Order does not convey any property rights of any sort or any exclusive privileges. (40 CFR § 122.41(g).)
2. The issuance of this Order does not authorize any injury to persons or property or invasion of other private rights, or any infringement of state or local law or regulations. (40 CFR § 122.5(c).)

F. Inspection and Entry

The Discharger shall allow the Central Coast Water Board, State Water Board, United States Environmental Protection Agency (USEPA), and/or their authorized representatives (including an

authorized contractor acting as their representative), upon the presentation of credentials and other documents, as may be required by law, to (40 CFR § 122.41(i); Wat. Code, § 13383):

1. Enter upon the Discharger's premises where a regulated facility or activity is located or conducted, or where records are kept under the conditions of this Order (40 CFR § 122.41(i)(1));
2. Have access to and copy, at reasonable times, any records that must be kept under the conditions of this Order (40 CFR § 122.41(i)(2));
3. Inspect and photograph, at reasonable times, any facilities, equipment (including monitoring and control equipment), practices, or operations regulated or required under this Order (40 CFR § 122.41(i)(3)); and
4. Sample or monitor, at reasonable times, for the purposes of assuring Order compliance or as otherwise authorized by the CWA or the Water Code, any substances or parameters at any location. (40 CFR § 122.41(i)(4).)

G. Bypass

1. Definitions
 - a. "Bypass" means the intentional diversion of waste streams from any portion of a treatment facility. (40 CFR § 122.41(m)(1)(i).)
 - b. "Severe property damage" means substantial physical damage to property, damage to the treatment facilities, which causes them to become inoperable, or substantial and permanent loss of natural resources that can reasonably be expected to occur in the absence of a bypass. Severe property damage does not mean economic loss caused by delays in production. (40 CFR § 122.41(m)(1)(ii).)
2. Bypass not exceeding limitations. The Discharger may allow any bypass to occur which does not cause exceedances of effluent limitations, but only if it is for essential maintenance to assure efficient operation. These bypasses are not subject to the provisions listed in Standard Provisions – Permit Compliance I.G.3, I.G.4, and I.G.5 below. (40 CFR § 122.41(m)(2).)
3. Prohibition of bypass. Bypass is prohibited, and the Central Coast Water Board may take enforcement action against the Discharger for bypass, unless (40 CFR § 122.41(m)(4)(i)):
 - a. Bypass was unavoidable to prevent loss of life, personal injury, or severe property damage (40 CFR § 122.41(m)(4)(i)(A));
 - b. There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate back-up equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass that occurred during normal periods of equipment downtime or preventive maintenance (40 CFR § 122.41(m)(4)(i)(B)); and
 - c. The Discharger submitted notice to the Central Coast Water Board as required under Standard Provisions – Permit Compliance I.G.5 below. (40 CFR § 122.41(m)(4)(i)(C).)

4. The Central Coast Water Board may approve an anticipated bypass, after considering its adverse effects, if the Central Coast Water Board determines that it will meet the three conditions listed in Standard Provisions – Permit Compliance I.G.3 above. (40 CFR § 122.41(m)(4)(ii).)
5. Notice
 - a. Anticipated bypass. If the Discharger knows in advance of the need for a bypass, it shall submit a notice, if possible at least 10 days before the date of the bypass. (40 CFR § 122.41(m)(3)(i).)
 - b. Unanticipated bypass. The Discharger shall submit notice of an unanticipated bypass as required in Standard Provisions - Reporting V.E below (24-hour notice). (40 CFR § 122.41(m)(3)(ii).)

H. Upset

Upset means an exceptional incident in which there is unintentional and temporary noncompliance with technology-based permit effluent limitations because of factors beyond the reasonable control of the Discharger. An upset does not include noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation. (40 CFR § 122.41(n)(1).)

1. Effect of an upset. An upset constitutes an affirmative defense to an action brought for noncompliance with such technology-based permit effluent limitations if the requirements of Standard Provisions – Permit Compliance I.H.2 below are met. No determination made during administrative review of claims that noncompliance was caused by upset, and before an action for noncompliance, is final administrative action subject to judicial review. (40 CFR § 122.41(n)(2).)
2. Conditions necessary for a demonstration of upset. A Discharger who wishes to establish the affirmative defense of upset shall demonstrate, through properly signed, contemporaneous operating logs or other relevant evidence that (40 CFR § 122.41(n)(3)):
 - a. An upset occurred and that the Discharger can identify the cause(s) of the upset (40 CFR § 122.41(n)(3)(i));
 - b. The permitted facility was, at the time, being properly operated (40 CFR § 122.41(n)(3)(ii));
 - c. The Discharger submitted notice of the upset as required in Standard Provisions – Reporting V.E.2.b below (24-hour notice) (40 CFR § 122.41(n)(3)(iii)); and
 - d. The Discharger complied with any remedial measures required under Standard Provisions – Permit Compliance I.C above. (40 CFR § 122.41(n)(3)(iv).)
3. Burden of proof. In any enforcement proceeding, the Discharger seeking to establish the occurrence of an upset has the burden of proof. (40 CFR § 122.41(n)(4).)

II. STANDARD PROVISIONS – PERMIT ACTION

A. General

This Order may be modified, revoked and reissued, or terminated for cause. The filing of a request by the Discharger for modification, revocation and reissuance, or termination, or a notification of planned changes or anticipated noncompliance does not stay any Order condition. (40 CFR § 122.41(f).)

B. Duty to Reapply

If the Discharger wishes to continue an activity regulated by this Order after the expiration date of this Order, the Discharger must apply for and obtain a new permit. (40 CFR § 122.41(b).)

C. Transfers

This Order is not transferable to any person except after notice to the Central Coast Water Board. The Central Coast Water Board may require modification or revocation and reissuance of this Order to change the name of the Discharger and incorporate such other requirements as may be necessary under the CWA and the Water Code. (40 CFR § 122.41(l)(3); § 122.61.)

III. STANDARD PROVISIONS – MONITORING

- A.** Samples and measurements taken for the purpose of monitoring shall be representative of the monitored activity. (40 CFR § 122.41(j)(1).)
- B.** Monitoring results must be conducted according to test procedures under Part 136 or, in the case of sludge use or disposal, approved under Part 136 unless otherwise specified in Part 503 unless other test procedures have been specified in this Order. (40 CFR § 122.41(j)(4); § 122.44(i)(1)(iv).)

IV. STANDARD PROVISIONS – RECORDS

- A.** Except for records of monitoring information required by this Order related to the Discharger's sewage sludge use and disposal activities, which shall be retained for a period of at least five years (or longer as required by Part 503), the Discharger shall retain records of all monitoring information, including all calibration and maintenance records and all original strip chart recordings for continuous monitoring instrumentation, copies of all reports required by this Order, and records of all data used to complete the application for this Order, for a period of at least three (3) years from the date of the sample, measurement, report or application. This period may be extended by request of the Central Coast Water Board Executive Officer at any time. (40 CFR § 122.41(j)(2).)
- B.** Records of monitoring information shall include:
 - 1. The date, exact place, and time of sampling or measurements (40 CFR § 122.41(j)(3)(i));
 - 2. The individual(s) who performed the sampling or measurements (40 CFR § 122.41(j)(3)(ii));
 - 3. The date(s) analyses were performed (40 CFR § 122.41(j)(3)(iii));
 - 4. The individual(s) who performed the analyses (40 CFR § 122.41(j)(3)(iv));
 - 5. The analytical techniques or methods used (40 CFR § 122.41(j)(3)(v)); and
 - 6. The results of such analyses. (40 CFR § 122.41(j)(3)(vi).)

C. Claims of confidentiality for the following information will be denied (40 CFR § 122.7(b)):

1. The name and address of any permit applicant or Discharger (40 CFR § 122.7(b)(1)); and
2. Permit applications and attachments, permits and effluent data. (40 CFR § 122.7(b)(2).)

V. STANDARD PROVISIONS – REPORTING

A. Duty to Provide Information

The Discharger shall furnish to the Central Coast Water Board, State Water Board, or USEPA within a reasonable time, any information which the Central Coast Water Board, State Water Board, or USEPA may request to determine whether cause exists for modifying, revoking and reissuing, or terminating this Order or to determine compliance with this Order. Upon request, the Discharger shall also furnish to the Central Coast Water Board, State Water Board, or USEPA copies of records required to be kept by this Order. (40 CFR § 122.41(h); Wat. Code, § 13267.)

B. Signatory and Certification Requirements

1. All applications, reports, or information submitted to the Central Coast Water Board, State Water Board, and/or USEPA shall be signed and certified in accordance with Standard Provisions – Reporting V.B.2, V.B.3, V.B.4, and V.B.5 below. (40 CFR § 122.41(k).)
2. All permit applications shall be signed by either a principal executive officer or ranking elected official. For purposes of this provision, a principal executive officer of a federal agency includes: (i) the chief executive officer of the agency, or (ii) a senior executive officer having responsibility for the overall operations of a principal geographic unit of the agency (e.g., Regional Administrators of USEPA). (40 CFR § 122.22(a)(3).)
3. All reports required by this Order and other information requested by the Central Coast Water Board, State Water Board, or USEPA shall be signed by a person described in Standard Provisions – Reporting V.B.2 above, or by a duly authorized representative of that person. A person is a duly authorized representative only if:
 - a. The authorization is made in writing by a person described in Standard Provisions – Reporting V.B.2 above (40 CFR § 122.22(b)(1));
 - b. The authorization specifies either an individual or a position having responsibility for the overall operation of the regulated facility or activity such as the position of plant manager, operator of a well or a well field, superintendent, position of equivalent responsibility, or an individual or position having overall responsibility for environmental matters for the company. (A duly authorized representative may thus be either a named individual or any individual occupying a named position.) (40 CFR § 122.22(b)(2)); and
 - c. The written authorization is submitted to the Central Coast Water Board and State Water Board. (40 CFR § 122.22(b)(3).)
4. If an authorization under Standard Provisions – Reporting V.B.3 above is no longer accurate because a different individual or position has responsibility for the overall operation of the facility, a new authorization satisfying the requirements of Standard Provisions – Reporting V.B.3 above must be submitted to the Central Coast Water Board and State Water Board prior to or together with any reports, information, or applications, to be signed by an authorized representative. (40 CFR § 122.22(c).)

5. Any person signing a document under Standard Provisions – Reporting V.B.2 or V.B.3 above shall make the following certification:

“I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations.” (40 CFR § 122.22(d).)

C. Monitoring Reports

1. Monitoring results shall be reported at the intervals specified in the Monitoring and Reporting Program (Attachment E) in this Order. (40 CFR § 122.22(l)(4).)
2. Monitoring results must be reported on a Discharge Monitoring Report (DMR) form or forms provided or specified by the Central Coast Water Board or State Water Board for reporting results of monitoring of sludge use or disposal practices. (40 CFR § 122.41(l)(4)(i).)
3. If the Discharger monitors any pollutant more frequently than required by this Order using test procedures approved under Part 136 or, in the case of sludge use or disposal, approved under Part 136 unless otherwise specified in Part 503, or as specified in this Order, the results of this monitoring shall be included in the calculation and reporting of the data submitted in the DMR or sludge reporting form specified by the Central Coast Water Board. (40 CFR § 122.41(l)(4)(ii).)
4. Calculations for all limitations, which require averaging of measurements, shall utilize an arithmetic mean unless otherwise specified in this Order. (40 CFR § 122.41(l)(4)(iii).)

D. Compliance Schedules

Reports of compliance or noncompliance with, or any progress reports on, interim and final requirements contained in any compliance schedule of this Order, shall be submitted no later than 14 days following each schedule date. (40 CFR § 122.41(l)(5).)

E. Twenty-Four Hour Reporting

1. The Discharger shall report any noncompliance that may endanger health or the environment. Any information shall be provided orally within 24 hours from the time the Discharger become aware of the circumstances. A written submission shall also be provided within five (5) days of the time the Discharger becomes aware of the circumstances. The written submission shall contain a description of the noncompliance and its cause; the period of noncompliance, including exact dates and times, and if the noncompliance has not been corrected, the anticipated time it is expected to continue; and steps taken or planned to reduce, eliminate, and prevent reoccurrence of the noncompliance. (40 CFR § 122.41(l)(6)(i).)
2. The following shall be included as information that must be reported within 24 hours under this paragraph (40 CFR § 122.41(l)(6)(ii)):
 - a. Any unanticipated bypass that exceeds any effluent limitation in this Order. (40 CFR § 122.41(l)(6)(ii)(A).)

- b. Any upset that exceeds any effluent limitation in this Order. (40 CFR § 122.41(l)(6)(ii)(B).)
3. The Central Coast Water Board may waive the above-required written report under this provision on a case-by-case basis if an oral report has been received within 24 hours. (40 CFR § 122.41(l)(6)(iii).)

F. Planned Changes

The Discharger shall give notice to the Central Coast Water Board as soon as possible of any planned physical alterations or additions to the permitted facility. Notice is required under this provision only when (40 CFR § 122.41(l)(1)):

1. The alteration or addition to a permitted facility may meet one of the criteria for determining whether a facility is a new source in section 122.29(b) (40 CFR § 122.41(l)(1)(i)); or
2. The alteration or addition could significantly change the nature or increase the quantity of pollutants discharged. This notification applies to pollutants that are not subject to effluent limitations in this Order. (40 CFR § 122.41(l)(1)(ii).)
3. The alteration or addition results in a significant change in the Discharger's sludge use or disposal practices, and such alteration, addition, or change may justify the application of permit conditions that are different from or absent in the existing permit, including notification of additional use or disposal sites not reported during the permit application process or not reported pursuant to an approved land application plan. (40 CFR § 122.41(l)(1)(iii).)

G. Anticipated Noncompliance

The Discharger shall give advance notice to the Central Coast Water Board or State Water Board of any planned changes in the permitted facility or activity that may result in noncompliance with General Order requirements. (40 CFR § 122.41(l)(2).)

H. Other Noncompliance

The Discharger shall report all instances of noncompliance not reported under Standard Provisions – Reporting V.C, V.D, and V.E above at the time monitoring reports are submitted. The reports shall contain the information listed in Standard Provision – Reporting V.E above. (40 CFR § 122.41(l)(7).)

I. Other Information

When the Discharger becomes aware that it failed to submit any relevant facts in a permit application, or submitted incorrect information in a permit application or in any report to the Central Coast Water Board, State Water Board, or USEPA, the Discharger shall promptly submit such facts or information. (40 CFR § 122.41(l)(8).)

VI. STANDARD PROVISIONS – ENFORCEMENT

- A. The Central Coast Water Board is authorized to enforce the terms of this Order under several provisions of the Water Code, including, but not limited to, sections 13385, 13386, and 13387.

VII. ADDITIONAL PROVISIONS – NOTIFICATION LEVELS

A. Publicly Owned Treatment Works (POTWs)

All POTWs shall provide adequate notice to the Central Coast Water Board of the following (40 CFR § 122.42(b)):

1. Any new introduction of pollutants into the POTW from an indirect discharger that would be subject to sections 301 or 306 of the CWA if it were directly discharging those pollutants (40 CFR § 122.42(b)(1)); and
2. Any substantial change in the volume or character of pollutants being introduced into that POTW by a source introducing pollutants into the POTW at the time of adoption of this Order. (40 CFR § 122.42(b)(2).)
3. Adequate notice shall include information on the quality and quantity of effluent introduced into the POTW as well as any anticipated impact of the change on the quantity or quality of effluent to be discharged from the POTW. (40 CFR § 122.42(b)(3).)

**ATTACHMENT D-1 - CENTRAL COAST WATER BOARD STANDARD PROVISIONS Central Coast
General Permit Conditions**

A. Central Coast Standard Provisions – Prohibitions

1. Introduction of "incompatible wastes" to the treatment system is prohibited.
2. Discharge of high-level radiological waste and of radiological, chemical, and biological warfare agents is prohibited.
3. Discharge of "toxic pollutants" in violation of effluent standards and prohibitions established under §307(a) of the Clean Water Act (CWA) is prohibited.
4. Discharge of sludge, sludge digester or thickener supernatant, and sludge drying bed leachate to drainageways, surface waters, or the ocean is prohibited.
5. Introduction of pollutants into the collection, treatment, or disposal system by an "indirect discharger" that:
 - a. Inhibit or disrupt the treatment process, system operation, or the eventual use or disposal of sludge; or,
 - b. Flow through the system to the receiving water untreated; and,
 - c. Cause or "significantly contribute" to a violation of any requirement of this Order, is prohibited.
6. Introduction of "pollutant free" wastewater to the collection, treatment, and disposal system in amounts that threaten compliance with this order is prohibited.

B. Central Coast Standard Provisions – Provisions

1. Collection, treatment, and discharge of waste shall not create a nuisance or pollution, as defined by California Water Code (CWC) §13050.
2. All facilities used for transport or treatment of wastes shall be adequately protected from inundation and washout as the result of a 100-year frequency flood.
3. Operation of collection, treatment, and disposal systems shall be in a manner that precludes public contact with wastewater.
4. Collected screenings, sludges, and other solids removed from liquid wastes shall be disposed in a manner approved by the Executive Officer.
5. Publicly owned wastewater treatment plants shall be supervised and operated by persons possessing certificates of appropriate grade pursuant to Title 23 of the California Administrative Code.
6. After notice and opportunity for a hearing, this order may be terminated for cause, including, but not limited to:
 - a. violation of any term or condition contained in this order;

- b. obtaining this order by misrepresentation, or by failure to disclose fully all relevant facts;
 - c. a change in any condition or endangerment to human health or environment that requires a temporary or permanent reduction or elimination of the authorized discharge; and,
 - d. a substantial change in character, location, or volume of the discharge.
7. Provisions of this permit are severable. If any provision of the permit is found invalid, the remainder of the permit shall not be affected.
8. After notice and opportunity for hearing, this order may be modified or revoked and reissued for cause, including:
- a. Promulgation of a new or revised effluent standard or limitation;
 - b. A material change in character, location, or volume of the discharge;
 - c. Access to new information that affects the terms of the permit, including applicable schedules;
 - d. Correction of technical mistakes or mistaken interpretations of law; and,
 - e. Other causes set forth under Sub-part D of 40 CFR Part 122.
9. Safeguards shall be provided to ensure maximal compliance with all terms and conditions of this permit. Safeguards shall include preventative and contingency plans and may also include alternative power sources, stand-by generators, retention capacity, operating procedures, or other precautions. Preventative and contingency plans for controlling and minimizing the affect of accidental discharges shall:
- a. identify possible situations that could cause "upset", "overflow" or "bypass", or other noncompliance. (Loading and storage areas, power outage, waste treatment unit outage, and failure of process equipment, tanks and pipes should be considered.)
 - b. evaluate the effectiveness of present facilities and procedures and describe procedures and steps to minimize or correct any adverse environmental impact resulting from noncompliance with the permit.
10. Physical Facilities shall be designed and constructed according to accepted engineering practice and shall be capable of full compliance with this order when properly operated and maintained. Proper operation and maintenance shall be described in an Operation and Maintenance Manual. Facilities shall be accessible during the wet-weather season.
11. The discharger shall at all times properly operate and maintain all facilities and systems of treatment and control (and related appurtenances) that are installed or used by the discharger to achieve compliance with the conditions of this order. Electrical and mechanical equipment shall be maintained in accordance with appropriate practices and standards, such as NFPA 70B, *Recommended Practice for Electrical Equipment Maintenance*; NFPA 70E, *Standard for Electrical Safety in the Workplace*; ANSI/NETA MTS *Standard for Maintenance: Testing Specifications for Electrical Power Equipment and Systems*, or procedures established by insurance companies or other industry resources.

12. If the discharger's facilities are equipped with SCADA or other systems that implement wireless, remote operation, the discharger should implement appropriate safeguards against unauthorized access to the wireless systems. Standards such as NIST SP 800-53, *Recommended Security Controls for Federal Information Systems*, can provide guidance.
13. Production and use of reclaimed water is subject to the approval of the Central Coast Board. Production and use of reclaimed water shall be in conformance with reclamation criteria established in Chapter 3, Title 22, of the California Administrative Code and Chapter 7, Division 7, of the CWC. An engineering report pursuant to section 60323, Title 22, of the California Administrative Code is required and a waiver or water reclamation requirements from the Central Coast Board is required before reclaimed water is supplied for any use, or to any user, not specifically identified and approved either in this Order or another order issued by this Board.

C. Central Coast Standard Provisions – General Monitoring Requirements

1. If results of monitoring a pollutant appear to violate effluent limitations based on a weekly, monthly, 30-day, or six-month period, but compliance or non-compliance cannot be validated because sampling is too infrequent, the frequency of sampling shall be increased to validate the test within the next monitoring period. The increased frequency shall be maintained until the Executive Officer agrees the original monitoring frequency may be resumed.

For example, if copper is monitored annually and results exceed the six-month median numerical effluent limitation in the permit, monitoring of copper must be increased to a frequency of at least once every two months (Central Coast Standard Provisions – Definitions I.G.13.). If suspended solids are monitored weekly and results exceed the weekly average numerical limit in the permit, monitoring of suspended solids must be increased to at least four (4) samples every week (Central Coast Standard Provisions – Definitions I.G.14.).

2. Water quality analyses performed in order to monitor compliance with this permit shall be by a laboratory certified by the State Department of Health Services (DHS) for the constituent(s) being analyzed. Bioassay(s) performed in order to monitor compliance with this permit shall be in accord with guidelines approved by the State Water Resources Control Board (State Water Board) and the State Department of Fish and Game. If the laboratory used or proposed for use by the discharger is not certified by the DHS or, where appropriate, the Department of Fish and Game due to restrictions in the State's laboratory certification program, the discharger shall be considered in compliance with this provision provided:
 - a. Data results remain consistent with results of samples analyzed by the Central Coast Water Board;
 - b. A quality assurance program is used at the laboratory, including a manual containing steps followed in this program that is available for inspections by the staff of the Central Coast Water Board; and,
 - c. Certification is pursued in good faith and obtained as soon as possible after the program is reinstated.
3. Samples and measurements taken for the purpose of monitoring shall be representative of the monitored activity. Samples shall be taken during periods of peak loading conditions.

Influent samples shall be samples collected from the combined flows of all incoming wastes, excluding recycled wastes. Effluent samples shall be samples collected downstream of the last treatment unit and tributary flow and upstream of any mixing with receiving waters.

4. All monitoring instruments and devices used by the discharger to fulfill the prescribed monitoring program shall be properly maintained and calibrated as necessary to ensure their continued accuracy.

E. Central Coast Standard Provisions – General Reporting Requirements

1. Reports of marine monitoring surveys conducted to meet receiving water monitoring requirements of the Monitoring and Reporting Program shall include at least the following information:
 - a. A description of climatic and receiving water characteristics at the time of sampling (weather observations, floating debris, discoloration, wind speed and direction, swell or wave action, time of sampling, tide height, etc.).
 - b. A description of sampling stations, including differences unique to each station (e.g., station location, grain size, rocks, shell litter, calcareous worm tubes, evident life, etc.).
 - c. A description of the sampling procedures and preservation sequence used in the survey.
 - d. A description of the exact method used for laboratory analysis. In general, analysis shall be conducted according to Central Coast Standard Provisions – C.1 above, and Federal Standard Provision – Monitoring III.B. However, variations in procedure are acceptable to accommodate the special requirements of sediment analysis. All such variations must be reported with the test results.
 - e. A brief discussion of the results of the survey. The discussion shall compare data from the control station with data from the outfall stations. All tabulations and computations shall be explained.
2. Reports of compliance or noncompliance with, or any progress reports on, interim and final requirements contained in any compliance schedule shall be submitted within 14 days following each scheduled date unless otherwise specified within the permit. If reporting noncompliance, the report shall include a description of the reason, a description and schedule of tasks necessary to achieve compliance, and an estimated date for achieving full compliance. A second report shall be submitted within 14 days of full compliance.
3. The “Discharger” shall file a report of waste discharge or secure a waiver from the Executive Officer at least 180 days before making any material change or proposed change in the character, location, or plume of the discharge.
4. Within 120 days after the discharger discovers, or is notified by the Central Coast Water Board, that monthly average daily flow will or may reach design capacity of waste treatment and/or disposal facilities within four (4) years, the discharger shall file a written report with the Central Coast Water Board. The report shall include:
 - a. the best estimate of when the monthly average daily dry weather flow rate will equal or exceed design capacity; and,

- b. a schedule for studies, design, and other steps needed to provide additional capacity for waste treatment and/or disposal facilities before the waste flow rate equals the capacity of present units.

In addition to complying with Federal Standard Provision – Reporting V.B., the required technical report shall be prepared with public participation and reviewed, approved and jointly submitted by all planning and building departments having jurisdiction in the area served by the waste collection, treatment, or disposal facilities.

5. All “Dischargers” shall submit reports electronically to the:

California Regional Water Quality Control Board
Central Coast Region
centralcoast@waterboards.ca.gov
895 Aerovista Place, Suite 101
San Luis Obispo, CA 93401-7906

In addition, “Dischargers” with designated major discharges shall submit a copy of each document to:

Regional Administrator
USEPA, Region 9
Attention: CWA Standards and Permits Office (WTR-5)
75 Hawthorne Street
San Francisco, California 94105

6. Transfer of control or ownership of a waste discharge facility must be preceded by a notice to the Central Coast Water Board at least 30 days in advance of the proposed transfer date. The notice must include a written agreement between the existing “Discharger” and proposed “Discharger” containing specific date for transfer of responsibility, coverage, and liability between them. Whether a permit may be transferred without modification or revocation and reissuance is at the discretion of the Board. If permit modification or revocation and reissuance is necessary, transfer may be delayed 180 days after the Central Coast Water Board's receipt of a complete permit application. Please also see Federal Standard Provision – Permit Action II.C.
7. Except for data determined to be confidential under CWA §308 (excludes effluent data and permit applications), all reports prepared in accordance with this permit shall be available for public inspection at the office of the Central Coast Water Board or Regional Administrator of USEPA. Please also see Federal Standard Provision – Records IV.C.
8. By January 30 of each year, the discharger shall submit an annual report to the Central Coast Water Board. The report shall contain the following:
 - a) Both tabular and graphical summaries of the monitoring data obtained during the previous year.
 - b) A discussion of the previous year's compliance record and corrective actions taken, or which may be needed, to bring the discharger into full compliance.
 - c) An evaluation of wastewater flows with projected flow rate increases over time and the estimated date when flows will reach facility capacity.
 - d) A discussion of operator certification and a list of current operating personnel and their grades of certification.

- e) The date of the facility's Operation and Maintenance Manual (including contingency plans as described in Provision B.9), the date the manual was last reviewed, and whether the manual is complete and valid for the current facility.
- f) A discussion of the laboratories used by the discharger to monitor compliance with effluent limits and a summary of performance relative to Section C, General Monitoring Requirements.
- g) If the facility treats industrial or domestic wastewater and there is no provision for periodic sludge monitoring in the Monitoring and Reporting Program, the report shall include a summary of sludge quantities, analyses of its chemical and moisture content, and its ultimate destination.
- h) If appropriate, the report shall also evaluate the effectiveness of the local source control or pretreatment program using the State Water Resources Control Board's "Guidelines for Determining the Effectiveness of Local Pretreatment Program."

F. Central Coast Standard Provisions – General Pretreatment Provisions

1. Discharge of pollutants by "indirect dischargers" in specific industrial sub-categories (appendix C, 40 CFR Part 403), where categorical pretreatment standards have been established, or are to be established, (according to 40 CFR Chapter 1, Subchapter N), shall comply with the appropriate pretreatment standards:
 - a. By the date specified therein;
 - b. Within three (3) years of the effective date specified therein, but in no case later than July 1, 1984; or,
 - c. If a new indirect discharger, upon commencement of discharge.

G. Central Coast Standard Provisions – Enforcement

1. Any person failing to file a report of waste discharge or other report as required by this permit shall be subject to a civil penalty not to exceed \$5,000 per day.
2. Upon reduction, loss, or failure of the treatment facility, the "Discharger" shall, to the extent necessary to maintain compliance with this permit, control production or all discharges, or both, until the facility is restored or an alternative method of treatment is provided.

H. Central Coast Standard Provisions – Definitions

(Not otherwise included in Attachment A to this Order)

1. A "composite sample" is a combination of no fewer than eight (8) individual samples obtained at equal time intervals (usually hourly) over the specified sampling (composite) period. The volume of each individual sample is proportional to the flow rate at the time of sampling. The period shall be specified in the Monitoring and Reporting Program ordered by the Executive Officer.
2. "Daily Maximum" limit means the maximum acceptable concentration or mass emission rate of a pollutant measured during a calendar day or during any 24-hour period reasonably representative of the calendar day for purposes of sampling. It is normally compared with results based on "composite samples" except for ammonia, total chlorine, phenolic

compounds, and toxicity concentration. For all exceptions, comparisons will be made with results from a "grab sample".

3. "Discharger", as used herein, means, as appropriate: (1) the Discharger, (2) the local sewerage entity (when the collection system is not owned and operated by the Discharger), or (3) "indirect discharger" (where "Discharger" appears in the same paragraph as "indirect discharger", it refers to the discharger.)
4. "Duly Authorized Representative" is one where:
 - a. the authorization is made in writing by a person described in the signatory paragraph of Federal Standard Provision V.B.;
 - b. the authorization specifies either an individual or the occupant of a position having either responsibility for the overall operation of the regulated facility, such as the plant manager, or overall responsibility for environmental matters of the company; and,
 - c. the written authorization was submitted to the Central Coast Water Board.
5. A "grab sample" is defined as any individual sample collected in less than 15 minutes. "Grab samples" shall be collected during peak loading conditions, which may or may not be during hydraulic peaks. It is used primarily in determining compliance with the daily maximum limits identified in Central Coast Standard Provision – Provision G.2. and instantaneous maximum limits.
6. "Hazardous substance" means any substance designated under 40 CFR Part 116 pursuant to Section 311 of the Clean Water Act.
7. "Incompatible wastes" are:
 - a. Wastes which create a fire or explosion hazard in the treatment works;
 - b. Wastes which will cause corrosive structural damage to treatment works, but in no case wastes with a pH lower than 5.0 unless the works is specifically designed to accommodate such wastes;
 - c. Solid or viscous wastes in amounts which cause obstruction to flow in sewers, or which cause other interference with proper operation of treatment works;
 - d. Any waste, including oxygen demanding pollutants (BOD, etc), released in such volume or strength as to cause inhibition or disruption in the treatment works and subsequent treatment process upset and loss of treatment efficiency; and,
 - e. Heat in amounts that inhibit or disrupt biological activity in the treatment works or that raise influent temperatures above 40°C (104°F) unless the treatment works is designed to accommodate such heat.
8. "Indirect Discharger" means a non-domestic discharger introducing pollutants into a publicly owned treatment and disposal system.
9. "Log Mean" is the geometric mean. Used for determining compliance of fecal or total coliform populations, it is calculated with the following equation:

$$\text{Log Mean} = (C_1 \times C_2 \times \dots \times C_n)^{1/n},$$

in which "n" is the number of days samples were analyzed during the period and any "C" is the concentration of bacteria (MPN/100 ml) found on each day of sampling. "n" should be five or more.

10. "Mass emission rate" is a daily rate defined by the following equations:

$$\text{mass emission rate (lbs/day)} = 8.34 \times Q \times C; \text{ and,}$$

$$\text{mass emission rate (kg/day)} = 3.79 \times Q \times C,$$

where "C" (in mg/L) is the measured daily constituent concentration or the average of measured daily constituent concentrations and "Q" (in MGD) is the measured daily flowrate or the average of measured daily flowrates over the period of interest.

11. The "Maximum Allowable Mass Emission Rate," whether for a month, week, day, or six-month period, is a daily rate determined with the formulas in paragraph G.10, above, using the effluent concentration limit specified in the permit for the period and the average of measured daily flows (up to the allowable flow) over the period.
12. "Maximum Allowable Six-Month Median Mass Emission Rate" is a daily rate determined with the formulas in Central Coast Standard Provision – Provision G.10, above, using the "six-month Median" effluent limit specified in the permit, and the average of measured daily flows (up to the allowable flow) over a 180-day period.
13. "Median" is the value below which half the samples (ranked progressively by increasing value) fall. It may be considered the middle value, or the average of two middle values.
14. "Monthly Average" (or "Weekly Average", as the case may be) is the arithmetic mean of daily concentrations or of daily mass emission rates over the specified 30-day (or 7-day) period.

$$\text{Average} = (X_1 + X_2 + \dots + X_n) / n$$

in which "n" is the number of days samples were analyzed during the period and "X" is either the constituent concentration (mg/l) or mass emission rate (kg/day or lbs/day) for each sampled day. "n" should be four or greater.

15. "Municipality" means a city, town, borough, county, district, association, or other public body created by or under State law and having jurisdiction over disposal of sewage, industrial waste, or other waste.
16. "Overflow" means the intentional or unintentional diversion of flow from the collection and transport systems, including pumping facilities.
17. "Pollutant-free wastewater" means inflow and infiltration, stormwaters, and cooling waters and condensates which are essentially free of pollutants.
18. "Primary Industry Category" means any industry category listed in 40 CFR Part 122, Appendix A.
19. "Removal Efficiency" is the ratio of pollutants removed by the treatment unit to pollutants entering the treatment unit. Removal efficiencies of a treatment plant shall be determined

using "Monthly averages" of pollutant concentrations (C, in mg/l) of influent and effluent samples collected about the same time and the following equation (or its equivalent):

$$C_{\text{Effluent}} \text{ Removal Efficiency (\%)} = 100 \times (1 - C_{\text{effluent}} / C_{\text{influent}})$$

20. "Severe property damage" means substantial physical damage to property, damage to treatment facilities which causes them to become inoperable, or substantial and permanent loss to natural resources which can reasonably be expected to occur in the absence of a "bypass". It does not mean economic loss caused by delays in production.
21. "Sludge" means the solids, residues, and precipitates separated from, or created in, wastewater by the unit processes of a treatment system.
22. To "significantly contribute" to a permit violation means an "indirect discharger" must:
 - a. Discharge a daily pollutant loading in excess of that allowed by contract with the "Discharger" or by Federal, State, or Local law;
 - b. Discharge wastewater which substantially differs in nature or constituents from its average discharge;
 - c. Discharge pollutants, either alone or in conjunction with discharges from other sources, which results in a permit violation or prevents sewage sludge use or disposal; or
 - d. Discharge pollutants, either alone or in conjunction with pollutants from other sources that increase the magnitude or duration of permit violations.
23. "Toxic Pollutant" means any pollutant listed as toxic under Section 307 (a) (1) of the Clean Water Act or under 40 CFR Part 122, Appendix D. Violation of maximum daily discharge limitations are subject to 24-hour reporting (Federal Standard Provisions V.E.).
24. "Zone of Initial Dilution" means the region surrounding or adjacent to the end of an outfall pipe or diffuser ports whose boundaries are defined through calculation of a plume model verified by the State Water Board.

ATTACHMENT E – MONITORING AND REPORTING PROGRAM

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ATTACHMENT E – MONITORING AND REPORTING PROGRAM (MRP)

The Code of Federal Regulations Section 122.48 requires that all NPDES permits specify monitoring and reporting requirements. Water Code sections 13267 and 13383 also authorize the Central Coast Water Quality Control Board (Central Coast Water Board) to require technical and monitoring reports. This MRP establishes monitoring and reporting requirements, which implement the federal and California regulations.

I. GENERAL MONITORING PROVISIONS

- A. Laboratories analyzing monitoring samples shall be certified by the California Department of Public Health (CDPH), in accordance with Water Code section 13176, and must include quality assurance/quality control data with their reports.
- B. Samples and measurements taken as required herein shall be representative of the volume and nature of the monitored discharge. All samples shall be taken at the monitoring locations specified below and, unless otherwise specified, before the monitored flow joins or is diluted by any other waste stream, body of water, or substance. Monitoring locations shall not be changed without notification to and approval of the Central Coast Water Board.
- C. Appropriate flow measurement devices and methods consistent with accepted scientific practices shall be selected and used to ensure the accuracy and reliability of measurements of the volume of monitored discharges. The devices shall be installed, calibrated, and maintained to ensure that the accuracy of the measurements is consistent with the accepted capability of that type of device. Devices selected shall be capable of measuring flows with a maximum deviation of less than ± 10 percent from true discharge rates throughout the range of expected discharge volumes. Guidance in selection, installation, calibration, and operation of acceptable flow measurement devices can be obtained from the following references.
 - 1. *A Guide to Methods and Standards for the Measurement of Water Flow*, U.S. Department of Commerce, National Bureau of Standards, NBS Special Publication 421, May 1975, 96 pp. (Available from the U.S. Government Printing Office, Washington, D.C. 20402. Order by SD Catalog No. C13.10:421.)
 - 2. *Water Measurement Manual*, U.S. Department of Interior, Bureau of Reclamation, Second Edition, Revised Reprint, 1974, 327 pp. (Available from the U.S. Government Printing Office, Washington D.C. 20402. Order by Catalog No. 172.19/2:W29/2, Stock No. S/N 24003-0027.)
 - 3. *Flow Measurement in Open Channels and Closed Conduits*, U.S. Department of Commerce, National Bureau of Standards, NBS Special Publication 484, October 1977, 982 pp. (Available in paper copy or microfiche from National Technical Information Services (NTIS) Springfield, VA 22151. Order by NTIS No. PB-273 535/5ST.)
 - 4. *NPDES Compliance Sampling Manual*, U.S. Environmental Protection Agency, Office of Water Enforcement, Publication MCD-51, 1977, 140 pp. (Available from the General Services Administration (8FFS), Centralized Mailing Lists Services, Building 41, Denver Federal Center, CO 80225.)
- D. All monitoring instruments and devices used by the Discharger to fulfill the prescribed monitoring program shall be properly maintained and calibrated as necessary to ensure their continued accuracy. All flow measurement devices shall be calibrated at least once per year to ensure continued accuracy of the devices.

- E. Monitoring results, including noncompliance, shall be reported at intervals and in a manner specified in this MRP.
- F. Unless otherwise specified by this MRP, all monitoring shall be conducted according to test procedures established at 40 CFR 136, *Guidelines Establishing Test Procedures for Analysis of Pollutants*. All analyses shall be conducted using the lowest practical quantitation limit achievable using the specified methodology. Where effluent limitations are set below the lowest achievable quantitation limits, pollutants not detected at the lowest practical quantitation limits will be considered in compliance with effluent limitations. Analysis for toxic pollutants specified in Table B of the California Ocean Plan shall be conducted in accordance with procedures described in the California Ocean Plan and restated in this MRP.

II. MONITORING LOCATIONS

The Discharger shall establish the following monitoring locations to demonstrate compliance with the effluent limitations, discharge specifications, and other requirements in this Order.

Table E-1. Monitoring Station Locations

Type of Sampling Location	Monitoring Location Name	Monitoring Location Description
Influent	INF-001 (formerly M-INF)	Influent wastewater at influent channel after influent grinders and approximately six feet from influent pumps intake.
Effluent	EFF-001 (formerly M-001)	Location where a representative sample of effluent discharged via the outfall to the Pacific Ocean can be obtained, prior to contact with receiving water flow.
Receiving Water	R-001	330 feet eastward and at the same depth as the outfall terminus.
Receiving Water	R-002	Westward and near the outfall terminus.
Receiving Water	R-003	330 feet westward and at the same depth as the outfall terminus.
Receiving Water	R-004	1,600 feet westward and at the same depth as the outfall terminus
Shore	R-00A	1,000 feet down coast (eastward along the coastline) from the outfall ^[1] .
Shore	R-00B	At the outfall in the surf.
Shore	R-00C	1,000 feet up coast (westward along the coastline) from the outfall ^[1] .

Footnotes to Table E-1

^[1] If the sample location is not accessible at 1,000 feet, then samples shall be collected at an accessible location as close as possible to the designated location.

III. INFLUENT MONITORING REQUIREMENTS

The Discharger shall monitor the influent to the individual treatment plants at INF-001 as follows.

Table E-2. Influent Monitoring

Parameter	Units	Sample Type	Minimum Sampling Frequency
Max Daily Flow	Million Gallons per Day (MGD)	Metered	1/Month
Mean Daily Flow	MGD	Calculated	1/Month
Total Daily Flow Volume	million gallons (MG)	Calculated	1/Day ^[1]
Carbonaceous Biochemical Oxygen Demand (5-day @ 20°C) (CBOD)	mg/L	C-24	1/Month ^[2]
Total Suspended Solids (TSS)	mg/L	C-24	1/Month ^[2]

Footnotes to Table E-2:**Units:**

MGD = million gallons per day

mg/L = milligrams per liter

µg/L = micrograms per liter

C-24 = 24-hour Composite

^[1] Continuous monitoring for flow and daily reporting.^[2] Monthly CBOD and TSS influent sampling shall be collected on one of the days CBOD sampling occurs at Monitoring Location EFF-001.**IV. EFFLUENT MONITORING REQUIREMENTS****A. Monitoring Location EFF-001**

The Discharger shall monitor the discharge at Monitoring Location EFF-001 as follows:

Table E-3. Effluent Monitoring Location EFF-001

Parameter	Units	Sample Type	Minimum Sampling Frequency
Max Daily Flow	MGD	Metered	1/Month
Mean Daily Flow	MGD	Calculated	1/Month
Total Daily Flow Volume	MG	Calculated	1/Day ^[1]
pH	s.u.	Grab	1/Day
Settleable Solids	mL/L	Grab	1/Day
Turbidity	NTU	Grab	1/Week
CBOD	mg/L	C-24	1/Week
	% removal	Calculated	1/Month
TSS	mg/L	C-24	1/Week
	% removal	Calculated	1/Month
Temperature	°F	Grab	1/Week
Oil and Grease	mg/L	Grab	1/Month
Ammonia (as N)	mg/L	Grab	1/Month
Total Residual Chlorine ^[3]	mg/L	Metered/Grab ^[4]	Continuous/Daily ^[4]
Total Chlorine Used	lbs/Day	Recorded	1/Day
Total Coliform Organisms ^[5]	MPN/100 mL	Grab	3/Week
Fecal Coliform Organisms ^[5]	MPN/100 mL	Grab	3/Week
Arsenic, Total Recoverable	µg/L	C-24	1/Year

Parameter	Units	Sample Type	Minimum Sampling Frequency
Cadmium, Total Recoverable	µg/L	C-24	1/Year
Chromium (VI), Total Recoverable	µg/L	C-24	1/Year
Mercury, Total Recoverable	µg/L	C-24	1/Year
Selenium, Total Recoverable	µg/L	C-24	1/Year
Silver, Total Recoverable	µg/L	C-24	1/Year
Acute Toxicity ^[1]	TUa	C-24	1/Year
Chronic Toxicity ^[1]	TUc	C-24	1/Year
Phenolic Compounds (Non-Chlorinated) ^[6]	µg/L	C-24	1/Year
Chlorinated Phenolics ^[7]	µg/L	C-24	1/Year
Endosulfan ^[8]	µg/L	C-24	1/Year
Endrin	µg/L	C-24	1/Year
Hexachlorocyclohexane (HCH) ^[9]	µg/L	C-24	1/Year
Acrolein - VOA 624	µg/L		1/Year
Antimony	µg/L	C-24	1/Year
Bis(2-chloroethoxy) methane	µg/L	C-24	1/Year
Bis(2-chloroisopropyl) ether	µg/L	C-24	1/Year
Chlorobenzene- VOA 624	µg/L	Grab	1/Year
Chromium (III)	µg/L	C-24	1/Year
Di-n-butyl phthalate	µg/L	C-24	1/Year
Dichlorobenzenes - VOA 624	µg/L	Grab	1/Year
Diethyl phthalate	µg/L	C-24	1/Year
Dimethyl phthalate	µg/L	C-24	1/Year
4,6-dinitro-2-methylphenol	µg/L	C-24	1/Year
2,4-dinitrophenol	µg/L	C-24	1/Year
Ethylbenzene - VOA 624	µg/L	Grab	1/Year
Fluoranthene	µg/L	C-24	1/Year
Hexachlorocyclopentadiene	µg/L	C-24	1/Year
Nitrobenzene	µg/L	C-24	1/Year
Thallium	µg/L	C-24	1/Year
Toluene - VOA 624	µg/L	Grab	1/Year
Tributyltin	µg/L	C-24	1/Year
1,1,1-trichloroethane - VOA 624	µg/L	Grab	1/Year
Acrylonitrile	µg/L	Grab	1/Year
Aldrin	µg/L	C-24	1/Year
Benzene	µg/L	Grab	1/Year
Benzidine	µg/L	C-24	1/Year
Beryllium	µg/L	C-24	1/Year
Bis(2-chloroethyl) ether	µg/L	C-24	1/Year
Bis(2-ethylhexyl) phthalate	µg/L	C-24	1/Year
Chlordane ^[10]	µg/L	C-24	1/Year
Chlorodibromomethane	µg/L	Grab	1/Year

Parameter	Units	Sample Type	Minimum Sampling Frequency
Chloroform	µg/L	Grab	1/Year
DDT ^[11]	µg/L	C-24	1/Year
1,4-dichlorobenzene	µg/L	Grab	1/Year
3,3'-dichlorobenzidine	µg/L	C-24	1/Year
1,2-dichloroethane	µg/L	Grab	1/Year
1,1-dichloroethylene	µg/L	Grab	1/Year
Dichlorobromomethane	µg/L	Grab	1/Year
Dichloromethane	µg/L	Grab	1/Year
1,3-dichloropropene	µg/L	Grab	1/Year
Dieldrin	µg/L	C-24	1/Year
2,4-dinitrotoluene	µg/L	C-24	1/Year
1,2-diphenylhydrazine	µg/L	C-24	1/Year
Heptachlor ^[12]	µg/L	C-24	1/Year
Heptachlor epoxide	µg/L	C-24	1/Year
Hexachlorobenzene	µg/L	C-24	1/Year
Hexachloroethane	µg/L	C-24	1/Year
Isophorone	µg/L	C-24	1/Year
N-nitrosodimethylamine	µg/L	C-24	1/Year
N-nitrosodi-N-propylamine	µg/L	C-24	1/Year
PAHs ^[13]	µg/L	C-24	1/Year
PCBs ^[14]	µg/L	C-24	1/Year
TCDD equivalents ^[15]	µg/L	C-24	1/Year
1,1,2,2-tetrachloroethane	µg/L	Grab	1/Year
Tetrachloroethylene	µg/L	Grab	1/Year
Toxaphene	µg/L	C-24	1/Year
Trichloroethylene	µg/L	Grab	1/Year
1,1,2-trichloroethane	µg/L	Grab	1/Year
2,4,6-trichlorophenol	µg/L	C-24	1/Year
Vinyl chloride	µg/L	Grab	1/Year
Table B Parameters ^[2]	--	C-24 ^[16]	1/Year

Parameter	Units	Sample Type	Minimum Sampling Frequency
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Footnotes to Table E-3:

Units:

MGD	= million gallons per day
mg/L	= milligrams per liter
s.u.	= standard units
MPN/100 mL	= Most probable number/100 mL
°F	= degree Fahrenheit
µg/L	= micrograms per liter
C-24	= 24-hour composite

- [1] Acute and chronic toxicity monitoring shall be conducted according to methods described in Section V of this MRP, below.
- [2] The Table B pollutants are those listed in the 2009 Ocean Plan and for which monitoring requirements have not been otherwise specified in Table E-3. These pollutants shall be monitored one time per year. Analyses, compliance determination, and reporting for these pollutants shall adhere to applicable provisions of the 2009 Ocean Plan. The Discharger shall instruct its analytical laboratory to establish calibration standards so that the Minimum Levels (MLs) presented in Appendix II of the SIP are the lowest calibrated standards. The Discharger and its analytical laboratory shall select MLs that are below applicable water quality objectives of the Ocean Plan; when applicable water quality criteria are below all MLs, the Discharger and its analytical laboratory shall select the lowest ML.
- [3] The Discharger shall notify the Central Coast Water Board, Department of Public Health, and any mariculture grower as soon as possible when there is a loss of disinfection or if three consecutive total effluent coliform bacteria tests exceed 2,300 MPN/100 mL.
- [4] The Discharger shall review continuous monitoring data and submit a summary (chlorine residual daily minimum, maximum, mean) to the Central Coast Water Board with monthly monitoring reports. Grab samples shall be taken daily and collected at the last accessible monitoring location before discharge to the ocean.
- [5] For all bacterial analyses, sample dilutions should be performed so the range of bacterial density values extends from 2 to 16,000 MPN/100 mL. The detection methods used for each analysis shall be reported with the results of the analysis. Detection methods used for bacterial analyses shall be those presented in Table 1A of 40 CFR 136, unless alternate methods have been approved in advance by USEPA.
- [6] Non-chlorinated phenolic compounds represent the sum of 2,4-dimethylphenol; 4,6-dinitro-2-methylphenol; 2,3-dinitrophenol; 2-methylphenol; 4-methylphenol; 2-nitrophenol; 4-nitrophenol, and phenol.
- [7] Chlorinated phenolic compounds represent the sum of 4-chloro-3-methylphenol; 2-chlorophenol; pentachlorophenol; 2,4,5-trichlorophenol; and 2,4,6-trichlorophenol.
- [8] Endosulfan represents the sum of alpha-endosulfan, beta-endosulfan, and endosulfan sulfate.
- [9] HCH (hexachlorocyclohexane) represents the sum of the alpha, beta, gamma (Lindane), and delta isomers of hexachlorocyclohexane.
- [10] Chlordane shall mean the sum of chlordane-alpha, chlordane-gamma, nonachlor-alpha, nonachlor-gamma, and oxychlordane.
- [11] DDT shall mean the sum of 4,4'-DDT, 2,4'-DDT, 4,4'-DDE, 4,4'-DDD, and 2,4'-DDD.
- [12] Heptachlor shall mean the sum of heptachlor and heptachlor epoxide.
- [13] PAHS (Polynuclear aromatic hydrocarbons) shall mean the sum of acenaphthylene, anthracene, 1,2-benzanthracene, 3,4-benzofluoranthene, benzo(k)fluoranthene, 1,12-benzoperylene, benzo(a)pyrene, chrysene, dibenzo(a,h)anthracene, fluorene, indeno(1,2,3-cd)pyrene, phenanthrene, pyrene.
- [14] PCBs (polychlorinated biphenyls) shall mean the sum of chlorinated biphenyls whose analytical characteristics resemble those of Aroclor-1016, Aroclor-1221, Aroclor-1232, Aroclor-1242, Aroclor-1248, Aroclor-1254, and Aroclor-1260.
- [15] TCDD Equivalents shall mean the sum of those concentrations of chlorinated dibenzodioxins (2,3,7,8-CDDs) and chlorinated dibenzofurans (2,3,7,8-CDFs) multiplied by their respective toxicity factors, as listed in Appendix I of the Ocean Plan.
- [16] Cyanide may be collected as a grab sample instead of by 24 hour composite.

V. WHOLE EFFLUENT TOXICITY TESTING REQUIREMENTS

A. Whole Effluent Acute Toxicity – Monitoring Location EFF-001

Compliance with acute toxicity objective shall be determined using a U.S. Environmental Protection Agency (USEPA) approved method protocol as provided in 40 CFR 136 (*Methods for Measuring the Acute Toxicity of Effluents and Receiving Waters to Freshwater and Marine Organisms*, Fifth Edition, USEPA Office of Water, EPA-821-R-02-012 (2002) or the latest edition).

Acute Toxicity (TUa) = 100/96-hr LC 50.

LC 50 (percent waste giving 50% survival of test organisms) shall be determined by 96-hour static or continuous flow bioassay techniques using Silversides (*Menidia beryllina*), however other approved standard marine test species as specified in EPA-821-R-02-012 and as noted in the following table may be used with sufficient justification by the Discharger and approval by the Executive Officer.

Table E-4. Approved Tests – Acute Toxicity

Species	Scientific Name	Effect	Test Duration
shrimp	<i>Holmesimysis costata</i>	survival	48 or 96 hours
shrimp	<i>Mysidopsis bahia</i>	survival	48 or 96 hours
silversides	<i>Menidia beryllina</i>	survival	48 or 96 hours
sheepshead minnow	<i>Cyprinodon variegatus</i>	survival	48 or 96 hours

If the effluent is to be discharged to a marine or estuarine system (e.g., salinity values in excess of 1,000 mg/L) originates from a freshwater supply, salinity of the effluent must be increased with dry ocean salts (e.g., FORTY FATHOMS®) to match salinity of the receiving water. This modified effluent shall then be tested using marine species.

Reference toxicant test results shall be submitted with the effluent sample test results. Both tests must satisfy the test acceptability criteria specified in EPA-821-R-02-012. If the test acceptability criteria are not achieved or if toxicity is detected, the sample shall be retaken and retested within 5 days of the failed sampling event. The retest results shall be reported in accordance with EPA-821-R-02-012 (chapter on report preparation) and the results shall be attached to the next monitoring report.

When it is not possible to measure the 96-hour LC 50 due to greater than 50 percent survival of the test species in 100 percent waste, the toxicity concentration shall be calculated by the expression:

$$TUa = [\log(100 - S)]/1.7$$

where S = percentage survival in 100% waste.

If $s > 99$, TUa shall be reported as zero.

When toxicity monitoring finds acute toxicity in the effluent above the limitation established by the Order, the Discharger shall immediately resample the effluent, if the discharge is continuing, and retest for acute toxicity. Results of the initial failed test and any toxicity monitoring results subsequent to the failed test shall be reported as soon as reasonable to the Executive Officer (EO). The EO will determine whether to initiate enforcement action, whether to require the

Discharger to implement toxicity reduction evaluation (TRE) requirements (section VI.C.2.a of the Order), or to implement other measures.

B. Whole Effluent Chronic Toxicity – Monitoring Location EFF-001

The presence of chronic toxicity shall be estimated as specified in *Short Term Methods for Estimating the Chronic Toxicity of Effluents and Receiving Waters to West Coast Marine and Estuarine Organisms*, EPA-821/600/R-95/136; *Short Term Methods for Estimating the Chronic Toxicity of Effluents and Receiving Waters to Marine and Estuarine Organisms*, EPA-600-4-91-003; *Procedures Manual for Conducting Toxicity Tests developed by the Marine Bioassay Project*, SWRCB 1996, 96-1WQ; and/or *Short Term Methods for Estimating the Chronic Toxicity of Effluents and Receiving Waters to Marine and Estuarine Organisms*, EPA/600/4-87-028 or subsequent editions.

Chronic toxicity measures a sub lethal effect (e.g., reduced growth or reproduction) to experimental test organisms exposed to an effluent compared to that of the control organisms.

Chronic Toxicity (TU_c) = 100/NOEL

The no observed effect concentration (NOEC) is the maximum tested concentration in a medium which does not cause known adverse effects upon chronic exposure in the species in question (i.e. the highest effluent concentration to which organisms are exposed in a chronic test that causes no observable adverse effects on the test organisms; (e.g., the highest concentration of a toxicant to which the values for the observed responses are not statistically significantly different from the controls). Examples of chronic toxicity include but are not limited to measurements of toxicant effects on reproduction, growth, and sublethal effects that can include behavioral, physiological, and biochemical effects.

In accordance with the 2009 Ocean Plan, Appendix III, *Standard Monitoring Procedures*, the Discharger shall use the critical life stage toxicity tests specified in the table below to measure TU_c. Other species or protocols will be added to the list after State Water Resources Control Board review and approval.

A minimum of three test species with approved test protocols shall be used to measure compliance with the toxicity limitation. If possible, the test species shall include a fish, an invertebrate, and an aquatic plant. After a screening period of no fewer than three sampling events, monitoring can be reduced to the most sensitive species. Dilution and control water should be obtained from an unaffected area of the receiving waters. The sensitivity for the test organisms to a reference toxicant shall be determined concurrently with each bioassay test and reported with the test results.

Table E-5. Approved Tests – Chronic Toxicity

Species	Test	Tier ^[1]	Reference ^[2]
Giant Kelp, <i>Macrocystis pyrifera</i>	percent germination; germ tube length	1	a, c
Red abalone, <i>Haliotis rufescens</i>	abnormal shell development	1	a, c
Oyster, <i>Crassostrea gigas</i> ; mussels, <i>Mytilus</i> spp.	abnormal sell development; percent survival	1	a, c
Urchin, <i>Strongylocentrotus purpuratus</i> ; sand dollar, <i>Dendraster excentricus</i>	percent normal development; percent fertilization	1	a, c
Shrimp, <i>Homesimysis costata</i>	percent survival; growth	1	a, c
Shrimp, <i>Menidia beryllina</i>	percent survival; fecundity	2	b, d
Topsmelt, <i>Atherinops affinis</i>	larval growth rate; percent survival	1	a, c

Silverside, <i>Menidia beryllina</i>	larval growth rate; percent survival	2	b, d
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^[1] First tier methods are preferred for compliance monitoring. If first tier organisms are not available, the Discharger can use a second tier test method following approval by the Regional Water Board

^[2] Protocol References:

- a. Chapman, G.A., D.L. Denton, and J.M. Lazorchak. 1995. Short-term Methods for Estimating the Chronic Toxicity of Effluents and Receiving Waters to West Coast Marine and Estuarine Organisms. U.S. EPA Report No. EPA/600/R-95/136
- b. Klemm, D.J., G.E. Morrison, T.J. Norberg-King, W.J. Peltier, and M.A. Heber. 1994. Short-term Methods for Estimating the Chronic Toxicity of Effluents and Receiving Water to Marine and Estuarine Organisms. U.S. EPA Report No. EPA-600-4-91-003.
- c. SWRCB 1996. Procedures Manual for Conducting Toxicity Tests Developed by the Marine Bioassay Project. 96-1WQ.
- d. Webber, C.I., W.B. Horning II, D.J. Klemm, T.W. Nieheisel, P.A. Lewis, E.L. Robinson, J. Menkedick and F. Kessler (eds). 1998. Short-term methods for estimating the chronic toxicity of effluents and receiving waters to marine and estuarine organisms. EPA/600/4-87/028.

Dilution and control waters shall be obtained from an area of the receiving waters, typically upstream, which is unaffected by the discharge. Standard dilution water can be used, if the receiving water itself exhibits toxicity or if approved by the Central Coast Water Board. If the dilution water used in testing is different from the water in which the test organisms were cultured, a second control sample using culture water shall be tested.

If the effluent to be discharged to a marine or estuarine system (e.g., salinity values in excess of 1,000 mg/L) originates from a freshwater supply, salinity of the effluent must be increased with dry ocean salts (e.g., FORTY FATHOMS®) to match salinity of the receiving water. This modified effluent shall then be tested using marine species.

The presence of chronic toxicity at more than 90 TUc shall trigger the Toxicity Reduction Evaluation (TRE) requirement of this Order (section VI.C.2.a).

C. Accelerated Monitoring Requirements

1. When acute toxicity is detected in the effluent above the effluent limitation established by this Order or when the chronic toxicity effluent limitation of 90 TUc is exceeded during regular toxicity monitoring, and the testing meets all test acceptability criteria, the Discharger shall resample immediately and confirm the effluent toxicity. If the retest results in acute toxicity greater than the effluent limitation, or chronic toxicity greater than 90 TUc, the Discharger shall initiate accelerated monitoring.
2. Accelerated monitoring frequency consists of performing six toxicity tests (one per week) in a six-week period following the first failed test result, or as otherwise instructed by the Executive Officer. Test results shall be submitted to the Central Coast Water Board within 15 days of the conclusion of each test.
3. Unless otherwise specified by the Executive Officer, if the implementation of the generic Toxicity Reduction Evaluation (TRE) work plan indicates the source of the exceedance of the toxicity trigger (for instance, a temporary plant upset), then only one additional test is necessary. If exceedance of the acute toxicity effluent limitation or a chronic toxicity result of 90 TUc is detected in this test, the Discharger shall continue with accelerated monitoring requirements or implement the Toxicity Identification and Toxicity Reduction Evaluations.

4. Unless otherwise specified by the Executive Officer, if none of the six accelerated tests indicates exceedance of the acute toxicity effluent limitation or chronic toxicity of 90 TUC or greater, then the Discharger may return to the normal bioassay testing frequency.

D. Conducting Toxicity Identification Evaluations (TIE) and Toxicity Reduction Evaluations (TRE)

1. A TRE shall be implemented by the Discharger as specified by the Executive Officer. A TIE may be required as part of the TRE.
2. The TIE shall be conducted to identify and evaluate toxicity in accordance with procedures recommended by the United States Environmental Protection Agency (USEPA) which include the following:
 - a. Toxicity Identification Evaluation: Characterization of Chronically Toxic Effluents, Phase I, (USEPA, 1992a);
 - b. Methods for Aquatic Toxicity Identification Evaluations: Phase I Toxicity Characterization Procedures, Second Edition (USEPA, 1991a);
 - c. Methods for Aquatic Toxicity Identification Evaluations: Phase II Toxicity Identification Procedures for Sampling Exhibiting Acute and Chronic Toxicity (USEPA, 1993a); and
 - d. Methods for Aquatic Toxicity Identification Evaluations: Phase III Toxicity Confirmation Procedures for Samples Exhibiting Acute and Chronic Toxicity (USEPA, 1993b).
3. As part of the TIE investigation, the Discharger shall be required to implement its TRE work plan. The Discharger shall take all reasonable steps to control toxicity once the source of the toxicity is identified. A failure to conduct required toxicity tests or a TRE within a designated period may result in the establishment of numerical effluent limitations for chronic toxicity in a permit or appropriate enforcement action. Recommended guidance in conducting a TRE includes the following:
 - a. *Toxicity Reduction Evaluation Guidance for Municipal Wastewater Treatment Plants*, August 1999, EPA/833B-99/002; and
 - b. *Clarifications Regarding Toxicity Reduction and Identification Evaluations in the National Pollutant Discharge Elimination System Program* dated March 27, 2001, USEPA Office of Wastewater Management, Office of Regulatory Enforcement.

E. Toxicity Reporting

1. The Discharger shall include a full report of toxicity test results with the regular monthly monitoring report and include the following information.
 - a. toxicity test results,
 - b. dates of sample collection and initiation of each toxicity test, and
 - c. and/or toxicity discharge limitations (or value).
2. Toxicity test results shall be reported according to the appropriate guidance - *Methods for Measuring the Acute Toxicity of Effluents and Receiving Waters to Freshwater and Marine*

Organisms, Fifth Edition, USEPA Office of Water, PA821-R-02-012 (2002) or the latest edition, or, EPA-821-R-02-012 (2002) or subsequent editions.

3. If the initial investigation TRE workplan is used to determine that additional (accelerated) toxicity testing is unnecessary, these results shall be submitted with the monitoring report for the month in which investigations conducted under the TRE workplan occurred.
4. Within 14 days of receipt of a chronic toxicity test result which exceeds 90 TUc, the Discharger shall provide written notification to the Executive Officer of:
 - a. Findings of the TRE or other investigation to identify the cause(s) of toxicity,
 - b. Actions the Discharger has taken/will take, to mitigate the impact of the discharge and to prevent the recurrence of toxicity. When corrective actions, including TRE, have not been completed, a schedule under which corrective actions will be implemented, or the reason for not taking corrective action, if no action has been taken.

When corrective actions, including a TRE, have not been completed, a schedule under which corrective actions will be implemented, or the reason for not taking corrective action, if no action has been taken, will be completed.

VI. LAND DISCHARGE MONITORING REQUIREMENTS – NOT APPLICABLE

VII. RECLAMATION MONITORING REQUIREMENTS – NOT APPLICABLE

VIII. RECEIVING WATER MONITORING REQUIREMENTS

A. Near-Shore Monitoring – R-00A, R-00B, and R-00C

The Discharger shall monitor the ocean at Monitoring Locations R-00A, R-00B, and R-00C. The Discharger shall, to the best of its ability, conduct shore monitoring during dry weather or at least three days after a significant rain event. The Executive Officer may grant a discretionary exception to this sampling requirement during extreme rain events where receiving water sampling is unlikely to provide data representative of the Discharger's effluent. The Discharger shall conduct effluent total coliform, fecal coliform, and *Enterococcus* sampling during such events or the subsequent period of its influence on receiving waters. Once shore stations sampling can resume, effluent sampling may return to its regular schedule according to the Order.

Table E-4. Near-Shore Monitoring at Monitoring Locations R-00A, R-00B, and R-00C

Parameter	Units	Sample Type	Minimum Sampling Frequency
Total Coliform Bacteria	MPN/100 mL	Grab	[1], [2]
Fecal Coliform	MPN/100 mL	Grab	[1], [2]
<i>Enterococcus</i> Bacteria	MPN/100 mL	Grab	[1], [2]
Standard Observations	--	--	[1], [3]

Parameter	Units	Sample Type	Minimum Sampling Frequency
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^[1] If three consecutive effluent monitoring samples at Monitoring Location EFF-001 for total coliform bacteria exceed 2,300 CFU/100 mL, then the Discharger shall conduct monitoring for total and fecal coliform, Enterococcus, and standard observations at Monitoring Locations R-00A, R-00B, and R-00C. The Discharger shall collect no fewer than five samples from each station over a 30-day period, with the sampling frequency evenly spaced throughout the period. Sampling shall continue until effluent bacteria concentrations return to compliance. The sampling results shall be submitted to the Central Coast Water Board within 14 days of each sampling event.

If a single sample exceeds any of the single sample maximum receiving water limitations established in section V.A.1.ii of the Order, repeat sampling at that location shall be conducted to determine the extent and persistence of the exceedance. Repeat sampling shall be conducted within 24 hours of receiving analytical results and continued until the sample result is less than the single sample maximum receiving water limitation or until the source of the high bacterial densities has been identified and positively determined to not be caused or contributed to by discharge of effluent by the Facility.

When repeat sampling is required because of an exceedance of any one single sample maximum, values from all samples collected during that 30-day period will be used to determine compliance with the 30-day geometric mean receiving water limitations in section V.A.3.i of the Order.

^[2] For all bacterial analyses, sample dilutions shall be performed so the range of values extends from 2 to 16,000/100 mL. Dilutions shall be conducted in accordance with the requirements of Appendix III of the Ocean Plan. Detection methods used shall be those presented in the most recent edition of the *Standard Methods for the Examination of Water and Wastewater*, or any improved method determined appropriate by the Central Coast Water Board and USEPA.

^[3] Standard observations shall include observation of wind (direction and speed), weather (e.g., cloudy, sunny, rainy), the quantity of rainfall precipitated over the previous seven day period, sea conditions, longshore currents (e.g., directions), and tidal conditions (e.g., high, slack, or low tide). Observations of water discoloration, floating oil and grease, turbidity, odor, materials of sewage origin in the water or on the beach, and temperature (°C) shall be recorded and reported.

B. Bottom Sediment Monitoring – R-001, R-002, R-003, and R-004

In 2014, the Discharger shall monitor ocean sediments at Monitoring Locations R-001, R-002, R-003, and R-004 as follows:

Table E-5. Near-Shore Monitoring at Monitoring Locations R-00A, R-00B, R-00C

Parameter	Units
Sulfides (at pH 7)	mg/kg
Particle Size Distribution ^[1]	--
Organic Matter (Volatile Solids or Total Organic Carbon)	mg/kg
Total Kjeldahl Nitrogen	mg/kg
Arsenic	mg/kg
Cadmium	mg/kg
Total Chromium	mg/kg
Hexavalent Chromium	mg/kg
Copper	mg/kg
Lead	mg/kg
Mercury	mg/kg
Nickel	mg/kg
Iron	mg/kg
Silver	mg/kg
Zinc	mg/kg

^[1] Includes the percent retained on No. 200 sieve and/or laser diffraction analysis.

The following procedures shall be carried out for sampling and analyzing ocean bottom sediments:

1. Duplicate samples shall be taken at each station and shall be analyzed and reported separately. Samples may be taken either by divers using non-contaminating samplers or by a surface-operated grab sampler which will obtain a relatively undisturbed sample. If the surface-operated grab sampler is used a sub-sample (uncontaminated by the sampler) should be taken from the grab. In either case, the top five centimeters of material shall be used for analyses. Enough cores shall be taken at each station to provide sufficient sediment material for the required duplicate analyses.
2. The contractor shall locate and mark the outfall terminus before beginning station locations and sampling. Reliance on charts or as-built plans will not suffice.
3. Control stations have been selected in areas that should provide similar sediments at similar depths to the outfall stations. If the contractor encounters rocks or gravel at a station, he shall reposition the station, as necessary, to obtain a usable sediment sample. Station location changes shall be described in the final report.
4. Samples shall be placed in airtight polyethylene containers. Care shall be taken to ensure the containers are completely filled by the samples and air bubbles are not trapped in the containers. A separate sub-sample for sulfide analysis shall be placed in small (100-200 mL), wide-mouth bottle and preserved with zinc acetate. The preservative must be carefully mixed with the sediment sample. The samples shall be stored immediately at 2 to 4 °C and not be frozen or dried. Total sample storage time shall not exceed two weeks. For bacterial analysis, storage time should not exceed 6 to 8 hours. Bacterial analysis should be performed prior to preservation.
5. When processing for analyses, macrofauna and remnants should be removed, taking care to avoid contamination.
6. Chemical extractions are to be run for 24 hours with dilute HCl (0.5 N) using guidelines recommended by the State Water Resources Control Board. Subsequent analyses shall be conducted in accordance with the current edition of *Guidelines Establishing Test Procedures for Analysis of Pollutants*, promulgated by the United States Environmental Protection Agency. Any variations must be reported with the test results.
7. Results shall be expressed on a dry-weight basis.
8. Results shall be compared between outfall and reference areas using standard statistical techniques. Data shall be compared in its raw form, and chemical results are to be normalized to the clay fraction, which is the percent by weight passing the No. 200 sieve, as follows:

Normalized Result = (Raw Result) / (The Percent of Clay as a Decimal)

C. Benthic Monitoring – R-001, R-002, R-003, and R-004

1. At the same time as the ocean bottom sediment sampling in 2014 (per section VIII.B, above), the Discharger shall monitor benthic biota at Monitoring Locations R-001, R-002, R-003, and R-004. At least four samples will be taken at each monitoring location. The samples shall be taken by mechanical grab or qualified diver biologists utilizing three-pound

coffee cans (or similar) with both ends cut out. The cans are to be pushed into the sediment full length, the top capped, surrounding sediment dug away, and the bottom capped. During collection, water temperature shall be recorded at three-meter depth intervals, and at the surface and bottom.

2. The sample shall be processed by washing it through a one-millimeter (1 mm) sieve.
3. The sample should then be preserved in 75 percent alcohol or other applicable preservative. The material may be stained with Rose Bengal.
4. Coeleterates, polychaetes, macrocrustaceans, mollusks, ectoprocts, and echinoderms shall be identified to species or at least to genus. All others shall be identified to the lowest taxon possible. All specimens shall be counted to provide information on abundance. Species abundance lists shall be presented with data reduced to standard area (sq. meter) and standard volume (liter).
5. For data from each sampling period, the following basic statistical analyses shall, as a minimum, be performed and reported:
 - a. The mean, median, range, standard deviation, and 95 percent confidence limits of the species abundance data reduced to standard area and volume.
 - b. Information theory species diversity index value:

$$H = -\sum_{i=1}^n (n_i / N) \log(n_i / N)$$

For each replicate sample at each station and for the station as a whole (i.e., pooling data from all replicates for the station during one survey). In addition, the station mean, range, and standard deviation shall be calculated from the replicate index values.

- c. The infaunal index, dominance index, and distributional statistics on “dominant” species as developed by the Southern California Coastal Water Research Project (SCCWRP) shall be calculated for each station. SCCWRP should be contacted for the latest species list and formula required.
6. The names and qualifications of persons identifying this material shall be indicated in all data reports. Furthermore, type collections shall be established for the various groups. All material shall be saved and stored for future reference. Material may be discharged after four years.
7. The final report on community analyses shall include a complete discussion of survey results and possible influence of the outfall on the marine communities in the study area. The discussion should be based on statistical evidence developed in section VIII.C.5, above, and on similarity analysis and cluster analysis of the data. It should include an analysis of natural community variation including effects of different oceanic seasons and water temperatures, which could influence the validity of study results.

IX. OTHER MONITORING REQUIREMENTS

A. Ocean Outfall Inspection

At least once per year the Discharger shall visually inspect the entire outfall and diffuser structure (e.g., divers, dye study) to note its structural integrity and any cracks, breaks, leaks, plugged ports, or other actual or potential malfunctions. The outfall inspections will also check for possible external blockage of ports by sand and/or silt deposition. The Discharger shall report all finding and actions, including any observed cracks, breaks, or malfunctions to the Executive Officer in the applicable annual report. The month for inspection specified by the Discharger shall be a month of good underwater visibility.

B. Biosolids Monitoring, Reporting, and Notification – BIO-001

1. A representative sample of residual biosolids as obtained from the last point in the handling process shall be analyzed for the constituents and at the frequencies discussed below. The biosolids analyzed shall be a composite sample of a minimum of twelve discrete sub-samples (grab samples) taken at equal time intervals over a typical dewatering operational period up to 24 hours, and from the last representative point in the solids handling process before disposal (e.g., from the dewatered biosolids conveyor belt). The sample shall be documented to show it representative of biosolids from the Facility.

Biosolids shall be tested for the metals required in 40 CFR 503.16 (for land application) or Section 503.26 (for surface disposal), using the methods in *Test Methods for Evaluating Solid Waste, Physical/Chemical Methods* (EPA Publication SW-846, all applicable editions and updates), as required in 503.8(b)(4), at the minimum frequencies established in those 40 CFR sections (current frequencies shown below).

Table E-6. Biosolids Monitoring Frequency

Amount ¹ (dry metric tons per 365-day period)	Frequency ²
Greater than zero but less than 290	1/Year
Equal to or greater than 290 but less than 1,500	1/Quarter
Equal to or greater than 1,500 but less than 15,000	6/Year (Once per 60 days)
Greater than 15,000	1/Month

^[1] For Land Application: Either the amount of bulk biosolids applied to the land or the amount prepared for sale or give-away in a bag or other container for application to the land (dry weight basis). If the Discharger's biosolids are directly land applied without further treatment by another preparer, biosolids shall also be tested for organic-N, ammonium-N, and nitrate-N at the frequencies required above.

For Surface Disposal: Amount of biosolids placed on an active sewage sludge unit (dry weight basis).

^[2] Test results shall be expressed in mg pollutant per kg biosolids on a 100% dry weight basis.

The Discharger shall monitor biosolids annually until data collected over a 365 day period establishes a new basis for monitoring frequency pursuant to 40 CFR 503. Biosolids monitoring requirements are summarized in Table E-9 below.

For accumulated, previously untested biosolids, the Discharger shall develop a representative sampling plan, including number and location of sampling points, and collect representative samples.

All constituents shall be analyzed for total concentrations for comparison with total threshold limit concentration (TTLC) criteria. The Waste Extraction Test shall be performed on any constituent when the total concentration of the waste exceeds ten times the soluble threshold limit concentration limit for that substance. [California Code of Regulations, Title 22, Division 4.5, Chapter 11, Article 3]

Table E-7. Biosolids Monitoring Requirements

Parameter	Units	Sample Type	Minimum Sampling Frequency
Quantity Removed	tons or yds	Measured	During Removal
Location of Reuse/Disposal ^[2]	General Public or Specific Site	Grab	1/Year
Moisture Content	Percent	Grab	1/Year
Ammonia (as N)	mg/kg ^[1]	Grab	1/Year
Boron	mg/kg ^[1]	Grab	1/Year
Cadmium	mg/kg ^[1]	Grab	1/Year
Chromium, total	mg/kg ^[1]	Grab	1/Year
Copper	mg/kg ^[1]	Grab	1/Year
Lead	mg/kg ^[1]	Grab	1/Year
Mercury	mg/kg ^[1]	Grab	1/Year
Nickel	mg/kg ^[1]	Grab	1/Year
Nitrate (as N)	mg/kg ^[1]	Grab	1/Year
Total Kjeldahl Nitrogen	mg/kg ^[1]	Grab	1/Year
Oil and Grease	mg/kg ^[1]	Grab	1/Year
Silver	mg/kg ^[1]	Grab	1/Year
Total Phosphorus (as P)	mg/kg ^[1]	Grab	1/Year
Zinc	mg/kg ^[1]	Grab	1/Year
Table B Parameters ^[3]	mg/kg ^[1]	Grab	May 2016

^[1] Results shall be reported on a dry weight basis.

^[2] The annual report shall identify the destination for which biosolids are transported once it leaves the Facility.

^[3] Sampling for Table B pollutants shall be coordinated with effluent sampling for Table B pollutants.

2. Prior to land application, the Discharger shall demonstrate that the biosolids meet Class A or Class B pathogen reduction levels by one of the methods listed in 40 CFR 503.32 (unless transferred to another preparer who demonstrated pathogen reduction).

Prior to disposal in a surface disposal site, the Discharger shall demonstrate that the biosolids meet Class B levels or shall ensure that the site is covered at the end of each operating day.

If pathogen reduction is demonstrated using a "Process to Significantly/Further Reduce Pathogens", the Discharger shall maintain daily records of the operating parameters used to achieve this reduction.

The following applies when biosolids from the Facility are directly land applied as Class B, without further treatment by a second preparer: if the Discharger demonstrates pathogen reduction by direct testing for fecal coliforms and/or pathogens, samples must be drawn at the frequency in Table E-7. If the Discharger demonstrates Class B pathogen reduction by testing for fecal coliform, at least seven grab samples must be drawn and analyzed during each monitoring event, and a geometric mean calculated from these seven samples. If the Discharger demonstrates Class A pathogen reduction by testing for fecal coliform and/or

salmonella, plus one of the PFRP processes or testing for enteric viruses and helminth ova, at least four samples of fecal coliform or salmonella must be drawn during each monitoring event. All four samples must meet the limits specified in 40 CFR 503.32(a).

3. For biosolids that are land applied or placed in a surface disposal site, the Discharger shall track and keep records of the operational parameters used to achieve vector attraction reduction requirements in 40 CFR 503.33(b).
4. Class 1 facilities (facilities with pretreatment programs or others designated as Class 1 by the Central Coast Water Board) and Federal facilities with greater than 5 MGD influent flow shall sample biosolids for pollutants listed under Section 307(a) of the Clean Water Act (as required in the pretreatment section of the permit for POTWs with pretreatment programs). Class 1 facilities and Federal facilities greater than 5 MGD shall test dioxins/dibenzofurans using a detection limit of less than one pg/g at the time of their priority pollutant scan if they have not done so within the past five years, and once per five years thereafter.
5. The biosolids shall be tested annually, or more frequently if necessary, to determine hazardousness. All constituents regulated under CA Title 22, Division 4.5, Chapter 11, Article 3 shall be analyzed for comparison with TTLC criteria. The Waste Extraction Test shall be performed on any constituent when the total concentration of the waste exceeds ten times the STLC limit for that substance.
6. If biosolids are placed in a surface disposal site (dedicated land disposal site or monofill), a qualified groundwater scientist shall develop a groundwater monitoring program for the site, or shall certify that the placement of biosolids on the site will not contaminate an aquifer.
7. Biosolids placed in a municipal landfill shall be tested by the Paint Filter Liquids Test (EPA Method 9095) at the frequency specified in Table E-7, or more often if necessary to demonstrate that there are no free liquids.
8. The Discharger, either directly or through contractual arrangements with their biosolids management contractors, shall comply with the following notification requirements:
 - a. Notification of Non-Compliance: The Discharger shall notify USEPA Region 9, the Central Coast Water Board, and the Regional Water Board in the region where the biosolids are used or disposed, within 24 hours of any non-compliance event which may endanger the health or the environment. For other instances of non-compliance, the Discharger shall notify USEPA Region 9 and the affected Regional Water Boards of the non-compliance in writing within five working days of becoming aware of the non-compliance. The Discharger shall require their biosolids management contractors to notify USEPA Region 9 and the affected Regional Water Boards of any non-compliance within the same time frame.
 - b. If biosolids are shipped to another State or Indian Lands, the Discharger shall send notice at least 60 days prior to the shipment to the permitting authorities in the receiving State or Indian Land (the USEPA Regional Office for that area and the State/Indian authorities).
 - c. For land application (These notification requirements are intended for cases where Class B biosolids from the District are directly applied without further treatment): Prior to reuse of any biosolids from the Facility to a new or previously unreported site, the Discharger shall notify USEPA, the Central Coast Water Board, and any other affected Regional Water Board. The notification shall include a description and topographic map of the proposed site(s), names and addresses of the applier, and site owner and a listing of

any state or local permits which must be obtained. The notice shall include a description of the crops or vegetation to be grown, proposed loading rates and determination of agronomic rates.

If any biosolids within a given monitoring period do not meet 40 CFR 503.13 metals concentration limits, the Discharger (or its contractor) must pre-notify USEPA, and determine the cumulative metals loading at that site to date as required in 40 CFR 503.12.

The Discharger shall notify the applier of all the applier's requirements under 40 CFR 503, including the requirement that the applier certify that the management practices, site restrictions, and any applicable vector attraction reduction requirements have been met. The Discharger shall require the applier to certify at the end of 38 months following application of Class B biosolids that the harvesting restrictions in effect for up to 38 months have been met.

- d. For surface disposal: Prior to disposal to a new or previously unreported site, the Discharger shall notify USEPA and the Central Coast Water Board. The notice shall include description and topographic map of the proposed site, depth to groundwater, whether the site is lined or unlined, site operator, site owner, and any state or local permits. The notice shall describe procedures for ensuring public access and grazing restrictions for three years following site closure. The notice shall include a groundwater monitoring plan or description of why groundwater monitoring is not required.
9. The Discharger shall submit an annual biosolids report to the USEPA Region 9 Biosolids Coordinator and Central Coast Water Board by February 19th of each year (per USEPA guidance and 40 CFR 503) for the period covering the previous calendar year. The report shall include:
 - a. The amount of biosolids generated during the reporting period, in dry metric tons, and its percent solids, and the amount accumulated from previous years;
 - b. Results of all pollutants and pathogen monitoring required in this Order and Monitoring and Reporting Program, whether directly stated or included by reference. Results must be reported on a 100% dry weight basis for comparison with 40 CFR 503 limits;
 - c. Descriptions of pathogen reduction methods and vector attraction reduction methods, including supporting time and temperature data, and certifications, as required in 40 CFR 503.17 and 503.27;
 - d. Names, mailing addresses, and street addresses of persons who received biosolids for storage, further treatment, disposal in a municipal waste landfill, or for other use or disposal methods not covered above, and amounts delivered to each.
 - e. For land application sites (These reporting requirements are for cases where Class B biosolids from the District are directly applied without further treatment): The following information must be submitted by the Discharger, unless the Discharger requires its biosolids management contractors to report this information directly to the USEPA Region 9 Biosolids Coordinator:
 - i. Locations of land application sites (with field names and numbers) used that calendar year, size of each field applied to, applier, and site owner;

- ii. Amounts applied to each field (in wet tons and dry metric tons), nitrogen applied, calculated plant available nitrogen;
- iii. The application rate in lbs/acre/year (specify wet or dry);
- vi. The Central Coast Water Board Waste Discharge Requirements Order number that regulate the site(s) (including those in other regions which may receive biosolids from the Facility);
- v. Crop planted, dates of planting and harvesting;
- vi. For any biosolids exceeding 40 CFR 503.13 Table 3 metals concentrations: the locations of sites where applied and cumulative metals loading at that site to date;
- vii. Subsequent uses of the land;
- viii. Certifications of management practices in Section 503(b)(5);
- f. For surface disposal sites:
 - i. The names and locations of the facilities receiving biosolids, site operator, site owner, size of parcel on which disposes;
 - ii. Results of any required groundwater monitoring;
 - iii. The Central Coast Water Board Waste Discharge Requirements Order numbers that regulate the landfills used (including those in other regions which may receive biosolids from the Facility);
 - iv. The present classification of the landfills used;
 - v. Certifications of management practices in Section 503.24; and
 - vi. For closed sites, date of site closure and certifications of management practices for the three years following site closure.
- g. For all biosolids used or disposed at the Facility, the site and management practice information and certification required in Sections 503.17 and 503.27;
- h. For all biosolids temporarily stored, the information required in Section 503.20 required to demonstrate temporary storage;
- i. A schematic diagram showing biosolids handling facilities (e.g., digesters, lagoons, drying beds, and incinerators) and a solids flow diagram;
- j. A narrative description of biosolids dewatering and other treatment process, including process parameters. For example, if biosolids are digested, report average temperature and retention times of the digesters. If drying beds are used, report depth of application and drying time. If composting is used, report the temperature achieved and duration.
- k. Reports shall be submitted to:

Regional Biosolids Coordinator
US EPA (WTR-7)
75 Hawthorne St.

San Francisco, CA 94105-3901

Executive Officer
Central Coast Regional Water Quality Control Board
centralcoast@waterboards.ca.gov

D. Pretreatment Monitoring – Not Applicable

X. REPORTING REQUIREMENTS

A. General Monitoring and Reporting Requirements

The Discharger shall comply with all Federal Standard Provisions (Attachment D) and Regional Standard Provisions related to monitoring, reporting, and recordkeeping.

B. Self-Monitoring Reports (SMRs)

1. The Discharger shall electronically submit SMRs using the State Water Board's California Integrated Water Quality System (CIWQS) Program website (<http://www.waterboards.ca.gov/ciwqs/index.html>). The CIWQS website will provide additional directions for SMR submittal in the event of a service interruption for electronic submittal.
2. The Discharger shall report in the SMR the results for all monitoring specified in this MRP under sections III through IX. The Discharger shall submit monthly and annual SMRs including the results of all required monitoring using USEPA approved test methods or other test methods specified in this Order. If the Discharger monitors any pollutant more frequently than required by this Order, the results of this monitoring shall be included in the calculations and reporting of the data submitted in the SMR.
3. Monitoring periods and reporting for all required monitoring shall be completed according to the following schedule:

Table E-8. Monitoring Periods and Reporting Schedule

Sampling Frequency	Monitoring Period Begins On...	Monitoring Period	SMR Due Date
Continuous	Day after permit effective date	All	First day of the second calendar month following month of sampling.
1/Day	Day after permit effective date	Midnight through 11:59 PM or any 24-hour period that reasonably represents a calendar day for purposes of sampling	
1/Week	Sunday following permit effective date or on permit effective date if on a Sunday	Sunday through Saturday	
1/Month	First day of calendar month following permit effective date or on permit effective date if that date is first day of the month	1 st day of calendar month through last day of calendar month	
1/Quarter	Closest of January 1, April 1, July 1, or October 1 following (or on) permit effective date	January 1 through March 31 April 1 through June 30 July 1 through September 30 October 1 through December 31	May 1 August 1 November 1 February 1

Sampling Frequency	Monitoring Period Begins On...	Monitoring Period	SMR Due Date
2/Year	January 1 following (or on) permit effective date	Once during November 1 through April 30 Once during May 1 through October 31	August 1 February 1
1/Year	January 1 following (or on) permit effective date	September 2013, August 2014, July 2015, June 2016, May 2017	February 1
1X/Permit Term	Between 180 and 365 days prior to Order expiration date	Permit term	The earliest of May 1, Aug 1, Nov 1, or Feb 1 following the monitoring event.

- 4. Reporting Protocols.** The Discharger shall report with each sample result the applicable reported Minimum Level (ML) and the current Method Detection Limit (MDL), as determined by the procedure in Part 136. For each parameter identified in Table B of the Ocean Plan, the Discharger shall use a ML no greater than specified in Appendix II of the Ocean Plan.

The Discharger shall report the results of analytical determinations for the presence of chemical constituents in a sample using the following reporting protocols:

- a. Sample results greater than or equal to the reported ML shall be reported as measured by the laboratory (i.e., the measured chemical concentration in the sample).
- b. Sample results less than the reported ML, but greater than or equal to the laboratory's MDL, shall be reported as "Detected, but Not Quantified," or DNQ. The estimated chemical concentration of the sample shall also be reported.

For the purposes of data collection, the laboratory shall write the estimated chemical concentration next to DNQ as well as the words "Estimated Concentration" (may be shortened to "Est. Conc."). The laboratory may, if such information is available, include numerical estimates of the data quality for the reported result. Numerical estimates of data quality may be percent accuracy (+ a percentage of the reported value), numerical ranges (low to high), or any other means considered appropriate by the laboratory.

- c. Sample results less than the laboratory's MDL shall be reported as "Not Detected," or ND.
- d. Dischargers are to instruct laboratories to establish calibration standards so that the ML value (or its equivalent if there is differential treatment of samples relative to calibration standards) is the lowest calibration standard. At no time is the Discharger to use analytical data derived from extrapolation beyond the lowest point of the calibration curve.

- 5. Compliance Determination.** Compliance with effluent limitations for Ocean Plan Table B parameters shall be determined using sample reporting protocols defined above and Attachment A of this Order. For purposes of reporting and administrative enforcement by the Regional and State Water Boards, the Discharger shall be deemed out of compliance with effluent limitations if the concentration of the Ocean Plan Table B parameter in the monitoring sample is greater than the effluent limitation and greater than or equal to the ML.

- 6. Multiple Sample Data.** When determining compliance with an average monthly effluent limitation (AMEL), average weekly effluent limitation (AWEL), or maximum daily effluent limitation (MDEL) for Ocean Plan Table B parameters and more than one sample result is

available, the Discharger shall compute the arithmetic mean unless the data set contains one or more reported determinations of “Detected, but Not Quantified” (DNQ) or “Not Detected” (ND). In those cases, the Discharger shall compute the median in place of the arithmetic mean in accordance with the following procedure:

- a. The data set shall be ranked from low to high, ranking the reported ND determinations lowest, DNQ determinations next, followed by quantified values (if any). The order of the individual ND or DNQ determinations is unimportant.
- b. The median value of the data set shall be determined. If the data set has an odd number of data points, then the median is the middle value. If the data set has an even number of data points, then the median is the average of the two values around the middle unless one or both of the points are ND or DNQ, in which case the median value shall be the lower of the two data points where DNQ is lower than a value and ND is lower than DNQ.

7. The Discharger shall submit SMRs in accordance with the following requirements:

- a. The Discharger shall arrange all reported data in a tabular format. The data shall be summarized to clearly illustrate whether the facility is operating in compliance with interim and/or final effluent limitations. The Discharger is not required to duplicate the submittal of data that is entered in a tabular format within CIWQS. When electronic submittal of data is required and CIWQS does not provide for entry into a tabular format within the system, the Discharger shall electronically submit the data in a tabular format as an attachment.
- b. The Discharger shall attach a cover letter to the SMR. The information contained in the cover letter shall clearly identify violations of the WDRs; discuss corrective actions taken or planned; and the proposed time schedule for corrective actions. Identified violations must include a description of the requirement that was violated and a description of the violation.
- c. In the event that electronic submittal via CIWQS is not available, SMRs must be submitted to the Central Coast Water Board, signed and certified as required by the standard provisions (Attachment D), to the address listed below:

California Regional Water Quality Board
Central Coast Region
centralcoast@waterboards.ca.gov

C. Discharge Monitoring Reports

1. As described in section X.B.1 above, at any time during the term of this Order, the State or Central Coast Water Board may notify the Discharger to electronically submit SMRs that will satisfy federal requirements for submittal of Discharge Monitoring Reports (DMRs). Until such notification is given, the Discharger shall submit DMRs in accordance with the requirements described below.
2. DMRs must be signed and certified as required by the standard provisions (Attachment D). The Discharger shall submit the original DMR and one copy of the DMR to one of the addresses listed below:

Standard Mail	FedEx/UPS/Other Private Carriers
State Water Resources Control Board Division of Water Quality c/o DMR Processing Center PO Box 100 Sacramento, CA 95812-1000	State Water Resources Control Board Division of Water Quality c/o DMR Processing Center 1001 I Street, 15 th Floor Sacramento, CA 95814

3. All discharge monitoring results must be reported on the official USEPA pre-printed DMR forms (EPA Form 3320-1). Forms that are self-generated will not be accepted unless they follow the exact same format of EPA Form 3320-1.

D. Other Reports

The Discharger shall report the results of any special studies, monitoring, and reporting required by section VI.C (Special Studies, Technical Reports, and Additional Monitoring) of the Order. The Discharger shall submit such reports with the first monthly SMR scheduled to be submitted on or immediately following the respective due date.

In addition, the Discharger shall comply with the reporting requirements below for sewage spill reporting and notifications and disinfection failure.

1. Sewage Spill Reporting and Notifications

- a. Sanitary sewer overflows associated with the Discharger's collection system are subject to the online reporting and notification requirements set forth in the Statewide General Waste Discharge Requirements for Sanitary Sewer Systems Order No. 2006-0003-DWQ. The Discharger has enrolled under the statewide waste discharge requirements for sanitary sewer systems. Therefore, all prohibitions, provisions, and monitoring and reporting requirements apply to the Discharger. For any unauthorized discharges of sewage to a drainage channel or surface water, the Discharger is required to notify the State Office of Emergency Services, the local health officer or director of environmental health with jurisdiction over affected water bodies, and the Central Coast Water Board, within two hours after becoming aware of the discharge. Additionally, within 24 hours the Discharger shall submit to the Central Coast Water Board certification that the appropriate agencies (i.e., Office of Emergency Services and local Environmental Health Department) have been notified of the sewage discharge to surface water bodies.
- b. In accordance with the requirements of Health and Safety Code Section 5411.5, the Discharger shall provide notification to the local health officer or the director of environmental health with jurisdiction over the affected water body of any spills that cause, or probably will cause, a discharge to any waters of the state.

In accordance with the requirements of Water Code Section 13271, the Discharger shall provide notification to the State Office of Emergency Services of reportable amounts of hazardous substance spills or sewage spills that cause, or probably will cause, a discharge to any waters of the state. The California Code of Regulations, Title 23, Section 2250, defines a reportable amount of a sewage spill as being 1,000 gallons. The phone number for reporting these releases to the **State Office of Emergency Services is (800) 852 7550.**

The Discharger shall notify the Central Coast Water Board of any spill from its wastewater treatment plant that causes, or probably will cause, a discharge to a water of the state as

soon as possible, but not later than **two hours** after becoming aware of the release. This notification does not need to be made if the Discharger has notified the State Office of Emergency Services first. The phone number for reporting these sewage spills to the Central Coast Water Board is **(805) 549-3147**. At a minimum, the following information shall be provided:

- i. The location, date, and times of the spill.
 - ii. The water body that received or will receive the spill.
 - iii. An estimate of the amount of sewage or other waste spilled and the amount that reached a surface water at the time of notification.
 - iv. If ongoing, the estimated flow rate of the spill at the time of the notification.
 - v. The name of the organization, phone number, and email address of the reporting representative.
- c. As soon as possible, but not later than 24 hours after becoming aware of a spill from its wastewater treatment plant to a water of the state, the Discharger shall submit a statement to the Central Coast Water Board by email at centralcoast@waterboards.ca.gov. If the spill is 1,000 gallons or more, this statement shall certify that the State Office of Emergency Services has been notified of the spill in accordance with California Water Code Section 13271. The statement shall also certify that the local health officer or director of environmental health with jurisdiction over the affected water bodies has been notified of the spill in accordance with Health and Safety Code Section 5411.5. The statement shall also include at a minimum the following information:
- i. Agency, NPDES No., Order No., and MRP No., if applicable.
 - ii. The location, date, and time of the spill.
 - iii. The water body that received the spill.
 - iv. A description of the level of treatment of the sewage spill or other waste spilled.
 - v. An initial estimate of the amount of sewage spilled or other waste spilled and the amount that reached a surface water.
 - vi. The State Office of Emergency Services control number and the date and time that notification of the incident was provided to the State Office of Emergency Services.
 - vii. The name of the local health officer or director of environmental health representative notified (if contacted directly); the date and time of notification; and the method of notification (e.g., phone, fax, email).

2. Notification and Monitoring Procedure in Case of Disinfection Failure

In the event of a sewage spill, collection system bypass, malfunction, or disinfection failure that results in a potential or actual discharge of raw or incompletely treated sewage or of inadequately disinfected effluent to the Santa Barbara Channel that may adversely affect water and shellfish quality (an Event), the Discharger shall notify the California Department

of Public Health (CDPH), Santa Barbara County Environmental Health Services, the Central Coast Water Board, and each certified commercial shellfish grower located offshore of the Santa Barbara Coast as set forth in a list to be provided by CDPH. Such notifications shall be made by telephone and facsimile transmission to the numbers provided to the Discharger by CDPH. If the Discharger becomes aware of an Event between the weekday hours of 6:00 am and 5:00 pm, notification shall be given as soon as possible, but never later than four hours from the time that the Discharger becomes aware of the Event. If the Discharger becomes aware of the Event after 5:00 pm or on a weekend, notification shall be given as soon as possible, but not later than 10:00 am the next business day.

By providing notification of an Event as specified above, the Discharger shall not be deemed to have admitted any liability or concluded that the Event will or may impact and approved commercial shellfish growing areas or require the closure of any growing areas. Any decision or recommendation to close a growing area in response to a notification of an Event by the Discharger shall be made by CDPH and/or the affected or potentially affected certified commercial shellfish growers.

The Discharger shall develop and maintain written procedures incorporating these notification requirements, shall post the procedures at the facility, and shall provide a copy of the current notification procedures to the Central Coast Water Board, CDPH, and Santa Barbara County Environmental Health Services.

The Discharger shall monitor for total coliform, fecal coliform, and enterococcus at receiving water sampling stations as required in this MRP, in addition to three shore sampling stations approved by the Executive Officer, for seven days after loss of disinfection, and report the results to the Executive Officer within 24 hours after receiving the results from the laboratory.

ATTACHMENT F - FACT SHEET

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ATTACHMENT F – FACT SHEET

As described in section II of this Order, this Fact Sheet includes the legal requirements and technical rationale that serve as the basis for the requirements of this Order.

This Order has been prepared under a standardized format to accommodate a broad range of discharge requirements for dischargers in California. Only those sections or subsections of this Order that are specifically identified as “not applicable” have been determined not to apply to this Discharger. Sections or subsections of this Order not specifically identified as “not applicable” fully apply to this Discharger.

I. PERMIT INFORMATION

The following table summarizes administrative information related to the Facility.

Table F-1. Facility Information

WDID	3 42 010 7001
Discharger	Montecito Sanitary District
Name of Facility	Montecito Sanitary District Wastewater Treatment Facility
Facility Address	1042 Monte Cristo Lane Santa Barbara, CA 93108 Santa Barbara County
Facility Contact, Title, Phone	Diane Gabriel, General Manager/District Engineer, (805) 969-4200 Brett J. Walker, Operations & Maintenance Manager,
Authorized Person to Sign and Submit Reports	Diane Gabriel, General Manager/District Engineer, (805) 969-4200 Brett J. Walker, Operations & Maintenance Manager
Mailing Address	1042 Monte Cristo Lane Santa Barbara, CA 93108 Santa Barbara County
Billing Address	Same
Type of Facility	Publicly Owned Treatment Works (POTW)
Major or Minor Facility	Major
Threat to Water Quality	2
Complexity	A
Pretreatment Program	No
Reclamation Requirements	None
Facility Permitted Flow	1.5 million gallons per day (MGD)
Watershed	South Coast Hydrologic Unit
Receiving Water	Pacific Ocean
Receiving Water Type	Marine

- A. The Montecito Sanitary District (hereinafter the Discharger) owns and operates the Montecito Wastewater Treatment Facility (hereinafter the Facility), a POTW capable of treating municipal waste to secondary treatment levels. The Facility services a population of approximately 8,000 persons.

For the purposes of this Order, references to the “dischargers” or “permittee” in applicable federal and state laws, regulations, plans, and policies are held to be equivalent to references to the Discharger herein.

- B. The Facility discharges treated effluent to the Pacific Ocean, a water of the United States, and is currently regulated by Order No. R3-2006-0084, which was adopted on December 1, 2006.
- C. The Discharger filed a Report of Waste Discharge (ROWD) and submitted an application for renewal of its Waste Discharge Requirements (WDRs) and National Pollutant Discharge Elimination System (NPDES) permit on July 11, 2011.

II. FACILITY DESCRIPTION

A. Description of Wastewater and Biosolids Treatment and Controls

The treatment system consists of macerators, aeration basins, secondary sedimentation, chlorination, and dechlorination. Influent enters the headworks of the Facility and is processed through macerators (i.e., channel grinders) prior to being pumped to the secondary treatment system. The secondary treatment system is composed of two 370,000 gallon aeration basins and four rectangular clarifiers operated in parallel. Clarifier effluent is passed to the disinfection units (i.e., two chlorine contact tanks operated in parallel) where effluent is disinfected using sodium hypochlorite. Disinfected effluent is passed to an effluent channel where it is dechlorinated using sodium bisulfite prior to final discharge through Discharge Point No. 001. The design average dry weather flow rate is 1.5 MGD.

Biosolids are managed via aerobic digestion, dewatered by belt press, and composted off-site. Solids wasted from the secondary clarifiers are pumped to a dissolved air flotation tank for thickening and the thickened sludge is passed to an aerobic digester for treatment. Sludge from the digester is dewatered using a belt press and the resulting biosolids are stockpiled in holding bins. Biosolids are periodically disposed of via the Engel & Gray Regional Composting Facility, a composting facility located in Santa Maria, California, by Engel & Gray, Inc, of Santa Maria.

A summary of historic flows observed at the Facility during the term of the previous Order are summarized below.

Table F-2. Historical Flows

Year	Average Daily Wet-Weather Flows (MGD)	Maximum Daily Wet-Weather Flow (MGD)	Average Daily Dry-Weather Flow (MGD)
2006	1.051	2.169	0.953
2007	0.844	1.352	0.796
2008	0.943	2.307	0.792
2009	0.820	1.268	0.765
2010	0.993	3.210	0.802

B. Discharge Points and Receiving Waters

Wastewater is discharged to the Pacific Ocean within the South Coast Hydrologic Unit through a 1,500-foot outfall/diffuser system. The outfall (Discharge Point No. 001) terminates in the Santa

Barbara Channel/Pacific Ocean (34° 24' 48" N, 119° 38' 52" W) at a depth of approximately 35 feet.
The minimum initial dilution ratio of seawater to effluent is 89 to 1.

Table F-3. Outfall Locations

Discharge Point	Effluent Description	Discharge Point Latitude	Discharge Point Longitude	Receiving Water
001	Treated domestic wastewater	34° 24' 48" N	119° 38' 52" W	Pacific Ocean

C. Summary of Existing Requirements and Self-Monitoring Report Data

Effluent limitations contained in the existing Order for discharges from Discharge Point No. 001 and representative monitoring data for Monitoring Location EFF-001, for the term of the previous Order, are presented in the following tables.

Table F-4a. Previous Effluent Limitations and Monitoring Data for Conventional and Non-Conventional Pollutants from Discharge Point No. 001

Parameter	Units	Effluent Limitations			Monitoring Data (From June 2006-July 2011)		
		Monthly Average	Weekly Average	Daily Maximum	Highest Monthly Average	Highest Weekly Average	Highest Daily Discharge
Daily Dry Weather Flow	MGD	1.5	--	--	1.3	--	--
Carbonaceous Biochemical Oxygen Demand, 5-day (CBOD)	mg/L	25	40	85	NA	NA	22
	lbs/day	310	500	1,100	NA	NA	184
Total Suspended Solids (TSS)	mg/L	30	45	90	NA	NA	19
	lbs/day	380	570	1,100	NA	NA	273
pH	s.u.	6.0-9.0 at all times			6.5 / 7.8 ^[1]		
Oil and Grease	mg/L	25	40	75	NA	NA	8
	lbs/day	310	500	940	NA	NA	55
Settleable Solids	mL/L	1.0	1.5	3.0	NA	NA	0.7
Turbidity	NTU	75	100	230	NA	NA	5.7
Total Coliform Organisms	MPN/100 mL	--	23 ^[2]	2,300 ^[3]	--	NR	30,000 ^[4]

Footnotes to Table F-4a:

mg/L = milligrams per liter
lbs/day = pounds per day
s.u. = Standard Units
ND = Non-detect
NA = Not Available

^[1] Minimum and maximum pH values observed in the effluent.

^[2] Maximum 7-day running median.

^[3] Maximum in any single sample.

^[4] Dismissed as laboratory error.

Table F-4b. Previous Effluent Limitations and Monitoring Data for Table B Pollutants for the Protection of Marine Aquatic Life from Discharge Point No. 001

Parameter	Units	Effluent Limitations			Monitoring Data (From September 2007 – May 2011)		
		6-Month Median	Daily Maximum	Instant. Maximum	6-Month Median	Daily Maximum	Instant. Maximum
Arsenic	µg/L	450	2,600	6,900	NA	NA	1.1
	lbs/day	5.7	33	87	NA	NA	NA
Cadmium	µg/L	90	.30	900	NA	NA	0.064
	lbs/day	1.1	4.5	11	NA	NA	NA
Chromium (VI)	µg/L	180	720	1,800	NA	NA	<5
	lbs/day	2.3	9.0	23	NA	NA	NA
Copper	µg/L	92	900	2,500	NA	NA	10
	lbs/day	1.2	11	32	NA	NA	NA
Lead	µg/L	180	720	1,800	NA	NA	0.99
	lbs/day	2.3	9.0	23	NA	NA	NA
Mercury	µg/L	3.6	14	36	NA	NA	0.03
	lbs/day	0.045	0.18	0.45	NA	NA	NA
Nickel	µg/L	450	1,800	4,500	NA	NA	3.3
	lbs/day	5.6	23	56	NA	NA	NA
Selenium	µg/L	1,400	5,400	14,000	NA	NA	3
	lbs/day	17	68	170	NA	NA	NA
Silver	µg/L	49	240	620	NA	NA	0.12
	lbs/day	0.61	3.0	7.7	NA	NA	NA
Zinc	µg/L	1,200	6,500	17,000	NA	NA	60
	lbs/day	14	81	220	NA	NA	NA
Cyanide	µg/L	90	360	900	NA	NA	10
	lbs/day	1.1	4.5	11	NA	NA	NA
Total Chlorine Residual	µg/L	180	720	5,400	NA	NA	0.1
	lbs/day	2.3	9.0	68	NA	NA	NA
Ammonia (as Nitrogen)	µg/L	54,000	220,000	540,000	NA	NA	1,700
	lbs/day	680	2,700	6,800	NA	NA	NA
Chronic Toxicity	TUc	--	76	--	--	>10 ^[1]	--
Acute Toxicity	TUa	--	3.0	--	--	0.72	--
Phenolic Compounds (non-chlorinated)	µg/L	2,700	11,000	27,000	NA	NA	<0.67
	lbs/day	34	140	340	NA	NA	NA
Chlorinated Phenolics	µg/L	90	360	900	NA	NA	<0.54
	lbs/day	1.1	4.5	11	NA	NA	NA
Endosulfan	µg/L	0.81	1.6	2.4	NA	NA	<0.95
	lbs/day	0.01	0.02	0.03	NA	NA	NA
Endrin	µg/L	0.18	0.36	0.54	NA	NA	<0.95
	lbs/day	0.0023	0.0045	0.0068	NA	NA	NA
HCH	µg/L	0.36	0.72	1.1	NA	NA	<0.0009
	lbs/day	0.0045	0.009	0.014	NA	NA	NA

Footnotes to Table F-4b:

mg/L = milligrams per liter
lbs/day = pounds per day
ND = Non-detect
NA = Not Available

Table F-4c. Previous Effluent Limitations and Monitoring Data for Table B Pollutants for the Protection of Human Health from Discharge Point No. 001

Parameter	Units	Effluent Limitations	Monitoring Data (From September 2007 – May 2011)
		30-Day Average	30-Day Average
Acrolein	µg/L	20,000	<1.9
	lbs/day	250	NA
Antimony	µg/L	110,000	0.76
	lbs/day	1,400	NA
Bis(2-chloroethoxy) methane	µg/L	400	<0.54
	lbs/day	5.0	NA
Bis(2-chloroisopropyl) ether	µg/L	110,000	<0.41
	lbs/day	1,400	NA
Chlorobenzene	µg/L	51,000	<0.11
	lbs/day	640	NA
Chromium (III)	µg/L	17,000,000	0.35
	lbs/day	210,000	NA
Di-n-butyl phthalate	µg/L	320,000	<0.66
	lbs/day	3,900	NA
Dichlorobenzenes	µg/L	460,000	<0.12
	lbs/day	5,7000	NA
Diethyl phthalate	µg/L	3,000,000	<0.53
	lbs/day	37,000	NA
Dimethyl phthalate	µg/L	74,000,000	<0.43
	lbs/day	920,000	NA
4,6-dinitro-2- methylphenol	µg/L	20,000	<0.46
	lbs/day	250	NA
2,4-dinitrophenol	µg/L	360	<2
	lbs/day	4.5	NA
Ethylbenzene	µg/L	370,000	<0.15
	lbs/day	4,600	NA
Fluoranthene	µg/L	1,400	<0.53
	lbs/day	17	NA
Hexachlorocyclopentadie ne	µg/L	5,200	<0.49
	lbs/day	65	NA
Nitrobenzene	µg/L	440	<0.65
	lbs/day	5.5	NA
Thallium	µg/L	180	10
	lbs/day	2.3	NA
Toluene	µg/L	7,700,000	<0.19
	lbs/day	96,000	NA
Tributyltin	µg/L	0.14	0.0014
	lbs/day	0.0016	NA
1,1,1-trichloroethane	µg/L	49,000,000	<0.1
	lbs/day	610,000	NA
Acrylonitrile	µg/L	9.0	<0.5
	lbs/day	0.11	NA
Aldrin	µg/L	0.002	<0.00095
	lbs/day	0.00025	NA

Parameter	Units	Effluent Limitations	Monitoring Data (From September 2007 – May 2011)
		30-Day Average	30-Day Average
Benzene	µg/L	530	<0.078
	lbs/day	6.6	NA
Benzidine	µg/L	0.0062	<1.8
	lbs/day	0.000078	NA
Beryllium	µg/L	3.0	<0.2
	lbs/day	0.037	NA
Bis(2-chloroethyl) ether	µg/L	4.1	<0.51
	lbs/day	0.05	NA
Bis(2-ethylhexyl) phthalate	µg/L	320	15
	lbs/day	3.9	NA
Carbon Tetrachloride	µg/L	81	<0.11
	lbs/day	1.0	NA
Chlordane	µg/L	0.0021	<0.00095
	lbs/day	0.00003	NA
Chlorodibromomethane	µg/L	770	38
	lbs/day	9.7	NA
Chloroform	µg/L	12,000	23
	lbs/day	150	NA
DDT	µg/L	0.015	0.0028
	lbs/day	0.00019	NA
1,4-Dichlorobenzene	µg/L	1,600	<0.43
	lbs/day	20	NA
3,3'-Dichlorobenzidine	µg/L	0.73	<0.69
	lbs/day	0.0091	NA
1,2-Dichloroethane	µg/L	2,500	<0.2
	lbs/day	32	NA
1,1-Dichloroethylene	µg/L	81	<0.17
	lbs/day	1.0	NA
Dichlorobromomethane	µg/L	560	27
	lbs/day	7.0	NA
Dichloromethane	µg/L	41,000	NA
	lbs/day	510	NA
1,3-Dichloropropene	µg/L	800	<0.14
	lbs/day	10	NA
Dieldrin	µg/L	0.0036	<0.00095
	lbs/day	0.000045	NA
2,4-Dinitrotoluene	µg/L	230	<0.56
	lbs/day	2.9	NA
1,2-Diphenylhydrazine	µg/L	14	<0.52
	lbs/day	0.18	NA
Halomethanes	µg/L	12,000	15
	lbs/day	150	NA
Heptachlor	µg/L	0.0045	<0.00095
	lbs/day	0.000056	NA
Heptachlor Epoxide	µg/L	0.0018	<0.95
	lbs/day	0.000023	NA
Hexachlorobenzene	µg/L	0.019	<0.39
	lbs/day	0.00024	NA
Hexachlorobutadiene	µg/L	1,300	<0.37

Parameter	Units	Effluent Limitations	Monitoring Data (From September 2007 – May 2011)
		30-Day Average	30-Day Average
	lbs/day	16	NA
Hexachloroethane	µg/L	230	<0.38
	lbs/day	2.8	NA
Isophorone	µg/L	66,000	<0.53
	lbs/day	820	NA
N-nitrosodimethylamine	µg/L	660	<0.6
	lbs/day	8.2	NA
N-nitrosodi-N-propylamine	µg/L	34	<0.54
	lbs/day	0.43	NA
N-nitrosodiphenylamine	µg/L	230	<0.5
	lbs/day	2.8	NA
PAHs	µg/L	0.79	0.063
	lbs/day	0.0099	NA
PCBs	µg/L	0.0017	<0.057
	lbs/day	0.000021	NA
TCDD Equivalents	µg/L	0.00000035	$<7.9 \times 10^{-10}$
	lbs/day	0.000000044	NA
1,1,2,2-Tetrachloroethane	µg/L	210	<0.27
	lbs/day	2.6	NA
Tetrachloroethylene	µg/L	180	<0.16
	lbs/day	2.3	NA
Toxaphene	µg/L	0.019	<0.0095
	lbs/day	0.00024	NA
Trichloroethylene	µg/L	2,400	<0.093
	lbs/day	30	NA
1,1,2-trichloroethane	µg/L	850	0.87
	lbs/day	11	NA
2,4,6-trichlorophenol	µg/L	26	<0.47
	lbs/day	0.33	NA
Vinyl Chloride	µg/L	3,200	<0.12
	lbs/day	41	NA

Footnotes to Table F-4c:

mg/L = milligrams per liter
 lbs/day = pounds per day
 ND = Non-detect
 NA = Not Available

D. Compliance Summary

The Discharger violated numeric effluent limitations multiple times during the term of the previous Order. Most of the events were due to storm events and high influent flows. The total coliform exceedance on July 9, 2010, was reported by the Discharger and discussed with Water Board staff. Staff agreed that the reported value was not representative of actual conditions and did not require the Discharger to take corrective action. The following table summarizes the violations of effluent limitations based on data collected from June 2006 through July 2011.

Table F-5. Compliance Summary

Date	Monitoring Period	Violation Type	Pollutant	Reported Value	Permit Limitation	Units
5/2/2007	2 nd Quarter	7-Day Median	Total Coliform	30	23	MPN/100 mL
*1/27/2010	1 st Quarter	7-Day Median	Total Coliform	27	23	MPN/100 mL
*1/29/2010	1 st Quarter	7-Day Median	Total Coliform	27	23	MPN/100 mL
*2/1/2010	1 st Quarter	7-Day Median	Total Coliform	27	23	MPN/100 mL
*2/3/2010	1 st Quarter	7-Day Median	Total Coliform	27	23	MPN/100 mL
**7/9/2010	3 rd Quarter	Single Sample Maximum	Total Coliform	30,000	2,300	MPN/100 mL
*1/3/2011	1 st Quarter	7-Day Median	Total Coliform	30	23	MPN/100 mL
*2/14/2011	1 st Quarter	7-Day Median	Total Coliform	30	23	MPN/100 mL

- *Winter storm events-high plant flows
- **Contract Laboratory error-Dismissed

E. Planned Changes – Not Applicable

III. APPLICABLE PLANS, POLICIES, AND REGULATIONS

The requirements contained in this Order are based on the requirements and authorities described in this section.

A. Legal Authorities

This Order is issued pursuant to Section 402 of the federal Clean Water Act (CWA) and implementing regulations adopted by the United States Environmental Protection Agency (USEPA) and Chapter 5.5, Division 7 of the California Water Code (CWC, commencing with Section 13370). It shall serve as an NPDES permit for point source discharges from this facility to surface waters. This Order also serves as WDRs pursuant to Article 4, Chapter 4, Division 7 of the Water Code (commencing with Section 13260).

B. California Environmental Quality Act (CEQA)

Pursuant to Water Code Section 13389, this action to adopt an NPDES permit is exempt from the provisions of CEQA, Public Resources Code Sections 21100 - through 21177.

C. State and Federal Regulations, Policies, and Plans

- 1. Water Quality Control Plans.** The California Water Resources Control Board, Central Coast Region (Central Coast Water Board) has adopted the *Water Quality Control Plan for the Central Coastal Basin* (Basin Plan), which designates beneficial uses, establishes water quality objectives (WQOs), and contains implementation programs and policies to achieve those objectives for receiving waters addressed through the Plan. In addition, the Basin Plan implements State Water Resources Control Board (State Water Board) Resolution No. 88-63, which establishes State policy that all waters, with certain exceptions, should be considered suitable or potentially suitable for municipal or domestic supply. To address ocean waters, the Basin Plan incorporates by reference the *Water Quality Control Plan for*

Ocean Waters of California (Ocean Plan). The Ocean Plan is discussed in further detail in section III.C.2 of this Fact Sheet.

Beneficial uses established by the Basin Plan for the Pacific Ocean are presented below.

Table F-6. Basin Plan Beneficial Uses the Pacific Ocean (from Coal Point to Rincon Point)

Discharge Point	Receiving Water Name	Beneficial Uses
001	Pacific Ocean (Coal Oil Point to Rincon Point)	Water Contact Recreation (REC-1) Non-contact Water Recreation (REC-2) Industrial Service Supply (IND) Navigation (NAV) Marine Habitat (MAR) Shellfish Harvesting (SHELL) Commercial and Sport Fishing (COMM) Rare, threatened, or endangered species (RARE) Wildlife Habitat (WILD)

Requirements of this Order implement the Basin Plan.

2. **California Ocean Plan.** The State Water Board adopted the *Water Quality Control Plan for the Ocean Waters of California* (Ocean Plan) in 1972 and amended it in 1978, 1983, 1988, 1990, 1997, 2000, 2005, and 2009. The State Water Board adopted the latest amendment on September 15, 2009; it was approved by the Office of Administrative Law (OAL) on March 10, 2010 and subsequently approved by the USEPA. The Ocean Plan applies, in its entirety, to point source discharges to the Pacific Ocean. The Ocean Plan identifies the following beneficial uses of State ocean waters.

Table F-7. Ocean Plan Beneficial Uses

Discharge Point	Receiving Water	Beneficial Use(s)
001	Pacific Ocean	Industrial Service Supply Water Contact Recreation Non-Contact Recreation, including aesthetic enjoyment Navigation Commercial and Sport Fishing Mariculture Preservation and Enhancement of Designated Areas of Special Biological Significance (ASBS) Rare and Endangered Species Marine Habitat Fish Migration Fish Spawning and Shellfish Harvesting

3. **Alaska Rule.** On March 30, 2000, USEPA revised its regulation that specifies when new and revised state and tribal water quality standards become effective for CWA purposes [40 CFR 131.21, 65 Fed. Reg. 24641 (April 27, 2000)]. Under the revised regulation (also known as the Alaska Rule), new and revised standards submitted to USEPA after

May 30, 2000, must be approved by USEPA before being used for CWA purposes. The final rule also provides that standards already in effect and submitted to USEPA by May 30, 2000, may be used for CWA purposes, whether or not approved by USEPA.

4. **Antidegradation Policy.** NPDES regulations at 40 CFR 131.12 require that State water quality standards include an antidegradation policy consistent with the federal policy. The State Water Board established California's antidegradation policy in State Water Board Resolution No. 68-16, which incorporates the federal antidegradation policy where the federal policy applies under federal law. Resolution No. 68-16 requires that the existing quality of waters be maintained unless degradation is justified based on specific findings. The Central Coast Water Board's Basin Plan implements and incorporates by reference both the State and federal antidegradation policies. As discussed in section IV.D.2 of this Fact Sheet, the permitted discharge is consistent with the antidegradation provisions of 40 CFR 131.12 and State Water Board Resolution No. 68-16.
5. **Anti-Backsliding Requirements.** CWA Sections 402(o)(2) and 303(d)(4) and 40 CFR 122.44(l) prohibit backsliding in NPDES permits. These anti-backsliding provisions require effluent limitations in a reissued permit to be as stringent as those in the previous permit, with some exceptions where limitations may be relaxed. All limitations and requirements of this Order are consistent with anti-backsliding requirements of the CWA and NPDES Regulations.

D. Impaired Water Bodies on CWA 303(d) List

CWA section 303(d) requires states to identify specific water bodies where water quality standards are not expected to be met after implementation of technology-based effluent limitations on point sources. For all 303(d) listed water bodies and pollutants, the Central Coast Water Board must develop and implement Total Maximum Daily Loads (TMDLs) that will specify Waste Load Allocations (WLAs) for point sources and Load Allocations (LAs) for non-point sources.

The USEPA approved the State's 2010 303(d) list of impaired water bodies on November 12, 2010. The 2010 303(d) list identifies the Pacific Ocean at East Beach near the mouth of Sycamore Creek for *Enterococcus* bacteria. A TMDL is scheduled for completion in 2013. To date, no TMDLs have been developed for waterbodies which are influenced by discharges from the Facility.

E. Other Plans, Policies and Regulations

1. **Storm Water Management.** Storm water runoff due to rainfall that falls upon the Facility and that may be exposed to on-site pollutant sources is routed to the Facility's headworks for treatment. This permit regulates all storm water discharges at this Facility and complies with Federal regulations for storm water management [Title 40, Code of Federal Regulations (CFR), Parts 122, 123, and 124], and therefore this Facility is exempt from coverage under the State's Water Quality Order No. 97-03-DWQ, *NPDES General Permit for Discharges of Stormwater Associated with Industrial Activities*.
2. **Statewide General Waste Discharge Requirements for Sanitary Sewer Systems (State Water Board Order No. 2006-0003-DWQ).** The General Permit, adopted on May 2, 2006, is applicable to all "federal and state agencies, municipalities, counties, districts, and other public entities that own or operate sanitary sewer systems greater than one mile in length that collect and/or convey untreated or partially treated wastewater to a publicly owned treatment facility in the State of California." The purpose of the General Permit is to promote the proper and efficient management, operation, and maintenance of sanitary sewer systems and to minimize the occurrences and impacts of sanitary sewer overflows.

The Discharger applied for coverage under the General Permit and must comply with its requirements.

IV. RATIONALE FOR EFFLUENT LIMITATIONS AND DISCHARGE SPECIFICATIONS

The CWA requires point source dischargers to control the amount of conventional, non-conventional, and toxic pollutants that are discharged into the waters of the United States. The control of pollutants discharged is established through effluent limitations and other requirements in NPDES permits. NPDES regulations establish two principal bases for effluent limitations. At 40 CFR 122.44(a) permits are required to include applicable technology-based limitations and standards; and at 40 CFR 122.44(d) permits are required to include water quality-based effluent limitations (WQBELs) to attain and maintain applicable numeric and narrative water quality criteria to protect the beneficial uses of the receiving water. When numeric water quality objectives have not been established, but a discharge has the reasonable potential to cause or contribute to an excursion above a narrative criterion, WQBELs may be established using one or more of three methods described at 40 CFR 122.44(d) - 1) WQBELs may be established using a calculated water quality criterion derived from a proposed State criterion or an explicit State policy or regulation interpreting its narrative criterion; 2) WQBELs may be established on a case-by-case basis using USEPA criteria guidance published under CWA Section 304(a); or 3) WQBELs may be established using an indicator parameter for the pollutant of concern.

Several specific factors affecting the development of limitations and requirements in this Order are discussed below.

A. Discharge Prohibitions

- 1. Discharge Prohibition III.A and III.B** (Discharge of treated wastewater at a location or in a manner different from that described in this Order is prohibited; Discharge of waste not specifically regulated by this Order is prohibited): These prohibitions are similar to the previous Order and is based on 40 CFR 122.21(a), duty to apply, and CWC Section 13260, which requires filing a ROWD before discharges can occur. Discharges not described in the ROWD, and subsequently in this Order, are prohibited.
- 2. Discharge Prohibition III.C** (The average monthly rate of discharge to the Pacific Ocean shall not exceed 1.5 MGD): This flow limitation reflects the design treatment capacity of the Facility. The flow limitation requires that the Facility is operated in a manner consistent with its design.
- 3. Discharge Prohibition III.D** (The overflow or bypass of wastewater from the Discharger's collection, treatment, or disposal facilities and the subsequent discharge of untreated or partially treated wastewater, except as provided for in Attachment D, Standard Provision I.G (Bypass), is prohibited). The discharge of untreated or partially treated wastewater from the Discharger's collection, treatment, or disposal facilities represents an unauthorized bypass pursuant to 40 CFR 122.41(m) or an unauthorized discharge, which poses a threat to human health and/or aquatic life, and therefore, is explicitly prohibited by the Order. This prohibition has been retained from the previous Order.
- 4. Discharge Prohibition III.E** (Bypass of the treatment facility and discharge of wastewater not meeting this Order's discharge specification is prohibited). This prohibition has been retained from the previous Order.

5. **Discharge Prohibition III.F** (Discharge of any radiological, chemical, or biological warfare agent is prohibited). This prohibition has been retained from the previous Order.
6. **Discharge Prohibition III.G** (The discharge of municipal or industrial waste sludge to the Pacific Ocean is prohibited): This prohibition is based on section III.H of the Ocean Plan.
7. **Discharge Prohibition III.H** (Materials and substances that are prohibited). This prohibition is based on the requirements of the Ocean Plan.

B. Technology-Based Effluent Limitations

1. Scope and Authority

CWA Section 301(b) requires USEPA to develop secondary treatment standards for publicly-owned treatment works at a level of effluent quality attainable through applying secondary or equivalent treatment. USEPA promulgated such technology-based effluent guidelines at 40 CFR 133. These secondary treatment regulations include the following minimum requirements.

Table F-8. Secondary Treatment Requirements

Parameter	Units	30-Day Average	7-Day Average
CBOD ^{[1], [2]}	mg/L	25	40
TSS ^[1]	mg/L	30	45
pH	s.u.	6.0 – 9.0	

^[1] The 30-day average percent removal for CBOD and TSS shall not be less than 85 percent.

^[2] The CBOD requirements in Table F-8 may be substituted in lieu of the requirements for 5-day biochemical oxygen demand. This is consistent with secondary treatment standards in 40 CFR 133.

In addition to the secondary treatment standards established in 40 CFR 133, the State Water Board, in Table A of the Ocean Plan, has supplemented these technology based requirements with additional requirements for conventional pollutants (settleable matter, oil and grease), which are applicable to the Facility. The Ocean Plan requirements are discussed in section IV.B.2 of this Fact Sheet.

2. Applicable Technology-Based Effluent Limitations

Title 40 CFR 122.45(f)(1) requires effluent limitations be expressed in terms of mass, with some exceptions, and 40 CFR 122.45(f)(2) allows pollutants that are limited in terms of mass to additionally be limited in terms of other units of measurement. This Order includes effluent limitations expressed in terms of mass and concentration. In addition, pursuant to the exceptions to mass limitations provided in 40 CFR 122.45(f)(1), some effluent limitations are not expressed in terms of mass, such as pH and temperature, and when the applicable standards are expressed in terms of concentration and mass limitations are not necessary to protect the beneficial uses of the receiving waters.

- a. **CBOD and TSS.** Federal Regulations, 40 CFR 133, establish the minimum weekly and monthly average level of effluent quality attainable by secondary treatment for CBOD and TSS. Effluent limitations for CBOD and TSS have been carried over from Order No. R3-2006-0084, and represent the degree of treatment capable of the Facility.

In addition to average weekly and monthly effluent limitations, Order No. R3-2006-0084 contained maximum daily effluent limitations for CBOD and TSS which were established in previous Orders based on best professional judgment (BPJ). Consistent with anti-backsliding provisions, maximum daily effluent limitations of 85 mg/L for CBOD and 90 mg/L for TSS have been retained from Order No. R3-2006-0084.

Additionally, 40 CFR 133.102, in describing the minimum level of effluent quality attainable by secondary treatment, states that the 30-day average percent removal shall not be less than 85 percent. This Order contains a limitation requiring an average of 85 percent removal of CBOD and TSS over each calendar month.

- b. pH.** Federal Regulations, 40 CFR 133, establishes technology-based effluent limitations for pH. The secondary treatment standards require the pH of the effluent to be no lower than 6.0 and no greater than 9.0 standard units.
- c. Settleable Solids.** Effluent Limitations for settleable solids in the previous Order included an AMEL of 1.0 mL/L, an average weekly effluent limitation of 1.5 mL/L, and an instantaneous maximum effluent limitation of 3.0 mL/L. These effluent limitations are retained from Order No. R3-2006-0084, and are based on the requirements of Table A of the Ocean Plan.
- d. Oil and Grease.** Effluent limitations for oil and grease in the previous Order included an AMEL of 25 mg/L, an average weekly effluent limitation of 40 mg/L, and an instantaneous maximum of 75 mg/L. Effluent limitations for oil and grease are retained from Order No. R3-2006-0084. These limitations are based on the requirements of Table A of the Ocean Plan.
- e. Turbidity.** Effluent limitations for turbidity in the previous Order included an AMEL of 75 NTU, an average weekly effluent limitation of 100 NTU, and an instantaneous maximum of 230 NTU. Effluent limitations for turbidity are retained from the previous Order with the exception of the instantaneous maximum. Table A of the Ocean Plan requires that the effluent instantaneous maximum not exceed 225 NTU. Because the Table A limitation is more stringent than the limitation contained in the previous Order, an instantaneous maximum effluent limitation of 225 NTU has been established in this Order. These limitations are based on the requirements of Table A of the Ocean Plan.

The following table summarizes technology-based effluent limitations established by the Order.

Table F-9. Technology-Based Effluent Limitations

Parameter	Units	Effluent Limitations		
		Average Monthly	Average Weekly	Maximum Daily
CBOD ^[1]	mg/L	25	40	85
	lbs/day ^[2]	310	500	1,100
TSS ^[1]	mg/L	30	45	90
	lbs/day ^[2]	380	570	1,100
Oil & Grease	mg/L	25	40	75
	lbs/day ^[2]	310	500	940
Settleable Solids	mL/L	1.0	1.5	3.0
Turbidity	NTU	75	100	225

pH	standard units	6.0 – 9.0 ^[3]
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^[1] The average monthly percent removal for CBOD and TSS shall not be less than 85 percent.

^[2] Mass-based effluent limitations were calculated using the following formula:

lbs/day = pollution concentration (mg/L) * Design flow (1.5 MGD) * conversion factor (8.34)

^[3] Applied as an instantaneous minimum and maximum.

C. Water Quality-Based Effluent Limitations

1. Scope and Authority

NPDES regulations at 40 CFR 122.44(d) require that permits include limitations more stringent than applicable federal technology-based requirements where necessary to achieve applicable water quality standards, including numeric and narrative objectives within a standard.

The process for determining “reasonable potential” and calculating WQBELs, when necessary, is intended to protect the designated uses of receiving waters as specified in the Basin and Ocean Plans and achieve applicable WQOs and criteria that are contained in the Basin Plan and in other applicable State and federal rules, plans, and policies, including applicable water quality criteria from the Ocean Plan.

Where reasonable potential has been established for a pollutant, but there is no numeric criterion or objective for the pollutant, WQBELs must be established in accordance with the requirements of 40 CFR 122.44(d)(1)(vi), using (1) USEPA criteria guidance under CWA section 304(a), supplemented where necessary by other relevant information; (2) an indicator parameter for the pollutant of concern; or (3) a calculated numeric water quality criterion, such as a proposed state criterion or policy interpreting the state’s narrative criterion, supplemented with other relevant information.

2. Applicable Beneficial Uses and Water Quality Objectives

Beneficial uses for ocean waters of the Central Coast Region are established by the Basin Plan and Ocean Plan and are described in section III.C of the this Fact Sheet.

Water quality criteria applicable to ocean waters of the Region are established by the Ocean Plan, which includes WQOs for bacterial characteristics, physical characteristics, and radioactivity. The WQOs from the Ocean Plan are incorporated as receiving water limitations in this Order. In addition, Table B of the Ocean Plan contains numeric WQOs for 83 toxic pollutants for the protection of marine aquatic life and human health. Pursuant to NPDES regulations at 40 CFR 122.44(d)(1), and in accordance with procedures established by the Ocean Plan (2009), the Central Coast Water Board has performed a reasonable potential analysis (RPA) to determine the need for effluent limitations for Table B toxic pollutants.

3. Determining the Need for WQBELs

Procedures for performing a RPA for ocean dischargers are described in Section III.C and Appendix VI of the Ocean Plan. The procedure is a statistical method that projects an effluent data set while taking into account the averaging period of WQOs, the long term variability of pollutants in the effluent, limitations associated with sparse data sets, and uncertainty associated with censored data sets. The procedure assumes a lognormal distribution of the effluent data set, and compares the 95th percentile concentration at 95 percent confidence of each Table B pollutant, accounting for dilution, to the applicable water quality criterion. The RPA results in one of three following endpoints:

- Endpoint 1 - There is “reasonable potential”. An effluent limitation must be developed for the pollutant. Effluent monitoring for the pollutant, consistent with the monitoring frequency in Appendix III (Ocean Plan), is required.
- Endpoint 2 - There is no “reasonable potential”. An effluent limitation is not required for the pollutant. Appendix III (Ocean Plan) effluent monitoring is not required for the pollutant; the Central Coast Board, however, may require occasional monitoring for the pollutant or for whole effluent toxicity as appropriate.
- Endpoint 3 - The RPA is inconclusive. Monitoring for the pollutant or whole effluent toxicity testing consistent with the monitoring frequency in Appendix III (Ocean Plan) is required. An existing effluent limitation for the pollutant shall remain in the permit, otherwise the permit shall include a reopener clause to allow for subsequent modification of the permit to include an effluent limitation if monitoring establishes that the discharge causes, has the reasonable potential to cause, or contribute to an excursion above a Table B water quality objective.

The State Water Board has developed a reasonable potential calculator, which is available at:

http://www.swrcb.ca.gov/water_issues/programs/ocean/docs/trirev/stakeholder050505/rp_calc20_setup.exe

The calculator (RPcalc 2.0) was used in the development of this Order and considers several pathways in the determination of reasonable potential.

a. First Path

If available information about the receiving water or the discharge supports a finding of reasonable potential without analysis of effluent data, the Central Coast Water Board may decide that WQBELs are necessary after a review of such information. Such information may include: the facility or discharge type, solids loading, lack of dilution, history of compliance problems, potential toxic effects, fish tissue data, 303(d) status of the receiving water, the presence of threatened or endangered species or their critical habitat, or other information.

b. Second Path

If any pollutant concentration, adjusted to account for dilution, is greater than the most stringent applicable WQO, there is reasonable potential for that pollutant.

c. Third Path

If the effluent data contains three or more detected and quantified values (i.e., values that are at or above the minimum level (ML)), and all values in the data set are at or above the ML, a parametric RPA is conducted to project the range of possible effluent values. The 95th percentile concentration is determined at 95 percent confidence for each pollutant, and compared to the most stringent applicable water quality objective to determine reasonable potential. A parametric analysis assumes that the range of

possible effluent values is distributed lognormally. If the 95th percentile value is greater than the most stringent applicable water quality objective, there is reasonable potential for that pollutant.

d. Fourth Path

If the effluent data contains three or more detected and quantified values (i.e., values that are at or above the ML), but at least one value in the data set is less than the ML, a parametric RPA is conducted according to the following steps.

- i. If the number of censored values (those expressed as a “less than” value) account for less than 80 percent of the total number of effluent values, calculate the M_L (the mean of the natural log of transformed data) and S_L (the standard deviation of the natural log of transformed data) and conduct a parametric RPA, as described above for the Third Path.
- ii. If the total number of censored values account for 80 percent of the total number of effluent values, conduct a non-parametric RPA, as described below for the Fifth Path. (A non-parametric analysis becomes necessary when the effluent data is limited, and no assumptions can be made regarding its possible distribution.)

e. Fifth Path

A non-parametric RPA is conducted when the effluent data set contains less than three detected and quantified values, or when the effluent data set contains three or more detected and quantified values but the number of censored values accounts for 80 percent or more of the total of effluent values. A non-parametric analysis is conducted by ordering the data, comparing each result to the applicable WQO, and accounting for ties. The sample number is reduced by one for each tie, when the dilution-adjusted method detection limit (MDL) is greater than the water quality objective. If the adjusted sample number, after accounting for ties, is greater than 15, the pollutant has no reasonable potential to exceed the WQO. If the sample number is 15 or less, the RPA is inconclusive, monitoring is required, and any existing effluent limits in the expiring permit are retained.

In this case, a RPA was conducted using effluent monitoring data from September 2007 until May 2011. The implementation provisions for Table B in Section III.C of the Ocean Plan specify that the minimum initial dilution is the lowest average initial dilution within any single month of the year. Dilution estimates shall be based on observed waste flow characteristics, observed receiving water density structure, and the assumption that no currents of sufficient strength to influence the initial dilution process flow across the discharge structure. Order No. R3-2006-0084 determined the minimum initial dilution factor (D_m) for the discharge to be 89 to 1 (seawater to effluent). The Discharger has indicated that no additions or modifications to the Facility have been proposed that would alter the previously determined dilution characteristics. Therefore, the previous D_m of 89 to 1 will be retained from the current Order and applied to WQBELs established herein. If the actual dilution ratio is found to be different, then the ratio will be recalculated and this Order may be reopened when and as appropriate.

A summary of the RPA results is provided below.

Table F-10. RPA Results

Parameter	Units	n ^[1]	MEC ^{[2],[3]}	Most Stringent Criteria	Background	RPA Endpoint ^[4]
Arsenic	µg/L	5	1.056	8 ^[5]	3 ^[6]	3
Cadmium	µg/L	5	0.064	1 ^[5]	0	3
Chromium, Hexavalent	µg/L	5	<5	2 ^[5]	0	3
Copper	µg/L	5	10	3 ^[5]	2 ^[6]	2
Lead	µg/L	5	0.985	2 ^[5]	0	2
Mercury	µg/L	5	0.03	0.04 ^[5]	0.0005 ^[6]	3
Nickel	µg/L	5	3.337	5 ^[5]	0	2
Selenium	µg/L	5	3	15 ^[5]	0	3
Silver	µg/L	5	0.123	0.7 ^[5]	0.16 ^[6]	3
Zinc	µg/L	5	60	20 ^[5]	8 ^[6]	2
Cyanide	µg/L	5	10	1 ^[5]	0	3
Total Residual Chlorine	µg/L	1,429	0.2	2 ^[5]	0	1 ^[20]
Ammonia	µg/L	47	1,700	600 ^[5]	0	2
Acute Toxicity	TUa	5	0.72	0.3 ^[7]	0	3
Chronic Toxicity	TUc	20	>10	1 ^[7]	0	2
Phenolic Compounds ^[8]	µg/L	5	<0.67	30 ^[5]	0	3
Chlorinated Phenolics ^[9]	µg/L	5	<0.54	1 ^[5]	0	3
Endosulfan ^[10]	µg/L	5	<0.948	0.009 ^[5]	0	3
Endrin	µg/L	5	<0.948	0.002 ^[5]	0	3
HCH ^[11]	µg/L	5	<0.000948	0.004 ^[5]	0	3
Radioactivity	pCi/L	--	--	^[12]	0	--
Acrolein	µg/L	5	<1.9	220 ^[13]	0	3
Antimony	µg/L	5	0.755	1,200 ^[13]	0	3
Bis(2-chloroethoxyl)methane	µg/L	5	<0.54	4.4 ^[13]	0	3
Bis(2-chloroisopropyl)ether	µg/L	5	<0.41	1,200 ^[13]	0	3
Chlorobenzene	µg/L	5	<0.11	570 ^[13]	0	3
Chromium (III)	µg/L	5	0.35	190,000 ^[13]	0	3
Di-n-butyl phthalate	µg/L	5	<0.66	3,500 ^[13]	0	3
Dichlorobenzenes ^[14]	µg/L	5	<0.12	5,100 ^[13]	0	3
Diethyl phthalate	µg/L	5	<0.53	33,000 ^[13]	0	3
Dimethyl phthalate	µg/L	5	<0.43	820,000 ^[13]	0	3
4,6-Dinitro-2-methylphenol	µg/L	5	<0.46	220 ^[12]	0	3
2,4-Dinitrophenol	µg/L	5	<2	4.0 ^[12]	0	3
Ethylbenzene	µg/L	5	<0.15	4,100 ^[13]	0	3
Fluoranthene	µg/L	5	<0.53	15 ^[13]	0	3
Hexachlorocyclopentadiene	µg/L	5	<0.49	58 ^[13]	0	3
Nitrobenzene	µg/L	5	<0.65	4.9 ^[13]	0	3
Thallium	µg/L	5	10	2 ^[13]	0	3
Toluene	µg/L	5	<0.19	85,000 ^[13]	0	3
Tributyltin	µg/L	4	0.0014	0.0014 ^[13]	0	3
1,1,1-Trichloroethane	µg/L	5	<0.1	540,000 ^[13]	0	3
Acrylonitrile	µg/L	5	<0.5	0.10 ^[13]	0	3
Aldrin	µg/L	5	<0.000948	0.000022 ^[13]	0	3

Parameter	Units	n ^[1]	MEC ^{[2],[3]}	Most Stringent Criteria	Background	RPA Endpoint ^[4]
Benzene	µg/L	5	<0.077	5.9 ^[13]	0	3
Benzidine	µg/L	5	<1.8	0.000069 ^[13]	0	3
Beryllium	µg/L	5	<0.2	0.033 ^[13]	0	3
Bis(2-chloroethyl) ether	µg/L	5	<0.51	0.045 ^[13]	0	3
Bis(2-ethylhexyl) phthalate	µg/L	5	15	3.5 ^[13]	0	2
Carbon tetrachloride	µg/L	5	<0.11	0.90 ^[13]	0	3
Chlordane ^[15]	µg/L	5	<0.000948	0.000023 ^[13]	0	3
Chlorodibromomethane	µg/L	5	38.2	8.6 ^[13]	0	2
Chloroform	µg/L	5	23.4	130 ^[13]	0	2
DDT ^[16]	µg/L	5	0.0028	0.00017 ^[13]	0	3
1,4-Dichlorobenzene	µg/L	5	<0.43	18 ^[13]	0	3
3,3-Dichlorobenzidine	µg/L	5	<0.69	0.0081 ^[13]	0	3
1,2-Dichloroethane	µg/L	5	<0.2	28 ^[13]	0	3
1,1-Dichloroethylene	µg/L	5	<0.17	0.9 ^[13]	0	3
Dichlorobromomethane	µg/L	5	26.9	6.2 ^[13]	0	2
Dichloromethane	µg/L	--	--	450 ^[13]	0	3
1,3-Dichloropropene	µg/L	5	<0.14	8.9 ^[13]	0	3
Dieldrin	µg/L	5	<0.000948	0.00004 ^[13]	0	3
2,4-Dinitrotoluene	µg/L	5	<0.56	2.6 ^[13]	0	3
1,2-Diphenylhydrazine	µg/L	5	<0.52	0.16 ^[13]	0	3
Halomethanes ^[17]	µg/L	5	14.6	130 ^[13]	0	2
Heptachlor	µg/L	5	<0.000948	0.00005 ^[13]	0	3
Heptachlor Epoxide	µg/L	5	<0.948	0.00002 ^[13]	0	3
Hexachlorobenzene	µg/L	5	<0.39	0.00021 ^[13]	0	3
Hexachlorobutadiene	µg/L	5	<0.37	14 ^[13]	0	3
Hexachloroethane	µg/L	5	<0.38	2.5 ^[13]	0	3
Isophorone	µg/L	5	<0.53	730 ^[13]	0	3
N-nitrosodimethylamine	µg/L	5	<0.6	7.3 ^[13]	0	3
N-nitrosodi-N-propylamine	µg/L	5	<0.54	0.38 ^[13]	0	3
N-nitrosodiphenylamine	µg/L	5	<0.5	2.5 ^[13]	0	3
PAHs ^[18]	µg/L	5	0.063	0.0088 ^[13]	0	3
PCBs ^[19]	µg/L	5	<0.057	0.000019 ^[13]	0	3
TCDD equivalents ^[20]	µg/L	4	<7.9x10 ⁻¹⁰	3.9x10 ⁻⁹ ^[13]	0	3
1,1,2,2-Tetrachloroethane	µg/L	5	<0.27	2.3 ^[13]	0	3
Tetrachloroethylene	µg/L	5	<0.16	2.0 ^[13]	0	3
Toxaphene	µg/L	5	<0.00948	0.00021 ^[13]	0	3
Trichloroethylene	µg/L	5	<0.093	27 ^[13]	0	3
1,1,2-Trichloroethane	µg/L	5	0.874	9.4 ^[13]	0	3
2,4,6-Trichlorophenol	µg/L	5	<0.47	0.29 ^[13]	0	3
Vinyl Chloride	µg/L	5	<0.12	36 ^[13]	0	3

NA = Not Available

^[1] Number of data points available for the RPA.

^[2] If there is a detected value, the highest reported value is summarized in the table. If there are no detected values, the lowest MDL is summarized in the table.

^[3] Note that the reported MEC does not account for dilution. The RPA does account for dilution; therefore it is possible for a parameter with an MEC in exceedance of the most stringent criteria not to present a RP (i.e. Endpoint 1).

^[4] End Point 1 – RP determined, limit required, monitoring required.

Parameter	Units	n ^[1]	MEC ^{[2],[3]}	Most Stringent Criteria	Background	RPA Endpoint ^[4]
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End Point 2 – Discharger determined not to have RP, monitoring may be established.

End Point 3 – RPA was inconclusive, carry over previous limits if applicable, and establish monitoring.

^[5] Based on the 6-Month Median in the Table B of the Ocean Plan.

^[6] Background concentrations contained in Table C of the Ocean Plan.

^[7] Based on the Daily Maximum in Table B of the Ocean Plan.

^[8] Non-chlorinated phenolic compounds represent the sum of 2,4-dimethylphenol; 4,6-dinitro-2-methylphenol; 2,3-dinitrophenol; 2-methylphenol; 4-methylphenol; 2-nitrophenol; 4-nitrophenol, and phenol.

^[9] Chlorinated phenolic compounds represent the sum of 4-chloro-3-methylphenol; 2-chlorophenol; pentachlorophenol; 2,4,5-trichlorophenol; and 2,4,6-trichlorophenol.

^[10] Endosulfan represents the sum of alpha-endosulfan, beta-endosulfan, and endosulfan sulfate.

^[11] HCH (hexachlorocyclohexane) represents the sum of the alpha, beta, gamma (Lindane), and delta isomers of hexachlorocyclohexane.

^[12] Not to exceed limits specified in Title 17, Division 1, Chapter 5, Subchapter 4, Group 3, Article 3, Section 30253 of the California Code of Regulations. Radioactivity at levels that exceed the applicable criteria are not expected in the discharge.

^[13] Based on 30-Day Average in Table B of the Ocean Plan.

^[14] Dichlorobenzenes represent the sum of 1,2- and 1,3-dichlorobenzene.

^[15] Chlordane represents the sum of chlordane-alpha, chlordane-gamma, chlordene-alpha, chlordene-gamma, nonachlor-alpha, nonachlor-gamma, and oxychlordane.

^[16] DDT represents the sum of 4,4'DDT; 2,4'DDT; 4,4'DDE; 2,4'DDE; 4,4'DDD; and 2,4'DDD.

^[17] Halomethanes represent the sum of bromoform, bromomethane (methyl bromide), and chloromethane (methyl chloride).

^[18] PAHs (polynuclear aromatic hydrocarbons) represent the sum of acenaphthalene; anthracene; 1,2-benzanthracene; 3,4-benzofluoranthene; benzo[k]fluoranthene; 1,12-benzoperylene; benzo[a]pyrene; chrysene; dibenzo[a,h]anthracene; fluorene; indeno[1,2,3-cd]pyrene; phenanthrene; and pyrene.

^[19] PCBs (polychlorinated biphenyls) represent the sum of chlorinated biphenyls whose analytical characteristics resemble those of Aroclor-1016, Aroclor-1221, Aroclor-1232, Aroclor-1242, Aroclor-1248, Aroclor-1254, and Aroclor-1260.

^[20] End Point 1 was determined for Total Residual Chlorine based on Step 13 of Appendix VI of the Ocean Plan because the Discharger retains the ability to chlorinate effluent.

^[21] TCDD equivalents represent the sum of concentrations of chlorinated dibenzodioxins (2,3,7,8-CDDs) and chlorinated dibenzofurans (2,3,7,8-CDFs) multiplied by their respective toxicity factors, as shown by the table below. USEPA Method 8280 may be used to analyze TCDD equivalents.

Isomer Group	Toxicity Equivalence Factor
2,3,7,8 – tetra CDD	1.0
2,3,7,8 – penta CDD	0.5
2,3,7,8 – hexa CDD	0.1
2,3,7,8 – hepta CDD	0.01
octa CDD	0.001
2,3,7,8 – tetra CDF	0.1
1,2,3,7,8 – penta CDF	0.05
2,3,4,7,8 – penta CDF	0.5
2,3,7,8 – hexa CDFs	0.1
2,3,7,8 – hepta CDFs	0.01
Octa CDF	0.001

In Order No. R3-2006-0084, the Central Coast Water Board established effluent limitations for all pollutants contained in Table B. As detailed in Table F-9, many pollutants resulted in Endpoint 3, pursuant to the requirements of the Ocean Plan, effluent limitations for these parameters have been retained. Effluent limitations have been relaxed for ammonia, bis(2-ethylhexyl) phthalate, bromodichloromethane, chlorodibromomethane, chloroform, total recoverable copper, chronic toxicity, halomethanes, total recoverable lead, total recoverable nickel, and total recoverable zinc which displayed an Endpoint 2. Endpoint 1 was determined based on Step 13 of Appendix VI of the Ocean Plan for total chlorine residual.

4. WQBEL Calculations

- a. From the Table B WQOs in the Ocean Plan, effluent limitations in Order No. R3-2006-0084 were calculated according to the following equation for all pollutants, except for acute toxicity (if applicable) and radioactivity:

$C_e = C_o + D_m (C_o - C_s)$ where,

C_e = the effluent limitation ($\mu\text{g/L}$)

C_o = the WQO to be met at the completion of initial dilution ($\mu\text{g/L}$)

C_s = background seawater concentration

D_m = minimum probable initial dilution expressed as parts seawater per part wastewater

- b. Initial dilution (D_m) has been determined to be 89 to 1 by the Central Coast Water Board.
- c. Table C of the Ocean Plan establishes background concentrations for some pollutants to be used when determining reasonable potential (represented as " C_s "). In accordance with Table B implementing procedures, C_s equals zero for all pollutants not established in Table C. The background concentrations provided in Table C are summarized below:

Table F-11. Pollutants Having Background Concentrations

Pollutant	Background Seawater Concentration
Arsenic	3 $\mu\text{g/L}$
Copper	2 $\mu\text{g/L}$
Mercury	0.0005 $\mu\text{g/L}$
Silver	0.16 $\mu\text{g/L}$
Zinc	8 $\mu\text{g/L}$

- d. A summary of WQBELs established for Discharge Point No. 001 in this Order are provided in Table F-11a – Table F-11c, below.

Table F-12a. Effluent Limitations, Protection of Marine Aquatic Life

Parameter	Units	6-Month Median ^[1]	Daily Maximum ^[2]	Instantaneous Maximum ^[3]
Arsenic, Total Recoverable	$\mu\text{g/L}$	450	2,600	6,900
	lbs/day	5.7	33	87
Cadmium, Total Recoverable	$\mu\text{g/L}$	90	360	900
	lbs/day	1.1	4.5	11
Chromium (VI), Total Recoverable ^[4]	$\mu\text{g/L}$	180	720	1,800
	lbs/day	2.3	9.0	23
Mercury, Total Recoverable	$\mu\text{g/L}$	3.6	14	36
	lbs/day	0.044	0.17	0.44
Selenium, Total Recoverable	$\mu\text{g/L}$	1,400	5,400	14,000
	lbs/day	17	68	170
Silver, Total Recoverable	$\mu\text{g/L}$	49	240	620

Parameter	Units	6-Month Median ^[1]	Daily Maximum ^[2]	Instantaneous Maximum ^[3]
	lbs/day	0.61	3.0	7.7
Cyanide, Total Recoverable ^[5]	µg/L	90	360	900
	lbs/day	1.1	4.5	11
Total Chlorine Residual	µg/L	180	720	5,400
	lbs/day	2.2	9.0	68
Phenolic Compounds (non-chlorinated)	µg/L	2,700	11,000	27,000
	lbs/day	34	140	340
Acute Toxicity	TUc	--	3.0	--
Chlorinated Phenolics	µg/L	90	360	900
	lbs/day	1.1	4.5	11
Endosulfan	µg/L	0.81	1.6	2.4
	lbs/day	0.010	0.020	0.030
Endrin	µg/L	0.18	0.36	0.54
	lbs/day	0.0023	0.0045	0.0068
HCH	µg/L	0.36	0.72	1.1
	lbs/day	0.0045	0.0090	0.014
Radioactivity	^[6]			

^[1] The six-month median shall apply as a moving median of daily values for any 180-day period in which daily values represent flow weighted average concentrations within a 24-hour period. For intermittent discharges, the daily value shall be considered equal to zero for days on which no discharge occurred. The six-month median limit on daily mass emissions shall be determined using the six-month median effluent concentration C_e and the observed flow rate, Q , in million gallons per day (MGD).

^[2] The daily maximum shall apply to flow weighted 24-hour composite samples. The daily maximum mass emission shall be determined using the daily maximum effluent concentration limit as C_e and the observed flow rate, Q , in MGD.

^[3] The instantaneous maximum shall apply to grab sample determinations.

^[4] The Discharger may, at their option, meet this limitation as a total chromium limitation.

^[5] If a Discharger can demonstrate to the satisfaction of the Central Coast Water Board (subject to USEPA approval) that an analytical method is available to reliably distinguish between strongly and weakly complexed cyanide, effluent limitations for cyanide may be met by the combined measurement of free cyanide, simple alkali metal cyanides, and weakly complexed organometallic cyanide complexes. In order for the analytical method to be acceptable, the recovery of free cyanide from metal complexes must be comparable to that achieved by the approved method in 40 CFR 136.

^[6] Radioactivity is not to exceed limits specified in Title 17, Division 1, Chapter 5, Subchapter 4, Group 3, Article 3, Section 30253 of the California Code of Regulations. Reference to Section 30253 is prospective including future changes to incorporate provisions of federal law, as the changes take effect.

Table F-12b. Effluent Limitations, Protection of Human Health – Non-Carcinogens

Parameter	Units	30-day Average
Acrolein	µg/L	20,000
	lbs/day	250
Antimony	µg/L	110,000
	lbs/day	1,400

Parameter	Units	30-day Average
Bis(2-Chloroethoxy)Methane	µg/L	400
	lbs/day	5.0
Bis(2-Chloroisopropyl)Ether	µg/l	110,000
	lbs/day	1,400
Chlorobenzene	µg/L	51,000
	lbs/day	640
Chromium (III)	µg/L	17,000,000
	lbs/day	210,000
Di-n-butyl Phthalate	µg/L	320,000
	lbs/day	3,900
Dichlorobenzenes	µg/L	460,000
	lbs/day	5,700
Diethyl Phthalate	µg/L	2,300,000
	lbs/day	37,000
Dimethyl Phthalate	µg/L	74,000,000
	lbs/day	920,000
4,6-Dinitro-2-Methylphenol	µg/L	20,000
	lbs/day	250
2,4-Dinitrophenol	µg/L	360
	lbs/day	4.5
Ethylbenzene	µg/L	370,000
	lbs/day	4,600
Fluoranthene	µg/L	1,400
	lbs/day	17
Hexachlorocyclopentadiene	µg/L	5,200
	lbs/day	65
Nitrobenzene	µg/L	440
	lbs/day	5.5
Thallium	µg/L	180
	lbs/day	2.3
Toluene	µg/L	7,700,000
	lbs/day	96,000
Tributyltin	µg/L	0.13
	lbs/day	0.0016
1,1,1-Trichloroethane	µg/L	49,000,000
	lbs/day	610,000

Table F-12c. Effluent Limitations, Protection of Human Health – Carcinogens

Parameter	Units	30-day Average
Acrylonitrile	µg/L	9.0
	lbs/day	0.11
Aldrin	µg/L	0.0020
	lbs/day	0.000025

Parameter	Units	30-day Average
Benzene	µg/L	530
	lbs/day	6.6
Benzidine	µg/L	0.0062
	lbs/day	0.000078
Beryllium	µg/L	3.0
	lbs/day	0.037
Bis(2-Chloroethyl)Ether	µg/L	4.1
	lbs/day	0.051
Carbon Tetrachloride	µg/L	81
	lbs/day	1.0
Chlordane ^[1]	µg/L	0.0021
	lbs/day	0.000026
DDT ^[2]	µg/L	0.015
	lbs/day	0.00019
1,4-Dichlorobenzene	µg/L	1,600
	lbs/day	20
3,3'-Dichlorobenzidine	µg/L	0.73
	lbs/day	0.0091
1,2-Dichloroethane	µg/L	2,500
	lbs/day	32
1,1-Dichloroethylene	µg/L	81
	lbs/day	1.0
Dichloromethane	µg/L	41,000
	lbs/day	510
1,3-Dichloropropene	µg/L	800
	lbs/day	10
Dieldrin	µg/L	0.0036
	lbs/day	0.000045
2,4-Dinitrotoluene	µg/L	230
	lbs/day	2.9
1,2-Diphenylhydrazine	µg/L	14
	lbs/day	0.18
Heptachlor ^[3]	µg/L	0.0045
	lbs/day	0.000056
Heptachlor Epoxide	µg/L	0.0018
	lbs/day	0.000023
Hexachlorobenzene	µg/L	0.019
	lbs/day	0.00024
Hexachlorobutadiene	µg/L	1,300
	lbs/day	16
Hexachloroethane	µg/L	230
	lbs/day	2.8
Isophorone	µg/L	66,000

Parameter	Units	30-day Average
	lbs/day	820
N-Nitrosodimethylamine	µg/L	660
	lbs/day	8.2
N-nitrosodi-N-propylamine	µg/L	34
	lbs/day	0.43
N-Nitrosodiphenylamine	µg/L	230
	lbs/day	2.8
PAHs ^[4]	µg/L	0.79
	lbs/day	0.0099
PCBs ^[5]	µg/L	0.0017
	lbs/day	0.000021
TCDD Equivalents ^[6]	µg/L	3.5×10^{-7}
	lbs/day	4.4×10^{-9}
1,1,2,2-Tetrachloroethane	µg/L	210
	lbs/day	2.6
Tetrachloroethylene	µg/L	180
	lbs/day	2.3
Toxaphene	µg/L	0.019
	lbs/day	0.00024
Trichloroethylene	µg/L	2,400
	lbs/day	30
1,1,2-Trichloroethane	µg/L	850
	lbs/day	11
2,4,6-Trichlorophenol	µg/L	26
	lbs/day	0.33
Vinyl Chloride	µg/L	3,200
	lbs/day	41

^[1] Chlordane shall mean the sum of chlordane-alpha, chlordane-gamma, nonachlor-alpha, nonachlor-gamma, and oxychlordane.

^[2] DDT shall mean the sum of 4,4'-DDT, 2,4'-DDT, 4,4'-DDE, 4,4'-DDD, and 2,4'-DDD.

^[3] Heptachlor shall mean the sum of heptachlor and heptachlor epoxide.

^[4] PAHS (Polynuclear aromatic hydrocarbons) shall mean the sum of acenaphthylene, anthracene, 1,2-benzanthracene, 3,4-benzofluoranthene, benzo(k)fluoranthene, 1,12-benzoperylene, benzo(a)pyrene, chrysene, dibenzo(a,h)anthracene, fluorene, indeno(1,2,3-cd)pyrene, phenanthrene, pyrene.

^[5] PCBs (polychlorinated biphenyls) shall mean the sum of chlorinated biphenyls whose analytical characteristics resemble those of Aroclor-1016, Aroclor-1221, Aroclor-1232, Aroclor-1242, Aroclor-1248, Aroclor-1254, and Aroclor-1260.

^[6] TCDD Equivalents shall mean the sum of those concentrations of chlorinated dibenzodioxins (2,3,7,8-CDDs) and chlorinated dibenzofurans (2,3,7,8-CDFs) multiplied by their respective toxicity factors, as listed in Appendix I of the Ocean Plan.

Effluent limitations derived from Ocean Plan Table B shall apply to the Discharger's final effluent. Additionally, the discharge of waste shall not cause WQOs established in Table B to be exceeded in the receiving water upon completion of initial dilution, except that objectives indicated for radioactivity shall apply directly to the undiluted waste effluent.

5. Whole Effluent Toxicity (WET)

WET limitations protect receiving water quality from the aggregated toxic effect of a mixture of pollutants in effluent. WET tests measure the degree of response of exposed aquatic test organisms to an effluent. The WET approach allows for protection of the narrative “no toxics in toxic amounts” criterion while implementing numeric criteria for toxicity. There are two types of WET tests - acute and chronic. An acute toxicity test is conducted over a short time period and measures mortality. A chronic toxicity test is conducted over a longer period of time and may measure mortality, reproduction, and growth.

Order No. R3-2006-0084 established effluent limitations and annual monitoring requirements for acute and chronic toxicity. The RPA results, summarized in Table F-9 of this Fact Sheet, indicate that the RPA for acute toxicity was inconclusive, and that chronic toxicity does not appear to have reasonable potential to exceed water quality objectives. Thus, the effluent limitations for acute toxicity established in the previous Order, and based on the requirements of the Ocean Plan, have been carried over. Because the RPA indicates that no reasonable potential for chronic toxicity exists, the effluent limitation for chronic toxicity has been removed. However, the Ocean Plan requires that if the minimum initial dilution of the effluent is below 100:1 at the edge of the mixing zone, then discharges shall conduct chronic toxicity testing. Thus, since the minimum initial dilution is 89:1, annual monitoring for chronic toxicity has been carried over.

The Discharger may be required to implement a Toxicity Reduction Evaluation (TRE) Workplan, as described in section VI.C.2.a of the Order. When monitoring measures WET in the effluent above the limitations established by the Order, the Discharger must resample, if the discharge is continuing, and retest. The Executive Officer will then determine whether to initiate enforcement action, whether to require the Discharger to implement a TRE, or to implement other measures.

6. Bacteria

- a. **Total Coliform.** The 7-day median total coliform effluent limitation (23 MPN/100 mL) and the maximum daily limitation (2,300 MPN/100 mL) were first established in Order No. 01-116 and have been retained in subsequent Orders. These limitations were established on the basis of the California Department of Health Services' *Uniform Guidelines for Wastewater Disinfection*. Consistent with previous Orders and with anti-backsliding provisions, this Order retains these limitations for total coliform bacteria.

D. Final Effluent Limitations

Final technology-based and water quality-based effluent limitations established by the Order are discussed in the preceding sections of the Fact Sheet.

1. Satisfaction of Anti-Backsliding Requirements.

Provisions of the Order are consistent with applicable antidegradation policy expressed by NPDES regulations at 40 CFR 131.12 and by State Water Board Resolution No. 68-16.

Sections 402(o)(2) and 303(d)(4) of the CWA and federal regulations at title 40, Code of Federal Regulations section 122.44(l) prohibit backsliding in NPDES permits. These anti-

backsliding provisions require effluent limitations in a reissued permit to be as stringent as those in the previous permit, with some exceptions where limitations may be relaxed.

The Order retains effluent limitations equal to those established by the previous Order for most parameters. More stringent effluent limitations have been established for 30-day average mass emission rate limitations (bis(2-chloroethyl) ether and chlordane), for 30-day concentration based limitations (aldrin and tributyltin) and for 6-month median, daily maximum, and instantaneous maximum mass emission rate limitations (endosulfan). Further, new effluent limitations for oil and grease, settleable solids, and turbidity have been established in this Order as described in section IV.C.4, of this Fact Sheet.

Effluent limitations contained in the previous Order for aldrin, bis(2-chloroethyl) ether, chlordane, and endosulfan were computed to one significant figure while the newly established effluent limitations were computed to two significant figures. For example, the 30-day average effluent limitation for bis(2-chloroethyl) ether in the previous Order was 0.05 µg/L and the newly established effluent limitation is 0.051 µg/L. The new limitations are more stringent than the limitation contained in the previous Order and do not violate anti-backsliding requirements because compliance for effluent limitations is evaluated at the least significant digit; e.g., under the previous Order's limitations, a bis(2-chloroethyl) ether effluent concentration of 0.054 µg/L would not be considered an effluent limitation exceedance since values are rounded to the least significant digit in the effluent limitation (i.e., an effluent concentration of 0.054 µg/L is, for compliance purposes, evaluated as an effluent concentration of 0.05 µg/L). However, it would be considered an exceedance of the effluent limitation contained in this Order.

Effluent limitations for total recoverable copper, total recoverable lead, total recoverable nickel, total recoverable zinc, ammonia, chronic toxicity, bis(2-ethylhexyl)phthalate, chlorodibromomethane, chloroform, dichlorobromomethane, and halomethanes have been removed based on the results of the RPA. The removal of the effluent limitations for these parameters is based on the availability of new information including available effluent data and a material and a substantial alteration to the permitted facility, and is consistent with the requirements of 40 CFR 122.44(i)(A) and (i)(B).

2. Satisfaction of Antidegradation Policy

Provisions of the Order are consistent with applicable anti-degradation policy expressed by NPDES regulations at 40 CFR 131.12 and by State Water Board Resolution No. 68-16. This Order does not authorize increases in discharge rates or pollutant loadings, and its limitations and conditions otherwise assure maintenance of the existing quality of receiving waters.

3. Stringency of Requirements for Individual Pollutants

This Order contains both technology-based and water quality based effluent limitations for individual pollutants. The technology-based effluent limitations consist of restrictions on CBOD, TSS, oil and grease, settleable solids. Restrictions on these pollutants are discussed in section IV.B of the Fact Sheet. This Order's technology-based pollutant restrictions implement the minimum, applicable federal technology-based requirements. In addition, this Order contains effluent limitations more stringent than the minimum, federal technology-based requirements that are necessary to meet water quality standards. These limitations are not more stringent than required by the CWA.

4. Summary of Final Effluent Limitations – Discharge Point No. 001

- a. The Discharger shall maintain compliance with the following effluent limitations at Discharge Point No. 001, with compliance measured at Monitoring Location EFF-001 as described in the attached Monitoring and Reporting Program (MRP) (Attachment E).

Table F-13a. Final Effluent Limitations

Parameter	Units	Effluent Limitations		
		Average Monthly	Average Weekly	Maximum Daily
Carbonaceous Biochemical Oxygen Demand (5-day @ 20°C) (CBOD) ^[1]	mg/L	25	40	85
	lbs/day	310	500	1,100
Total Suspended Solids (TSS) ^[1]	mg/L	30	45	90
	lbs/day	380	560	1,100
Oil and Grease	mg/L	25	40	75
	lbs/day	310	500	940
Settleable Solids	mL/L	1.0	1.5	3.0
pH	s.u.	6.0 – 9.0 ^[2]		
Turbidity	NTU	75	100	225

^[1] The average monthly percent removal for CBOD and TSS shall not be less than 85 percent.

^[2] When the Discharger continuously monitors effluent pH, levels shall be maintained within specified ranges 99 percent of the time. To determine 99 percent compliance, the following conditions shall be met:

- The total time during which pH is outside the range of 6.0 – 9.0 shall not exceed 7 hours and 26 minutes in any calendar month;
- No single excursion from the range of 6.0 – 9.0 shall exceed 30 minutes;
- No single excursion shall fall outside the range of 6.0 – 9.0; and
- When continuous monitoring is not being performed, standard compliance guidelines shall be followed (i.e., between 6.0 – 9.0 at all times, measured daily).

Table F-13b. Effluent Limitations, Protection of Marine Aquatic Life, Discharge Point No. 001

Parameter	Units	6-Month Median ^[1]	Daily Maximum ^[2]	Instantaneous Maximum ^[3]
Arsenic, Total Recoverable	µg/L	450	2,600	6,900
	lbs/day	5.7	33	87
Cadmium, Total Recoverable	µg/L	90	360	900
	lbs/day	1.1	4.5	11
Chromium (VI), Total Recoverable ^[4]	µg/L	180	720	1,800
	lbs/day	2.3	9.0	23
Mercury, Total Recoverable	µg/L	3.2	14	36
	lbs/day	0.039	0.17	0.44
Selenium, Total Recoverable	µg/L	1,400	5,400	14,000
	lbs/day	17	68	170
Silver, Total Recoverable	µg/L	49	240	620
	lbs/day	0.61	3.0	7.7
Cyanide, Total Recoverable ^[5]	µg/L	90	360	900
	lbs/day	1.1	4.5	11
Total Chlorine Residual	µg/L	180	720	5,400

Parameter	Units	6-Month Median ^[1]	Daily Maximum ^[2]	Instantaneous Maximum ^[3]
	lbs/day	2.2	9.0	68
Phenolic Compounds (non-chlorinated)	µg/L	2,700	11,000	27,000
	lbs/day	34	140	340
Acute Toxicity	TUc	--	3.0	--
Chlorinated Phenolics	µg/L	90	360	900
	lbs/day	1.1	4.5	11
Endosulfan	µg/L	0.81	1.6	2.4
	lbs/day	0.010	0.020	0.030
Endrin	µg/L	0.18	0.36	0.54
	lbs/day	0.0023	0.0045	0.0068
HCH	µg/L	0.36	0.72	1.1
	lbs/day	0.0045	0.0090	0.014
Radioactivity	^[6]			

^[1] The six-month median shall apply as a moving median of daily values for any 180-day period in which daily values represent flow weighted average concentrations within a 24-hour period. For intermittent discharges, the daily value shall be considered equal to zero for days on which no discharge occurred. The six-month median limit on daily mass emissions shall be determined using the six-month median effluent concentration C_e and the observed flow rate, Q , in million gallons per day (MGD).

^[2] The daily maximum shall apply to flow weighted 24-hour composite samples. The daily maximum mass emission shall be determined using the daily maximum effluent concentration limit as C_e and the observed flow rate, Q , in MGD.

^[3] The instantaneous maximum shall apply to grab sample determinations.

^[4] The Discharger may, at their option, meet this limitation as a total chromium limitation.

^[5] If a Discharger can demonstrate to the satisfaction of the Central Coast Water Board (subject to USEPA approval) that an analytical method is available to reliably distinguish between strongly and weakly complexed cyanide, effluent limitations for cyanide may be met by the combined measurement of free cyanide, simple alkali metal cyanides, and weakly complexed organometallic cyanide complexes. In order for the analytical method to be acceptable, the recovery of free cyanide from metal complexes must be comparable to that achieved by the approved method in 40 CFR 136.

^[6] Radioactivity is not to exceed limits specified in Title 17, Division 1, Chapter 5, Subchapter 4, Group 3, Article 3, Section 30253 of the California Code of Regulations. Reference to Section 30253 is prospective including future changes to incorporate provisions of federal law, as the changes take effect.

Table 13c. Effluent Limitations, Protection of Human Health – Non-Carcinogens, Discharge Point No. 001

Parameter	Units	30-day Average
Acrolein	µg/L	20,000
	lbs/day	250
Antimony	µg/L	110,000
	lbs/day	1,400
Bis(2-Chloroethoxy)Methane	µg/L	400
	lbs/day	5.0
Bis(2-Chloroisopropyl)Ether	µg/l	110,000
	lbs/day	1,400
Chlorobenzene	µg/L	51,000
	lbs/day	640
Chromium (III)	µg/L	17,000,000

Parameter	Units	30-day Average
	lbs/day	210,000
Di-n-butyl Phthalate	µg/L	320,000
	lbs/day	3,900
Dichlorobenzenes	µg/L	460,000
	lbs/day	5,700
Diethyl Phthalate	µg/L	2,300,000
	lbs/day	37,000
Dimethyl Phthalate	µg/L	74,000,000
	lbs/day	920,000
4,6-Dinitro-2-Methylphenol	µg/L	20,000
	lbs/day	250
2,4-Dinitrophenol	µg/L	360
	lbs/day	4.5
Ethylbenzene	µg/L	370,000
	lbs/day	4,600
Fluoranthene	µg/L	1,400
	lbs/day	17
Hexachlorocyclopentadiene	µg/L	5,200
	lbs/day	65
Nitrobenzene	µg/L	440
	lbs/day	5.5
Thallium	µg/L	180
	lbs/day	2.3
Toluene	µg/L	7,700,000
	lbs/day	96,000
Tributyltin	µg/L	0.13
	lbs/day	0.0016
1,1,1-Trichloroethane	µg/L	49,000,000
	lbs/day	610,000

**Table F-13d. Effluent Limitations, Protection of Human Health – Carcinogens,
Discharge Point No. 001**

Parameter	Units	30-day Average
Acrylonitrile	µg/L	9.0
	lbs/day	0.11
Aldrin	µg/L	0.0020
	lbs/day	0.000025
Benzene	µg/L	530
	lbs/day	6.6
Benzidine	µg/L	0.0062
	lbs/day	0.000078

Parameter	Units	30-day Average
Beryllium	µg/L	3.0
	lbs/day	0.037
Bis(2-Chloroethyl)Ether	µg/L	4.1
	lbs/day	0.051
Carbon Tetrachloride	µg/L	81
	lbs/day	1.0
Chlordane ^[1]	µg/L	0.0021
	lbs/day	0.000026
DDT ^[2]	µg/L	0.015
	lbs/day	0.00019
1,4-Dichlorobenzene	µg/L	1,600
	lbs/day	20
3,3'-Dichlorobenzidine	µg/L	0.73
	lbs/day	0.0091
1,2-Dichloroethane	µg/L	2,500
	lbs/day	32
1,1-Dichloroethylene	µg/L	81
	lbs/day	1.0
Dichloromethane	µg/L	41,000
	lbs/day	510
1,3-Dichloropropene	µg/L	800
	lbs/day	10
Dieldrin	µg/L	0.0036
	lbs/day	0.000045
2,4-Dinitrotoluene	µg/L	230
	lbs/day	2.9
1,2-Diphenylhydrazine	µg/L	14
	lbs/day	0.18
Heptachlor ^[3]	µg/L	0.0045
	lbs/day	0.000056
Heptachlor Epoxide	µg/L	0.0018
	lbs/day	0.000023
Hexachlorobenzene	µg/L	0.019
	lbs/day	0.00024
Hexachlorobutadiene	µg/L	1,300
	lbs/day	16
Hexachloroethane	µg/L	230
	lbs/day	2.8
Isophorone	µg/L	66,000
	lbs/day	820
N-Nitrosodimethylamine	µg/L	660
	lbs/day	8.2
N-nitrosodi-N-propylamine	µg/L	34
	lbs/day	0.43
N-Nitrosodiphenylamine	µg/L	230
	lbs/day	2.8

Parameter	Units	30-day Average
PAHs ^[4]	µg/L	0.79
	lbs/day	0.0099
PCBs ^[5]	µg/L	0.0017
	lbs/day	0.000021
TCDD Equivalents ^[6]	µg/L	3.5×10^{-7}
	lbs/day	4.4×10^{-9}
1,1,2,2-Tetrachloroethane	µg/L	210
	lbs/day	2.6
Tetrachloroethylene	µg/L	180
	lbs/day	2.3
Toxaphene	µg/L	0.019
	lbs/day	0.00024
Trichloroethylene	µg/L	2,400
	lbs/day	30
1,1,2-Trichloroethane	µg/L	850
	lbs/day	11
2,4,6-Trichlorophenol	µg/L	26
	lbs/day	0.33
Vinyl Chloride	µg/L	3,200
	lbs/day	41

^[1] Chlordane shall mean the sum of chlordane-alpha, chlordane-gamma, nonachlor-alpha, nonachlor-gamma, and oxychlordane.

^[2] DDT shall mean the sum of 4,4'-DDT, 2,4'-DDT, 4,4'-DDE, 4,4'-DDD, and 2,4'-DDD.

^[3] Heptachlor shall mean the sum of heptachlor and heptachlor epoxide.

^[4] PAHS (Polynuclear aromatic hydrocarbons) shall mean the sum of acenaphthylene, anthracene, 1,2-benzanthracene, 3,4-benzofluoranthene, benzo(k)fluoranthene, 1,12-benzoperylene, benzo(a)pyrene, chrysene, dibenzo(a,h)anthracene, fluorene, indeno(1,2,3-cd)pyrene, phenanthrene, pyrene.

^[5] PCBs (polychlorinated biphenyls) shall mean the sum of chlorinated biphenyls whose analytical characteristics resemble those of Aroclor-1016, Aroclor-1221, Aroclor-1232, Aroclor-1242, Aroclor-1248, Aroclor-1254, and Aroclor-1260.

^[6] TCDD Equivalents shall mean the sum of those concentrations of chlorinated dibenzodioxins (2,3,7,8-CDDs) and chlorinated dibenzofurans (2,3,7,8-CDFs) multiplied by their respective toxicity factors, as listed in Appendix I of the Ocean Plan.

b. Dry Weather Flow. Effluent average dry weather flow shall not exceed a monthly average of 1.5 MGD.

c. Bacteria.

i. Total Coliform

(a) The total coliform concentrations shall not exceed a median of 23 MPN/100 mL as determined from the last 7 days of sampling results for which analyses have been completed;

(b) No sample shall exceed 2,300 MPN/100 mL.

E. Interim Effluent Limitations – Not Applicable

F. Land Discharge Effluent Limitations and Specifications – Not Applicable

G. Reclamation Specifications – Not Applicable

V. RATIONALE FOR SURFACE RECEIVING WATER LIMITATIONS

A. Surface Water

Receiving water quality is a result of many factors, some unrelated to the discharge. This Order considers these factors and is designed to minimize the influence of the discharge on the receiving water. All receiving water limitations for Discharge Point No. 001 to the Pacific Ocean are retained from Order No. R3-2006-0084,

VI. RATIONALE FOR MONITORING AND REPORTING REQUIREMENTS

NPDES regulations at 40 CFR 122.48 require that all NPDES permits specify requirements for recording and reporting monitoring results. Water Code sections 13267 and 13383 also authorize the Central Coast Water Board to require technical and monitoring reports. Rationale for the monitoring and reporting requirements contained in the Monitoring and Reporting Program (MRP), which is presented as Attachment E of this Order, is presented below.

A. Influent Monitoring

In addition to influent flow monitoring, monitoring for CBOD and TSS is required to determine compliance with the Order's 85 percent removal requirement for those pollutants. Influent monitoring requirements have been retained from the previous Order with the exception for monitoring of daily flow. Monitoring for daily flow has not been retained and has instead been replaced with monitoring for total daily flow volume.

B. Effluent Monitoring

Effluent monitoring is necessary to determine compliance with effluent limitations and evaluate compliance with applicable water quality objectives and criteria. Effluent monitoring requirements from the previous Order for Discharge Point No. 001 are retained in this Order with the following exceptions:

1. Monitoring for daily flow has not been retained. Monitoring for total daily flow volume has been substituted in its place.
2. Because no reasonable potential (Endpoint 2) was conclusively determined for total ammonia nitrogen, bis(2-ethylhexyl) phthalate, bromodichloromethane, chlorodibromomethane, chloroform, total recoverable copper, halomethanes, total recoverable lead, total recoverable nickel, and total recoverable zinc, the monitoring frequency for these parameters has been reduced to once per permit term.

C. Whole Effluent Toxicity Testing Requirements

Whole effluent toxicity (WET) limitations protect receiving water quality from the aggregate toxic effect of a mixture of pollutants in the effluent. Acute toxicity testing measures mortality in 100 percent effluent over a short test period and chronic toxicity testing is conducted over a longer period of time and may measure mortality, reproduction, and or growth. This Order retains

limitations for acute toxicity and monitoring requirements for acute and chronic toxicity for Discharge Point No. 001 from the previous permit.

D. Receiving Water Monitoring

1. Surface Water

Surface water receiving water monitoring requirements are retained from the previous Order as necessary to determine compliance with surface water limitations and for the protection of public health.

E. Other Monitoring Requirements

1. Ocean Outfall Inspection

This Order retains the requirement of the previous Order to conduct annual visual inspections of the outfall and diffuser structure and provide a report of this inspection to the Central Coast Water Board regarding the system's physical integrity.

2. Biosolids Monitoring

Biosolids monitoring shall be reported in the annual report in accordance with 40 CFR 503. Biosolids monitoring requirements have been retained from the previous Order. The initial biosolids monitoring frequency of once per year is based on the volume of dry metric tons of biosolids produced in a 365-day period at the Facility reported in the ROWD (154.0 dry metric tons).

3. Pretreatment Monitoring – Not Applicable

VII. RATIONALE FOR PROVISIONS

A. Standard Provisions

Standard Provisions, which apply to all NPDES permits in accordance with 40 CFR 122.41, and additional conditions applicable to specified categories of permits in accordance with 40 CFR 122.42, are provided in Attachment D to the Order.

NPDES regulations at 40 CFR 122.41(a)(1) and (b - n) establish conditions that apply to all state-issued NPDES permits. These conditions must be incorporated into the permits either expressly or by reference. If incorporated by reference, a specific citation to the regulations must be included in the Order. 40 CFR 123.25(a)(12) allows the State to omit or modify conditions to impose more stringent requirements. In accordance with 40 CFR 123.25, this Order omits federal conditions that address enforcement authority specified in 40 CFR 122.41(j)(5) and (k)(2), because the enforcement authority under the Water Code is more stringent. In lieu of these conditions, this Order incorporates by reference Water Code Section 13387(e).

B. Special Provisions

1. Reopener Provisions

The Order may be modified in accordance with the requirements set forth at 40 CFR 122 and 124, to include appropriate conditions or limits based on newly available information, or to implement any, new State water quality objectives that are approved by the USEPA. As effluent is further characterized through additional monitoring, and if a need for additional effluent limitations becomes apparent after additional effluent characterization, the Order will be reopened to incorporate such limitations.

2. Special Studies and Additional Monitoring Requirements

a. Toxicity Reduction Requirements

The Order retains the requirement to perform a TRE, if the acute toxicity limitation is exceeded or if chronic toxicity is detected in the effluent above 90 TUC. When toxicity monitoring measures acute or chronic toxicity in the effluent above the limitations established by the Order, the Discharger is required to resample and retest. When all monitoring results are available, the Executive Officer can determine whether to initiate enforcement action, whether to require the Discharger to implement TRE requirements, or whether other measures are warranted.

3. Best Management Practices and Pollution Prevention

a. Pollutant Minimization Program

The 2009 Ocean Plan establishes guidelines for the Pollutant Minimization Program (PMP). At the time of the proposed adoption of this Order, no known evidence was available that would require the Discharger to immediately develop and conduct a PMP. The Central Coast Water Board will notify the Discharger in writing if such a program becomes necessary. The 2009 Ocean Plan PMP language is included in this Order to provide guidance in the event that a PMP must be developed and implemented by the Discharger.

4. Construction, Operation, and Maintenance Specifications

The Facility shall be operated as specified under Standard Provision D of Attachment D.

5. Special Provisions for Municipal Facilities (POTWs Only)

a. Biosolids Management

The use and disposal of biosolids is regulated under federal and State laws and regulations, including permitting requirements and technical standards included in 40 CFR 503. The Discharger is required to comply with the standards and time schedules contained in 40 CFR 503.

Title 27, CCR, Division 2, Subdivision 1, Section 20005 establishes approved methods for the disposal of collected screenings, residual sludge, biosolids, and other solids removed from liquid wastes. Requirements to ensure the Discharger disposes of solids in compliance with State and federal regulations have been included in this Order. These requirements have been retained from the previous Order.

b. Pretreatment Requirements – Not Applicable

6. Other Special Provisions

- a. Discharges of Storm Water.** Discharges of storm water from POTWs with a design capacity greater than 1.0 MGD are eligible for coverage under General State Water Board Order No. 97-03-DWQ, NPDES General Permit No. CAS000001, Waste Discharge Requirements for Dischargers of Storm Water Associated with Industrial Activities Excluding Construction Activities. The design capacity of the Facility is greater than 1.0 MGD. Therefore, the Discharger shall seek coverage under General Permit No. CAS000001 for all storm water discharges. This is retained from the previous Order.
- b. Statewide General Waste Discharge Requirements for Sanitary Sewer Systems (State Water Board Order No. 2006-0003-DWQ).** The Order requires coverage by and compliance with applicable provisions of General Waste Discharge Requirements for Sanitary Sewer Systems (State Water Board Order No. 2006-0003-DWQ). This General Permit, adopted on May 2, 2006, is applicable to all “federal and state agencies, municipalities, counties, districts, and other public entities that own or operate sanitary sewer systems greater than one mile in length that collect and/or convey untreated or partially treated wastewater to a publicly owned treatment facility in the State of California.” The purpose of the General Permit is to promote the proper and efficient management, operation, and maintenance of sanitary sewer systems and to minimize the occurrences and impacts of sanitary sewer overflows. This provision is retained from the previous Order.

7. Compliance Schedules – Not Applicable

VIII. PUBLIC PARTICIPATION

The Central Coast Regional Water Quality Control Board is considering the issuance of WDRs that will serve as a NPDES permit for the Montecito Sanitary District Wastewater Treatment Plant. As a step in the WDR adoption process, the Central Coast Water Board staff has developed tentative WDRs. The Central Coast Water Board encourages public participation in the WDR adoption process.

A. Notification of Interested Parties

The Central Coast Water Board has notified the Discharger and interested agencies and persons of its intent to prescribe WDRs for the discharge and has provided them with an opportunity to submit their written comments and recommendations. Notification was provided through publication in the Santa Barbara News Press on July 15, 2012.

B. Written Comments

Montecito Sanitary District – The Discharger submitted a comment letter on August 15, 2012, with minor editorial comments and corrections, which have been incorporated into the proposed Order/Permit. Additional comments are summarized, along with staff’s response to the comments, as follows:

1. The Discharger suggested cyanide be collected as a grab sample and that chlorinated phenolics and non-chlorinated phenolics should be collected by 24-hour composite sampling rather than by grab sampling to be consistent with sampling protocols for other constituents analyzed by EPA Method 625.

Staff Response: Table E-3 of the draft permit was changed to reflect that chlorinated phenolics and non-chlorinated phenolics should be collected by 24-hour composite sampling rather than by grab sampling and that cyanide may be collected as a grab sample.

2. The Discharger requested that the Central Coast Water Board change or provide suggestions on how to meet the Method Limit requirements of the 2009 Ocean Plan.

Staff Response: The Minimum Levels in the Order are from Appendix II of the 2009 California Ocean Plan and the Ocean Plan based these numbers on what was achievable in 1997 and 1998 by state-certified analytical laboratories using analytical methods current at that time. The proper time and place to comment on Ocean Plan numbers is to the State Water Board during the triennial review process of the Ocean Plan. Staff did not modify the order. The Central Coast Water Board does not provide recommendations for laboratories to contract or sub-contract that can meet the Minimum Level requirements.

3. The Discharger requested that Ocean Bottom Sediment and Benthic Sampling be changed to be consistent with requirements of other ocean dischargers in the Southern California Bight.

Staff Response: Obsolete or unnecessary analyses (total and fecal bacteria and Biochemical Oxygen Demand (BOD) in sediments) were removed in the Order so that it is more consistent with permits of other Southern California Bight dischargers.

4. The Discharger requested the use of the silverside minnow for chronic toxicity testing since this will be the species used for acute toxicity testing.

Staff Response: Staff agrees that the silverside minnow may be used for both chronic and acute toxicity testing.

5. The Montecito Sanitary District requested the addition of language regarding a tiered response plan in the event of disinfection failure.

Staff Response: The Central Coast Water Board has agreements with California Department of Public Health regarding the Management Plans for Aquaculture Area 355-B and Commercial Shellfish Growing Area Lease M-653-02 in the Santa Barbara Channel. These agreements include notification in the case of disinfection procedures which are consistent with the draft Order. The draft Order was not changed to reflect a tiered response plan as this language differs from these agreements.

C. Public Hearing

The Central Coast Water Board will hold a public hearing on the tentative WDRs during its regular Board meeting on the following date and time and at the following locations:

Date: **December 6, 2012**
Time: **9:00 a.m.**
Location: **Santa Barbara County Planning Commission
Planning Commission Hearing Room #17
123 East Anapamu Street, Santa Barbara, CA 93101**

Interested persons are invited to attend. At the public hearing, the Central Coast Water Board will hear testimony, if any, pertinent to the discharge, WDRs, and permit. Oral testimony will be heard; however, for accuracy of the record, important testimony should be in writing.

Please be aware that dates and venues may change. Our Web address is <http://www.waterboards.ca.gov/centralcoast/> where you can access the current agenda for changes in dates and locations.

D. Waste Discharge Requirements Petitions

Any aggrieved person may petition the State Water Resources Control Board to review the decision of the Central Coast Water Board regarding the final WDRs. The petition must be submitted within 30 days of the Central Coast Water Board's action to the following address:

State Water Resources Control Board
Office of Chief Counsel
P.O. Box 100, 1001 I Street
Sacramento, CA 95812-0100

E. Information and Copying

The Report of Waste Discharge (ROWD), related documents, tentative effluent limitations and special provisions, comments received, and other information are on file and may be inspected at the address above at any time between 8:30 a.m. and 4:45 p.m., Monday through Friday. Copying of documents may be arranged through the Central Coast Water Board by calling (805) 549-3147.

F. Register of Interested Persons

Any person interested in being placed on the mailing list for information regarding the WDRs and NPDES permit should contact the Central Coast Water Board, reference this facility, and provide a name, address, and phone number.

G. Additional Information

Requests for additional information or questions regarding this Order should be directed to Peter von Langen at (805) 549-3688 or pvonlangen@waterboards.ca.gov